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Loudoun County Board of Supervisors, Business Meeting, Tuesday, May 19, 2026

Date Tuesday, May 19, 2026
Place Board Room, First Floor, Government Center, 1 Harrison Street SE, Leesburg, Virginia
Length 8h 53m (video)

- Official meeting video (county, Granicus): <https://loudoun.granicus.com/player/clip/8185>
- Meeting page (Granicus): <https://loudoun.granicus.com/player/clip/8185>

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Speech-to-text: whisper.cpp, model large-v3-turbo. Produced 2026-10-09. Each paragraph starts with its time [HH:MM:SS] in the meeting video.

[00:05:46] a second amanda um before i hit the get the gavel is there a nancy delicio here right now are you here yet not yet okay all right thank you all right so i'll leave it on consent because i'll consent rather one two three four five six are you ready for words of inspiration i mean for words of

[00:06:20] inspiration yeah yeah well good evening supervisors good evening staff and good evening loudon i'd i'd like to call to order the May 19, 2026 Loudoun County Support Supervisors Business Meeting.

[00:06:36] This room has a hearing loop. If you need hearing assistance, please switch your hearing aid to the telecom mode. If you need a headset, we have those available as well. Please see the clerk to request one. Vice Chair Turner, would you like to lead us in words of inspiration and the Pledge of Allegiance?

[00:06:52] Thank you, Madam Chair. This is a quote by President John F. Kennedy at the commencement ceremony for American University, delivered five months before he was assassinated. The most important topic on earth, peace. What kind of peace do we seek?

[00:07:10] Not a Pax Americana enforced on the world by American weapons of war. Not the peace of the grave or the security of the slave. I'm talking about genuine peace, the kind of peace that makes life on earth worth living, the kind that enables men and nations to grow and to hope and to build a better life for their children.

[00:07:27] Not merely peace for Americans, but peace for all men and women. Not merely peace in our time, but peace for all time. Please join me in the pledge. Pledge allegiance to the flag of the United States of America and to the republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

[00:07:51] Okay, the following items are being deleted, I'm sorry, deferred to the June 2nd business meeting. Item 11, the Leji 2023-0080, the Valley Commerce, ZMAP 2023-0008, and ZMOD 2023-0041.

[00:08:14] And item 16, the Board of Supervisors Initiative for the Juneteenth Celebration in Loudoun Freedom Center. Just so everyone knows, I actually, as I set the agenda, I made the decision to take those off the agenda because we have an incredibly long agenda.

[00:08:32] And as it turns out, the next agenda is almost empty. And so when I looked through the things that were not completely time sensitive and didn't have to be passed right away, these two items kind of popped out at me as being the two items that we could move without having any time violations.

[00:08:53] So that's why I made the decision to move them. nothing to do with anything but just how busy the agenda is. I have a feeling tonight would be maybe the first night we make the motion to go past midnight because that's how busy the agenda is tonight. So that's why those are deferred from the agenda. I will also note that the reconsideration of motions from the May 4, 2026 Special Business Board meeting Action Item CPAM 2024-0002 and ZOAM 2024-0002 Western Loudoun Rural Uses and Standards.

[00:09:29] If there are any reconsideration motions that are appropriate, those will be addressed tonight. I will say, Supervisors, my plan tonight, because of how busy the meeting is and because we have three closed sessions is to take us to closed session one pretty early in the meeting because that one could take a little bit of time, come back out of closed session, do resolutions and public comments, and then do the raw risk items at that time.

[00:10:03] That gives everyone a chance to listen to public comments before we get to the raw risk items. And so in some ways, you know, I don't want to say dispense of, but kind of finally close out Walrus if we do it like that. And I'd like to finally close out Walrus, to be honest, or at least send it on to where it goes next. And then from there we'll go on to the rest of the items on the agenda. I would take the second closed session sometime in the meeting.

[00:10:30] Probably that would be our dinner break. And then the third closed session will likely be at the end of the meeting. So just to know, it's going to be a long meeting. Everyone please settle down, settle in, and maybe keep our comments as short as possible because it's going to be a long meeting. I will read the proposed consent agenda. Let me say in advance, I ask for Mrs. Delisio because I am taking item 2B off the consent agenda.

[00:10:58] It's the Facilities Standards Manual Public Review Committee Bylaws Amendments. I have a feeling this speaker, who is the owner of 868 Vineyard, probably didn't mean for that to be the thing she wants off the agenda, but the way this works is if even one person says they want to speak on an item, then that item does not go on the consent agenda.

[00:11:23] So if she comes in later and that wasn't the item, then maybe we'll -- we may not have to take up item 2B. In the meantime, I was under the distinct impression that item number 12, Quantum Park, and item number 13, the Novak-Demos substation, were being deferred.

[00:11:45] They're now on the consent agenda, and I need them to come off if they're going to... They're on the consent agenda with the motion on consent agenda to be deferred. That is the motion on the consent agenda. That's perfect. Sure, no problem. Item R1, proclamation recognizing May as Asian American, Native Hawaiian, and Pacific Island Heritage Month.

[00:12:05] That's for approval and presentation. Mr. Turner will join me down front for that resolution. And if Mr. Turner's staff, Mariam, is in the room, I would like you to join us down front for this resolution as well, young lady. Item R2, proclamation to recognize May 2026 as Jewish American Heritage Month.

[00:12:24] That is for approval and presentation. Mr. Turner, you're going to join me down front for that. Item R3 is Mental Health Awareness Month. That's for approval only. I'm going to go over to inmate SADS and present this with the staff. Item R4, resolution honoring Mr. Jeff Fletcher for his achievements as an emergency management professional of the year.

[00:12:48] That's for approval and presentation. He's going to try to get in the room by 4:30. If he does get in the room by 4:30, We may be able to do this before we go to our first closed session, which we're going to go to almost right away. Item R5, resolution recognizing Light Ridge High School marching storm.

[00:13:06] That is from Mr. Crony, and I think Mr. Letourneau wanted to join us down front on that one as well, correct? Okay. Item R6, resolution to recognize the achievement of NCAA basketball player Solomon Ball and NJCAA basketball players Aiden Cocker and Max Brown.

[00:13:25] I'm really excited about that resolution. That will be for presentation and Ms. Umstad is going to join me down front as is Ms. Glass and Mr. Sains because those are where these young men live.

[00:13:41] Item 1B, Contract Renewal Information Technology Consulting and Technical Services. Item 1C, Contract Renewal Intersection Improvement Design Services. Item 1C, Contract Award AT&T Equipment and Services.

[00:13:58] Item 1F, Award Authority Increase Compressed Natural Gas Fuel Card. Item 1H, Communications Commission 2026 Bylaws Revisions. Item 2A, Advisory Plans Examiner Board Bylaws Amendments. Item 3A, Appointments and Confirmations.

[00:14:16] Item 4, Administrative Violence Report of May 19, 2026. Item five, response to board member initiative, naming of the Dallas South Community Park. Item six, speed management study in the village of Philomont. Item seven, speed management study along St. Louis Road in the village of St. Louis.

[00:14:35] Item eight, response to board member initiative, inclusion of electric transmission line and substation information on board meeting staff report for certain land use applications. Item 9, LEGIE 2025-0016, Eastern Gas Transmission and Stourage Incorporated, Leedsburg Compressure Station, Special Exception 2025-0053.

[00:15:01] Item 12, LEGIE 2023-0097, Quantum Park, ZCPA 2023-0008, Item 13, LEGIE 2024-0059, Novak, DEMO substation. That's a commission permit 2024-0010. And item 15, a board member initiative adding county owned property to the heritage register. That is the very long consent agenda.

[00:15:35] I will make a motion to approve the consent agenda. Is there a second? Motion is made seconded by Vice Chair Turner. Okay, a couple of things. I do want to highlight the speed management study along St. Louis Road in the village of St. Louis. Ms. Tacroni and I have been working on this for a

long time. We had multiple meetings. Gosh, like multiple meetings in St. Louis. St. Louis was the first village to have the small village plan done, and one

[00:16:09] of the things they talked about in some detail for a long time was needing to have some kind of traffic calming along that road. I also want to just actually publicly say that, Mr. Crony, there were, there has been for a long time, you know, the people of St. Louis have not always felt like that they had a supervisor.

[00:16:34] Even when I was going out there, they, like, a district supervisor. And I have heard so many of the St. Louis residents be so grateful for what you've joined me in this kind of, hey, they are part of the county too thing.

[00:16:50] And so I just want to recognize you for that and say thank you for that. If item 1, if Ms. Delisio comes in, I will add item 2B to the motion.

[00:17:07] Otherwise, I think that's all, although I may have a closing. And I will go to Mr. Crony next. Thank you, Chair Randall, and I appreciate those kind words. I love the Village of St. Louis, so I'll always be looking out for that community. Light Ridge Park is on consent, and I want to thank the Prose Board for their time in consideration into changing the name of the Dulles South Park to the Light Ridge Park. So that's what the residents have come up with. It'll be the Light Ridge Park. Chair Randall already mentioned

[00:17:41] the St. Louis speed study. I have a few items on consent tonight. Regarding number eight, the BMI, the inclusion of electrical transmission lines and substation information, that's the infrastructure that I always talk about that is critical to understand and look at when you're making a decision on data center applications. Where's the infrastructure? Where are the power lines? Where are the substations? And staff will be doing a map in our staff reports from

[00:18:14] moving forward so we can make good decisions regarding whether to approve a data center or not. Item nine is the Leesburg Compressor Station, and I don't have much, oh, I do have a little bit of time.

[00:18:30] So that is, this site is adjacent to existing electrical infrastructure, so there's already a compressor station there, and this is expanding it and bringing it up to current standards.

[00:18:46] While I would like cleaner, renewable energy sources, this proposal represents a regional upgrade to existing infrastructure that is already at this location. And I did hear from the two residents who came and spoke, and I appreciate them coming and speaking.

[00:19:04] Regarding the Novec Demos substation, that one is going to be moved to the Planning Commission while they conduct a study on whether or not a GIS substation is viable on the site. Given the distance to a daycare and existing residential, I believe it's imperative that Novec ensure there is a minimal impact on the surrounding community.

[00:19:27] And so this will send this back, remand this back the planning commission to look at alternative designs thank you chair randall thank you ma'am miss um glass thank you madam chair i just want to thank planning and zoning and the heritage commission for working with my office on the initiative for granting permission for adding county-owned resources to the loudon county heritage register and um madam chair i think you come a little close into your mic ma'am thank you manager i think there is a person that wants

[00:20:04] to speak on quantum park number 24. oh is there uh there is all right um i'm going to without objection i'm going to adjust the consent agenda um motion to add to to take quantum park um item 12

[00:20:39] off the consent agenda because we do have a speaker on that, although the motion is to send it to October. We have a speaker on that, and if there is even one speaker, I will not leave things on consent agenda because we don't want to do that. So thank you for making me aware of that, Ms. Klaas. I appreciate it.

[00:20:58] Sure. Mr. Kirshner. Thank you, Madam Chair. Three items. First is a point of clarification. I kind of got lost while you were going through it, but 1A was not put on consent, correct, the Project labor agreement it was not okay great uh second um i do want to thank staff and all those in philamont who worked hard to get this speed study done um that's one of the things in our office we hear a lot especially our villages and how people are traveling very fast to those areas sometimes they're cut through waterford's a perfect example but philamont um has its own issues with traffic so i appreciate all the staff the residents who participated in that and the progress that we're making and then finally um i'd like to be the first to wish uh chair randall a happy birthday

[00:21:37] i understand she turns 39 today that is right and so happy birthday to you and uh i hope you had a great day you share that with my my daughter who's with the lord and uh i remember it every time so congratulations for making it 39 years thank you and i i remember that i share that with your daughter who's with the lord as well and i told you that we also share it with malcolm x and the The Real Queen Charlotte, if you've ever watched Bridgerton, the Bridgerton series, the Real Queen Charlotte was also May 19th, so, yay, feel a little powerful about who I share, we share the birthday with, so.

[00:22:11] It's okay, I share mine with Hillary Clinton, so all's good. Okay, okay. That's wonderful. Not a dime, but the difference between you two, y'all just alike. You are from floors.

[00:22:28] Mr. Turner. - Thank you, Madam Chair. Just a comment on item eight and on item 1D. On item eight, if we could just ask staff in, I'm really pleased with the addition of electric transmission and the substations on applicant briefings, recognizing a lot of that information is proprietary.

[00:22:49] But if they could also consider including substations on the map that were provided to PJM due to load requests, that would be an additional item that they might be able to get their hands on would be helpful in the briefing the second one and i don't think i can change this because it's on consent and if i want to make a friendly amendment it's got to come off consent correct yes that's correct um for some reason the the original motion included the last the language's last phrase um after the amount the estimated amount for the contract for keolis comma that includes defined language addressing the potential transition to insourced services that phrase Well, that's not on the consent agenda.

[00:23:26] That's not on the consent agenda. No, it's not. Okay. No, I have a motion on that, so it's not on the consent agenda. Then disregard it. Yep. No, it's on the consent agenda. Thank you very much. Okay. I think that's all. I have no closing. All in favor of the consent agenda, please say aye.

[00:23:41] Aye. Any opposed? That motion will pass 801. I'm sure Mr. Sains is on his way. We could do, if he is here, and I don't know if he is here, if Mr. Jeff Fletcher is here, We could do his resolution before we go to the closed session.

[00:24:01] Is he here? He is here? Where are you? Hey, how are you doing? Is all your family here too? Wonderful. Thank you. Can you all bring me that resolution and meet me down here in the front? What?

It's here? You're pointing to, you're pointing to, Supervisor Sainz has it.

[00:24:18] Okay. Okay. I'll find it. You go do your thing. I can't go too much later. I have to have it before I go do my thing.

[00:24:45] Um, Mr. Turner and Mr. Hempstree, would you join me down front for this?

[00:25:21] Yeah.

[00:25:40] I want to answer. You want to go to the other side? Do you want to, David is the one to do it?

[00:25:58] David. I'm Joe Davis. Okay. We are honored to have Mr. Jeff Fletcher and all of his crew, which I love that.

[00:26:17] Um, you are the emergency management professional of the year. Whereas, yeah, yeah. Whereas, the Emergency Management Professional of the Year Award recognizes a seasoned Emergency Management Professional who has demonstrated Virginia Emergency Management Association core values, respect, commitment, and professionalism.

[00:26:44] And whereas, this award honors a professional who has served in emergency management for at least five years and upholds the core values as a sign of their dedication to improve the preparedness and resilience across the Commonwealth. And whereas as Deputy Coordinator for Loudoun County's Office of Emergency Management, Safety and Security, Jeff Fletcher has been named Emergency Management Professional of the Year by VEMA.

[00:27:12] And whereas Jeff Fletcher is an accomplished emergency management professional who has worked to keep both the county and the Commonwealth safe through his expertise in emergency preparedness, response, recovery, and mitigation.

[00:27:27] and whereas for more than 30 years, Jeff Fletcher has served the county and has consistently shown outstanding leadership and is highly deserving of this award and recognition. Now, therefore, be it resolved that the Loudoun County Board of Supervisors does hereby recognize and honor Jeff Fletcher for his outstanding achievement and dedication to our community.

[00:27:58] Before I go to you, I'm going to make you stand up here and be a little uncomfortable for a little longer. And ask Mr. Hemstreet or if anyone else would like to say anything, any staffers. Mr. Hemstreet?

[00:28:17] Jeff, I am so proud of you. And, I mean, I, you know, anytime we activate, somehow I always end up on shift with you.

[00:28:34] And I am always grateful for that because I know you know what you're doing. And so I usually listen to you without question. But the relationship and the ability to go back and forth and knowing that you will say whatever you're thinking, I do appreciate that.

[00:28:53] And that doesn't happen with everybody, and I think that makes you special. So thank you for being here. Thank you for sharing your talents with the county and for doing everything that you do. So this is yours.

[00:29:15] You should hold that. And what I would say to you is this. You know, there are so many departments in county government where people don't know that there is somebody doing the hard work behind the scenes for them. I think I was here for, I don't know, 15 minutes. We had this huge snowstorm, and we had to activate the emergency management, and it ran like clockwork.

[00:29:38] And so I don't know that people always know that they are, for so many reasons, things that keep people safe are people who, you know, aren't cutting ribbons and aren't doing groundbreaking and aren't out in the front line, but are doing the work that makes the county safe.

[00:29:55] And so thank you so, so much for that. Thank you so much. We're going to take a picture. Who would you like to be standing right here next to you? Because it's not going to be me. So who would you like to have standing right here next to you? That'd be good. That's going to say the same thing. that is the right answer wow that's a smart man yeah that's why

[00:30:21] okay um i will quickly just go through my very i didn't i didn't i'm not doing a voice for cause

[00:31:58] today because the meeting is so long, I thought we would forego a voice for a cause. I would just quickly say that we -- my regional or national organizations is -- last Thursday we did -- I did attend the second to last session of Leadership Greater Washington, almost done with the cohort. It was transportation and housing. We had great speakers, including Randy Clark from Metro, who said to tell you hi, Mr. Letourneau, Randy Clark from Metro and many others.

[00:32:32] And, you know, what was said is what we all know already, which is we need more attainable housing in this entire region, and that without attainable housing, we're not going to be able to have the economy that we want to have.

[00:32:47] And we need the attainable housing for along the full spectrum of housing, from low-income housing to workforce to actually what is called attainable, to market rate, and everything else in between, veterans housing, senior housing, disability housing, all of it.

[00:33:06] And so, I will say Loudon was called out because we have done so much. I did have a discussion with one of the ladies who was there, and I did let her know that We did not really like the faith in housing bill, and why?

[00:33:25] Because that bill, although we need homes, we also need infrastructure to support the homes. And so if you build hundreds and hundreds of homes, but you do not have the money to build the roads or the school or the classrooms or the fire and rescue or anything, then that's tough and it's an unfunded mandate to localities.

[00:33:45] And so I did express that again. And then the other thing we had was that very evening was NVTa, and NVTa was interesting and great because we were doing our six-year plan and we were having public comment.

[00:34:00] And over half the speakers at the NVTa public comment was the town of Hamilton, which means I think almost all the town of Hamilton joined us in NVTa. They wanted to talk about traffic calming in their town. And there is a, what is known on the books, and I think is actually miscorrectly labeled as a beautification project.

[00:34:28] Because it's not really beautification, it really is for safety and security. And so the mayor of Hamilton and many of the citizens came out. Mr. Kirshner, what I let them know is you and I would come out together and maybe even Memorial Day weekend if you're not, you know, doing something.

[00:34:47] And do that, exactly. Literally and do that, do the parade and then kind of walk around Hamilton to see what some of the issues are. And so what they're looking for is both something to slow the traffic down and sidewalks.

[00:35:04] They believe they need more sidewalks for just connectivity in their town. So those are the regional things that I've done over the past two weeks. And as I said, I don't have a voice for a cause, so I will go to Mr. Hempstreet for any comments that you have, sir.

[00:35:20] Thank you, ma'am. Chair, I've got three comments for this evening. The first is that I'm pleased to announce that Loudoun County has received national, state, and local recognition for several of our programs. The Virginia Association of Counties has recognized three county programs for excellence and innovation with 2026 Achievement Awards.

[00:35:37] The award-winning programs are the Adult Detention Center Service Puppy Program, developed by the Sheriff's Office. The Locational Clearance Review Mapping Tool, which was a multi-departmental effort. And the Tag Your Home program that aims to reduce the number of cats being brought to the animal shelter unnecessarily.

[00:35:55] The National Association of Government Communicators has recognized Loudoun for a three-part video series on how elections are conducted and safeguarded. The Voting in Loudoun County series received a prestigious Blue Pencil and Gold Screen Award from the organization. And the Department of Parks, Recreation and Community Services has been recognized by Visit Loudoun for hosting the USA Softball Eastern National Championship, which received the 2025 Tourism Event of the Year Award.

[00:36:22] More than 170 youth softball teams with an estimated 2,300 athletes came to Loudoun for the event. More information about these awards and other recognition the county has received can be found online at loudoun.gov/slash/awards. Second, Loudoun County's new archive of aerial imagery is now online.

[00:36:39] It's produced by our Office of Mapping and Geographic Information. The archive includes historic aerial photography dating from 1937 to the present day, as well as historical maps. There is also a swipe tool that allows two or more years of aerial photography to be easily compared.

[00:36:55] More information about this new online resource is available at loudon.gov/slash/aerial archive. And then finally, Loudoun County homeowners once again have the opportunity to sign up to learn more about solar power options specific to their property through Solarize Virginia, an initiative that reduces the cost and complexity of going solar.

[00:37:14] The 2026 campaign is focusing on helping homeowners better understand the rapidly evolving solar power landscape. More information is online at SolarizeVirginia.org. Those are my comments for this evening, Madam Chair. Thank you, Mr. Hempstreet. I did forget one thing.

[00:37:30] Thank you, Mr. Hempstreet. My annual stay of the county will be on Thursday, the 21st, two days from now. We are following the American 250 theme. The title of the speech is Loudon's American Story. I do want to thank everyone who, especially my staff and Glenn Barber and Chris Quintine for all the assistance.

[00:37:55] Supervisors, if you are coming, and I think I have everyone's RSVPs, please let me know, and the dais will be pretty patriotic looking, so you are more than welcome to wear some patriotic colors if you're going to be sitting up here in the dais with us.

[00:38:14] So thank you. And what we're going to do now is we're going to go in and get the first closed session done out of the way. We will be back. I will get us back out of here in time to do the resolutions on

time. So Mr. Turner, would you please read us in closed session?

[00:38:30] I move the Board of Supervisors recess this public meeting and enter into closed session pursuant to Sections 2.23711 and 829 of the Code of Virginia to consult with legal counsel pertaining to the negotiation of a collective bargaining agreement where public funds are being expended and where negotiations in open session would adversely affect the bargaining position of the county. Second. Discussion on the motion. Mr. Turner, discussion? The only discussion I have is to say Mr. Sains is not here to read us into closed session. If he joins us

[00:39:03] while we are in closed session, I will note what time he arrived and let you and let everybody knows that know that if if he if he comes back out of closed session with us so that's all i'll say on that one on them please say aye aye any opposed that motion will pass 801 suppose we are in closed

[00:39:22] session all right uh mr turner is going to read us out of closed session mr turner please i move

[01:22:28] the closed session be adjourned that the board of supervisors reconvenes this public meeting that the minutes of the public meeting should reflect that no formal action was taken in the closed session and further move that the resolution certifying the closed session be adopted and reflect in the minutes of this public meeting. Second. Discussion on the motion, Mr. Turner.

[01:22:46] My discussion would be that Mr. Sains joined us in closed session at 4:49 p.m. So we had not been there in there very long at all when he came in. Any other discussion? So what Mr. Sains would be would be voting for is everything that happened in the meeting after 4:49 p.m.

[01:23:05] in favor please say aye aye any opposed would everyone please affirm affirm affirm affirm affirm and i affirm as well thank you that motion will pass nine to zero okay so we are about 10 minutes early for resolutions but i am told that everyone who's going to join us for the aapi resolutions already here is that right mario is that he right so we're We're going to go on and do that because that probably will take 10 minutes and then we'll have time to get everybody else in the room.

[01:23:43] Mr. Turner, would you and your amazing, lovely, wonderful staff, Mariam, please join us down front. Do you see your people?

[01:25:22] Before we start the resolution, I'm going to say what I always say about some resolutions for particular groups. well back in 2008 I came to the board I was not the chair of the board then I was citizen Randall I came to the board and I said to then the board chair why isn't there a resolution for African American History Month and Mr. York looked at me and he correctly said to me why don't you write one and I thought he is completely right he is completely right and so I have written the resolution for African American History Month every year if a if a group of

[01:26:00] of citizens want to have a resolution to celebrate their community and their diversity, their culture, their milestones and their successes, I do look for them to bring that to us. And so these resolutions don't come up, bubble up from board members as much as they do from the community.

[01:26:19] And so we are here today because, where did she go? 'Cause Mariam actually was very involved in writing the resolution and reaching out to the citizens who she wanted to, she believed should be highlighted for AA, it's actually more than AAPI, AANHPI?

[01:26:40] Okay, thank you. So she has that resolution, so she has done that. So I'm going to hand the mic to her boss while he is going to read the resolution. Thank you, Madam Chair. So I'll read the resolution in

just a second. Some recent experiences caused me to kind of do a lot of traveling, And I am struck by the fact that we as Americans are bound together by our common devotion to freedom and dignity and fairness for all people.

[01:27:12] And yet we are enriched by the differences of our history and our culture and our own experiences all at the same time. It's a wonderful mixture. I think it's probably unique in the world. And I am very, very happy to read this proclamation. Whereas Asian American, Native Hawaiian, and Pacific Islander Heritage Month recognize the invaluable contributions of the AANHPI community in the fields of education, science, technology, public safety, government, and engineering, and many, many more.

[01:27:43] And whereas Delegate Josh J.J. Singh's background is marked by a history-making and dedication to public service by becoming the first urban-wearing Sikh to serve in the U.S. Peace Corps and in the Virginia General Assembly, and served in the White House's Office of Management and Budget and as economic policy advisor to Senator Chris Coons.

[01:28:02] And whereas Julia Brown has demonstrated exceptional dedication in music education and community service through her leadership and commitment to developing young musicians in Northern Virginia by providing clarinet instruction to students, founding the Northern Virginia Clarinet Ensemble, and encouraging young musicians to serve their community through music.

[01:28:21] And whereas State Senator Akanen Srinivasan has built an impressive background with a 30-year career in finance and business analytics at New Asurian, and the Chef Jose Andre restaurant group has served as chair of Virginia's state Medicaid board, during which time Virginia expanded Medicaid coverage to 2 million Virginians, was elected to Virginia's 26th district in 2024, becoming the first Indian American immigrant to be elected to the House of Delegates, and would later be elected to Virginia's 32nd Senate District, now therefore be it resolved that the Loudoun County Board of Supervisors does hereby proclaim May 2026

[01:28:59] as Asian American, Native American, and Pacific Islander Heritage Month in Loudoun County and recognizes the contributions of the Asian American, Native Hawaiian, and Pacific Islander communities. We have more than one copy.

[01:29:19] I'm going to ask Mr. Sweeney Vossin. Senator Sweeney Vossin, if you'd like to say anything. Thank you so much, Supervisor Turner. Thank you so much, Chair Randolph, for this. I'm very humbled to be here, and I thank the board for recognizing this month, which has been celebrated for decades, the richness of Asian Americans, Native Americans, and also the Pacific Islanders, Hawaiian Pacific Islanders' contribution to this country is

[01:29:54] extraordinary. Whether you go back to the railroads decades ago, you see the Sikhs who came in '50s. The first Indian American congressional representative was from California, a turban wearing Sikh, Dilip San Singh, in 1950s. Just imagine getting elected to 1950s, early '50s to Congress. You know, what a hard thing would have been. So the contribution of Asian Americans, different communities of Asian Americans has been extraordinary. And I'm very humbled and grateful for the board to recognize our contribution. Thank you so much.

[01:30:31] Would you like to say anything? Would you like to say why this was so important for you to do this proclamation and to help write this proclamation? Come on over here. Working for Vice Chair Turner

has been just an absolute dream as a Loudoun native and writing this proclamation with Chair Randall's senior legislative aide Jason Menhivar was very important because it gave me as well as

[01:31:09] Jason an opportunity to recognize individuals in the community that we look up to. Individuals in the AANHPI community whom we see as you know pillars obviously in our community as well as teachers and it just gave an opportunity to do something and make people smile so.

[01:31:34] i think you are pretty remarkable yourself don't you think that absolutely okay how about we take

[01:31:40] a picture i do not see aiden so i'm going to hold off on that one for just a second is aiden here

[01:33:20] i don't see aiden and i don't see maximilian quite yet i do see mr ball but i don't see the other ones quite yet and so is everybody here for jewish um for jewish american heritage month are you all here for that are people here for that no all right well how about mr look yes yes just two people this time? Hi, how are you? Come on down. Mr. Turner, will you join me back down here,

[01:33:49] please? Hi. How are you? I'm going to come back down. And I will just say ditto of what I've already said about how these proclamations come to be. The same thing for this one as well. So I appreciate you all being here. All right. Then we have a proclamation for Jewish American Heritage Month. Whereas Jewish American Heritage Month is an opportunity to celebrate the vibrancy and

[01:34:26] importance of Loudoun County's Jewish American community. I'm sorry, Ms. Umstead, who asked to join me for this one. I forgot about that. No, you can stay here. But Ms. Umstead asked me to join me for this one. I apologize. I forgot that. There you go. Ready? I'm going to start over.

[01:34:48] Whereas Jewish American Heritage Month is an opportunity to celebrate the vibrancy and importance of Loudoun County's Jewish American community, whose accomplishments and contributions strengthen and enrich culture, and whereas Jewish Americans contribute to every facet of Loudoun County, the Commonwealth of Virginia, and the United States of America in the fields of science, music, art, education, business, government, medicine, and numerous others, and whereas the Jewish American community has faced historic struggles and challenges,

[01:35:24] including discrimination and persecution, with one in five being victims of assault or harassment, according to the Anti-Defamation League, but have persevered, demonstrating an enduring commitment to justice, compassion, and the pursuit of peace. One in five. One in five.

[01:35:46] And whereas during Jewish American Heritage Month, residents are encouraged to commemorate and celebrate the essential contributions, sacrifices, and accomplishments that Jewish Americans have made and continue to make in the county. Now, therefore, be it resolved that the Loudoun County Board of Supervisors does hereby proclaim May 2026 as Jewish American Heritage Month in Loudoun County and recognizes the contributions and cultures of Jewish Americans.

[01:36:18] Thank you. When would you like to speak? sure absolutely you can take that one and i will make this ready for you while you speak hi there i'm robbie milberg and i live in potomac green we've been here 20 years and i just wanted to share that there are four synagogues in this county area that serve our jewish community we have chabad orthodox we have conservative and we have to reform these communities are active the conservative one has a nursery school right here in leesburg off the

[01:36:53] Evergreen Mill Road, and you may be aware of Erwin Uran and his contribution through Leesburg. Over 3,000 books have been purchased through the library system with a Jewish theme open to everybody to enjoy, and we thank you for this recognition today.

[01:37:12] Thank you. I do want to note that when I was asked to put this resolution forward, I did get a phone call from Ms. Amstead to ask me could she join in the resolution, so I do want to note that. How about you take that, and you step here, and we all step to the left and take a picture.

[01:38:15] Storm, right? Why don't you all come on down? It's cool.

[01:38:45] How are you doing? Good to see you guys. I'm well. How are you doing? How are you doing, young man? Where are you? Okay, over here. Nice to meet you. Handshake. How are you doing? Good to meet you guys. Good to meet you guys. Thanks for coming in. We appreciate it. Good to meet you, too.

[01:39:02] Thanks for coming in. Hey, Mr. Crony is going to read a resolution for the Light Ridge Storm. The Marching Storm. Yes. So this is a resolution for the Light Ridge High School Marching Storm. Whereas among the talented marching bands across the country, the young men and women of the Light Ridge High School Marching Storm have been formally invited to perform at the New Year London Parade on January 1st, 2027.

[01:39:32] And whereas since opening, the Marching Storm has been named Brands of America Regional Finalists three times and have performed in Mickey's Celebration Calvacade to honor the 50th anniversary of Walt Disney World.

[01:39:50] And whereas these achievements made by the Marching Storm are due to their dedication, hard work, and remarkable talents while representing Loudoun County in England. Millions of people will be watching through various news channels around the world, and whereas the guidance and support from the band director, Mr. Phillips, Light Ridge High School and the families of the students do not go unrecognized or unappreciated, and whereas the marching band boosters are selling sponsorships to help cover the cost of the trip, including meals for the students, shipping uniforms, and providing scholarships for students

[01:40:28] on free and reduced lunch. Now, therefore, it be resolved that the Loudoun County Board of Supervisors hereby recognizes the Light Ridge High School Marching Storm for their achievement in being selected to perform in the New Year's Parade in London, England.

[01:40:45] Yes, what an achievement. That's very exciting. Would you like to say a few words? Thank you, Mr. Phillips. Yes, so thank you. I want to thank the board. I am a product of Loudoun County and Loudoun County Public Schools.

[01:41:01] I grew up in Percival and I went to Loudoun Valley High School and just awesome that the board has made Loudoun County such a great place to live and be and raise our own kids and support the schools and things like this. And we look forward to taking Loudoun to international spotlight for this trip and just really thank all of you for what you do for us in our community.

[01:41:26] Anybody else? Anybody down this way? No. Okay. they need they need help they need help you want to talk about that maybe sure so yeah we have sponsorships on our website lightridgebandboosters.org and so we're looking to raise money to help students who may not be able to

afford to go or it might be a struggle for for their families um and we're trying to get every student uh who can go we we marched 206 students last year

[01:42:07] so we're trying to get them at least the ability to go and we're also doing a mattress fundraiser on june 7th so a lot of schools have done that with great success so if you're interested in those things you can find out more information on the band boosters website but thank you again for for all you do for us yeah you're welcome and i got to meet the lord mayor of of where where was he from westminster yeah i got lord mayor and and they gave you guys an umbrella right an umbrella in case it rains i don't know who's is that you you have the umbrella do you have the umbrella to

[01:42:44] keep okay okay no you have to keep it he said that the lord mayor gave instructions on that but thank you very much and and i don't know no it's uh i've got a few constituents at light ridge and so i wanted to show our support and congratulate all of you and uh wish you a very uh plentiful in terms of the number of students who can attend and productive trip congratulations

[01:43:12] you guys have done a lot in a short period of time thank you really have aiden are you here

[01:44:29] and do you know where maximilian is you do not know where max it is and mr ball you were here So I'm going to have who is here. Come on down. If you are here for the resolution for basketball, come on down. Well, he's not here yet. Come on down. But yeah, he's not here yet. Max is not here.

[01:44:51] Miss Umstead, will you come down and join us as well? And Miss Glass. Thank you. Hi. How are you? So have we had any different thoughts on Marvel Comics yet? Hi. Oh my gosh. Thank you. Look at that. Oh, thank you. Did you see all the Facebook posts I put up? You were getting big love. Big love. You were.

[01:45:20] I tore two ligaments in my hand. Yeah. So is all the family down here too that wants to come down? Because if you want to, come on down. This is the time. I think, how about this? Family, come down. How's that sound? That sound a little better?

[01:45:44] So everyone that knows me knows that I actually got really, first of all, I love college ball. I don't really love professional ball, but I love college ball. And I started watching college ball, especially when I was in, when I was at Memphis, is when they went to the Final Four.

[01:46:02] And so when you go to the Final Four and you're there, it is the craziest, most amazing experience. But I also, and he's not here yet, I also knew one of the players who was playing and the Juco League, Maximilian Brown, who hopefully would be here very soon.

[01:46:18] So I was watching them, and I was watching the tournament, and I realized that we had all these kids from Loudoun who were doing amazing things. And in my opinion, I say this all the time, if a kid does something that they shouldn't do or that's wrong, it's blown up everywhere. It's on every news story, it's on every paper.

[01:46:35] But when our kids do really great stuff, we don't talk about it enough. And so I knew right away that I wanted to have these young men in this boardroom with me today to talk about what they have done. I'm going to read the resolution and then I'm going to talk about both of you because I have stuff to tell you, both of you.

[01:46:59] Resolution for NCAA basketball player Solomon Ball and NJCAA basketball players Aiden Cocker and Max Brown. Whereas Loudoun County has produced talented and remarkable young men

such as basketball players, Solomon Ball, Aiden Cocker, and Maximilian Brown, who have gone out to share their gifts and are ambassadors of Loudoun County on and off the court, representing the future generation of history makers. And whereas Solomon Ball grew up in Leedsburg, Virginia, regularly playing basketball at the Ida Lee Recreation Center, and his junior year as a guard of the University of

[01:47:39] Connecticut made it with his team to the final four of the National Collegiate Athletic Association Division I tournament. Solomon ranks 10th in UConn basketball history for the most three-pointers made. And whereas Aiden Conker, a son of Sterling, Virginia, matriculated to Gulf Coast State College, where he is a junior guard.

[01:47:59] His basketball team competed in the championship game with the National Junior Collegiate Athletic Association tournament. In his spare time, Aiden enjoys music, drawing, sports, is a fan of the Marvel universe. We should talk about that. We should talk about that, because he doesn't really know what the best Marvel movie is.

[01:48:17] But we're going to talk about that later. And is most proud of proving his supporters right. And whereas Maximilian Brown spent his young years in Washington, D.C., and later moved to Aspen, Virginia, he matriculated to Gulf Coast Day College in his freshman year as a forward, and he and his team competed in the championship game of the National Junior Collegiate Athletic Association Tournament.

[01:48:43] Maximilian's mom, I really wish he was here right now, Maximilian's mom said in his spare time, he likes to play video games and eat. Now, therefore, be it resolved that the Loudoun County Board of Supervisors does hereby recognize Solomon Ball, Aidan Cocker, and Maximilian Brown for their outstanding achievements and representation of Loudoun County.

[01:49:10] Okay, so first let me say to you, I have been watching you for a while, and I put you on my Facebook page, and the amount of people who said things like, I remember him playing ball at Ida Lee.

[01:49:28] He was such a nice kid. Everyone who's ever met you wanted to make sure people knew who you were. You really are not, you're a very good basketball player, but you're also a very good ambassador for Loudoun County. And I was watching when you called out the 703 that night.

[01:49:45] And I was like, yeah. So I was watching. And truthfully, there literally was a watch party when you went to the tournament in Loudoun County. Your mom said that she doesn't have a Facebook page. So she didn't even know all the stuff that I had put on the Facebook page because she didn't have a Facebook page.

[01:50:02] But we are incredibly proud of you, but not just for basketball, but for who you are and how you represent, which in many ways is much more important than basketball. So thank you for that. Let's just start off with Captain America, the first Avenger is the best Marvel movie there is.

[01:50:22] Okay? Okay. And we can talk about all of the rest of them later if you'd like to. We can compare notes. We can go back and forth. I got you on this one. I got you on this one. Civil War is dumb.

[01:50:37] That's not the best one. it's not the best one um i will say when i put you up your father said how do you know about him i'm like really really we're following we are following our kids and following what they do in loudon county and again i had teachers especially saying what a nice kid you were both for all of you all what came up more often than anything else was you were such nice young men and so to be

ambassadors in this way is amazing you're all the way down in Florida you think we're not watching you we are you think we're not we are

[01:51:15] there we are in your corner and we are there for anything any of you need at all times okay would you like to say something besides Marvel Universe stuff like to say you are okay thank you for the sport give you this where's Max today. What's wrong? Is Max coming in? His family's here, but he's not. Oh, Aiden's family's here.

[01:51:53] Oh, oh. Well, come on up and get the picture. Come on up, sir. Get the picture. I will, I will very quickly. So Max is not here, but I'm going to tell you a story about Max real quick. So I've known Max's mother for a while. Max is, what is Max, 16? It's about 16. So Max is about 16 and I have a teeny tiny car and and uh one day Max's mom's car broke down and she asked me to go pick him up and I forgot Max how big Max was right so I wouldn't pick Max up and put him in

[01:52:28] in my car and Max's Max's knees were touching his chest he put the seat all the way back and he's just laying there like normal like this and I was like are you okay and he goes I'm fine ma'am I'm like okay max so i i really i'm so sad he's not here today but i'm so thrilled that the two of you are here and good to see you sir good to see you all right let's uh yeah is that your mom come on up come on up for the picture come on up for the picture we will wait

[01:53:03] when that shot what an amazing game and I will tell you this no no it was I will also say this I wish I had kept my um my bracket because I had you all beaten Duke in my bracket I did so how

[01:53:36] you doing hi how are you all right stand up let's get a picture

[01:53:45] ma'am chair we need your microphone on please sorry we can do one of the items

[01:56:18] that does not have a speaker signed up, and that is the item, is it 1D, the transit item. I will, unless, wait a minute, is this, do you want to speak on this? No. Okay. I will say that this had been on consent, and it really should not, oh, Max, oh, give me my, give me glasses. Maximilian, come up here with me.

[01:56:52] the resolution however um max i do want to read your part of this resolution okay

[01:57:49] uh because i think it's pretty important and pretty impressive and i wanted you to be here and with ms west and take this picture okay ready i'm not reading it to you tell me in the in the picture you're gonna smile with me right okay all right i did tell everybody how remember i when i picked him up that day and i'd be a structure shoved you in my little tiny car remember that yeah i did tell everybody about it this was in my little tiny car right here this hilarious. All right, Max, your part is this. Whereas Maximilian Brown spent his young years in Washington, D.C., and later moved to Ashpen, Virginia, he matriculated to Gulf Coast State

[01:58:26] College, and in his freshman year as a forward, he and his team competed in the championship game of the National Junior Collegiate Athletic Association Tournament. Maximilian's mom said that in his spare time, he likes to play video games and eat.

[01:58:45] Now, therefore, be it resolved that the Loudoun County Board of Supervisors does hereby recognize Solomon Ball, Aiden Cocker, and Maximilian Brown for their outstanding achievements and representation of Loudoun County. That is yours.

[01:59:02] We're going to take a picture. I will say I have known Max, I don't know, most of his life, most of his life. And Max, I will say this about what you don't know, is your mom has an army of aunties praying for you all the time, all the time. We've all watched you grow up, and we are all so proud of what you're doing right now, and we are all right here for you when you need us.

[01:59:31] Okay? Okay. Want to take a picture? You want to smile? Okay. All right. We now do have, we are now

[02:01:40] going to go into public speaking. And I do have two former delegates in the room. It is my tradition to allow -- nobody has left their glasses. I'm sure they're going to be back -- oh, they're yours -- to allow elected officials and former elected officials to speak first, just out of tradition. I do that. And on the basis of seniority, I'm going to first ask former delegate Joe May to come speak followed by former delegate David Ramadan to speak and then we will go to the list of speakers and I will call your name.

[02:02:16] I do realize that there are quite a few people who were going to speak on Valley Commerce and so they may not be here. Now if you are here today, even though we're not going to be taking up Valley Commerce for a vote tonight, if you'd like to speak on that issue, you absolutely can.

[02:02:36] Even though it will be heard at the June 2nd meeting, as it was not pulled until yesterday, if you'd like to speak on that, you can, absolutely can. But we will go through the list for everybody else, and I will first call Joe May and then David Ramadhan.

[02:02:54] Yes, sir. We'll take David Ramadhan first and then we'll get Joe May. Former chairman, to have him join with me on the fun that I'm about to do.

[02:03:16] Hello, sir. Don't you dear. Madam Chair, Board of Supervisors, good afternoon. Thank you for giving me my time as a citizen of Loudoun County. I had, and I see the clock there, so I may over for a second here. I have a habit of calling my friends or texting my friends on their birthdays, as long as I know that it's their birthday.

[02:03:39] I happened to be talking to the chair by phone earlier today. I did not know it was her birthday until I walked in earlier here and I see this balloon and I said, whose birthday is it? And Supervisor Umstead said, the chair.

[02:03:55] So, Madam Chair, I normally try to embarrass my friends when I call them and make them suffer with me singing happy birthday. So for any of you who would like to suffer and listen to me, let me know what your birthday is, and you'll get your call.

[02:04:12] But since this is public hearing, Madam Chair, I'm not going to sing. I'm going to play a song for you, though. You know that Happy Birthday is an international song, and it has been used and adjusted and mixed with a lot of languages, including the Arabic language.

[02:04:30] So I found the most popular Lebanese American Arab birthday song. Happy birthday, Madam Chair. Thank you, Mr. Ramadan.

[02:05:11] Happy Birthday to you, Happy Birthday to you. My time is up, it's time is up, you're right, thank you Mr. Coach, it's time, I wasn't

[02:05:47] Happy birthday to you, Mr. Ramadan, thank you, Mr. Ramadan, happy birthday to you, I will say it's a little jazzier than our happy birthday song, I will say that, thank you Mr. Ramadan, that's very, very kind of you, I appreciate, I appreciate you very much.

[02:06:07] You can all call me and give me your dates and I'll come and embarrass you as well. Thank you sir, has Mr. May made his way into the room? Delegate May? Where are you, sir? Delegate May, hi, how are you? We are ready when you are, sir.

[02:06:27] Pardon me? Sure we can. We can go as we can. I will do whatever he asked me to do. I'm going to go to Mike Dempsey, followed by Madeline Skinner, and then back to Delegate May. I don't know how you're going to follow that, Mr. Dempsey, but welcome to the boardroom. Good evening.

[02:06:48] Good evening. My name is Mike Dempsey, and I'm here to advocate and express excitement on behalf of the Eastern Atlantic States Regional Council of Carpenters on the pilot PLA program for Loudoun County, specifically the ADC expansion and Route 15 widening.

[02:07:09] This pilot program presents an opportunity to put Loudoun County residents to work right here in the county and give them access to the gold standard union apprenticeships in the country. As this is a pilot, I know there are probably questions around how this will work, what this can look like, and most importantly, how to balance the needs of the business community and your residents.

[02:07:31] We want to work with you to make this the most successful pilot program, putting your residents to work. Right now in Prince George's County, Maryland, one of the largest PLA projects in the state is currently underway to build eight new schools. Our carpenters are currently working with six non-union companies on this PLA with minority business goals being met and exceeded, in fact, and all schools for the project labor agreement are on schedule to be completed on time.

[02:07:58] A PLA is not a union-only job. It's a guarantee that your tax dollars are going to be used effectively to put your residents to work and hold contractors accountable to pay a living wage. If you have any questions about how the PLA would work for Loudoun County, we are here to help, and I eagerly hope that you will approve this PLA to put Loudoun County residents to work.

[02:08:18] Thank you for your time and your consideration. Thank you. Thank you, sir. Appreciate you. Madeline Skinner, and then I will go back to Joe May. Madeline Skinner. Good evening, ma'am. No, no, I'm coming to you. Go on. Good. Good evening, Chair Randall and supervisors.

[02:08:36] My name is Madeline Skinner. The villages of Philomont and St. Louis look forward to the speed management improvements in our villages. Unfortunately, the actual implementation is unknown. There are midterm actions that can occur for very little cost compared to the long-term share of pull-off sections that will cost well over a million for each village.

[02:08:54] The gateways, the signs, the speed signs will all have a great success, so please find the money to do it as soon as possible. There's no timeline that's being talked about right now. As for reconsiderations, allowing unlimited events and large crowds in late hours are more than neighbors in ag buildings should be asked to tolerate.

[02:09:13] As a wine grower for over 25 years, the most heartbreaking part is some of these wineries have lost their way. It's all about the venue, events, and having a bar with a view. I am disappointed in those who have turned a respectful agricultural endeavor into an industry that will do anything, whether it's destroying our mountainsides, disturbing neighbors, and most of all, putting customers in harm's way.

[02:09:33] Safety and respect for your neighbors should be the priority. I had hoped to have this discussion on this topic at last week's Loudoun wine growers and winemakers meeting to reach a common

ground. Unfortunately, I was met at the door by the LWWA board and I was told that I was not allowed to stay because I have, quote, spoken against them.

[02:09:55] I was informed that this was going to be a closed meeting and I needed to leave. I've heard of people being told not to speak out and, of course, the never-ending threat of lawsuits. I will not stop trying to protect our industry our family has been a part of since 1999, and the most critical action is protecting the safety of our visitors and preserving the peace in the West.

[02:10:16] Thank you. Thank you, Ms. Skinner. Joe May, you will be next. And is Jamie Emory in the room? Okay, because she was for Valley Conference. If she's not, then after Joe May will be Mara Wash Copeland. delegate may it's wonderful to see you good evening i'm joe may and i've lived in loudon county for most of my life and i've had the privilege of serving this community in various capacities for many years tonight i'm here simply as a loudon resident speaking to what this board can do and

[02:10:55] should do not just tonight but going forward deferring the aspen substation is the right decision tonight. But it is not enough of and by itself. The reason we're in this room is that we are reacting to a substation application rather than shaping the process from the start and the county has had no early seat at the table, which you should. Dominion notifies localities of planned

[02:11:30] transmission projects after PJM has already approved them. By the time the communities find out the decisions have been made as the county's undocumented findings in the Mars to Golden SCC proceedings the county asked the SCC to fix it the SCC ignored the request so this board must act on its own I urge the board to create a dedicated County representative someone who attends PJM meetings reviews transmission and substation proposals before they're

[02:12:10] locked in and gives Loudon an early voice in decisions that will shape this county for hundreds of years. I also ask the board to actively evaluate utility companies for their responsiveness to Loudon constituents and to encourage alternatives to Dominion including First Energy to enter this service territory. Competition creates accountability and monopoly with no accountability is exactly what we're living with tonight, and please maintain sustained

[02:12:47] participation in SEC proceedings, not episodic or not reactive, but sustained, and that's how Loudoun protects his rest is. Thank you. Thank you, Mr. Delegate May. Thank you very much.

[02:13:02] Thank you. Thank you all. Good night. Good night. Marwash-Copeland, followed by Gary Frankenfield. Good evening, ma'am. happy birthday thank you back on the rural uses roller coaster let's roll motion 56 constricts versus provides direction to staff and wasn't reviewed by the cao in advance the mod motion will allow farmers and industry to grow crops and vines without a minor speck on with bona fide ag

[02:13:36] as a permitted use it will protect the sensitive mod from structures turned into places of assembly tasting rooms, or other non-residential covered activities, which should require minor specs approval to protect soil erosion and groundwater for downstream properties. The motion agrees with neighboring counties that do not permit by-right non-residential development on the mountainside.

[02:14:00] 50-foot setbacks are needed for the protection of children, patrons, trespass, noise, and road issues and staff does not support motion 20 requesting it be removed confirming state code allows land use regulation. Number 20 directly conflicts with six other direction motions.

[02:14:20] Conflicts in direction tie your staff's hands drafting text to address public safety and undermines building and development health department and fire marshal authority to review all places of assembly. ABC venues can have by-right parties and can hold events with proper banquet event and site plan permits.

[02:14:41] Allowing unlimited ABC events will both continue and exacerbate existing noncompliance, putting constituents and patrons at risk. Building code and fire protection state laws should not be circumvented by any venues with public assembly.

[02:14:58] The business cost of compliance should never supersede public safety. As stewards of the county, I'm sure you agree. Thank you. Thank you very much. Gary Frankenfield, you're going to be followed by Marianne Mueller.

[02:15:17] Good evening, sir. Good evening, Madam Chair and Supervisors. My name is Guy Frankenfield. I'm the president of the Regency at Belmont Homeowners Association. My community is about to become face-to-face with the 185-foot-tall industrial transmission towers as part of the proposed Aspen-to-Golden power line.

[02:15:41] These towers were run through an established residential corridor that was developed precisely because of its natural beauty. These towers will be visible from every home in our community and will likely have a negative impact on our property values. When we heard about this proposed project, we did not sit idly by.

[02:15:59] Our community reached out to Dominion on many occasions asking for underground power alternatives. What we got in return was not a solution but a process designed to produce a predetermined answer, the above-ground power lines.

[02:16:16] My understanding is that Dominion hired Black & Veatch to conduct an underground feasibility study for the Aspen to Golden segment. When the results of that study did not give them what they wanted, they hired a second contractor, Burns & McDonnell, whose study conveniently concluded that undergrounding was not feasible.

[02:16:35] This board cannot rely on studies that were designed, funded, and filtered by the applicant. Please consider hiring your own independent professionals to provide an engineering and demand analysis, one that is not prepared by Dominion and not paid for by Dominion.

[02:16:52] Dominion's fiduciary duty is to its shareholders. Your duty is to us, the residents of Loudoun County. Please defer this application and do your own due diligence. My community is counting on you. Thank you. Thank you. Mr. Frankenfield, so I know you said you were the president of the HOA.

[02:17:15] Are you speaking on their behalf? Yes. Okay. Thank you very much, sir. Mary Ann Mueller, followed by Victor Block. Good evening, ma'am. Good evening, ma'am. Happy birthday. Thank you. Good evening.

[02:17:30] My name is Mary Ann Mueller. I am a director on the Lansdowne Conservancy Board, but tonight I speak as a resident of Loudoun about Route 7, the gateway to our county, and a defining visual landscape of Lansdowne, Belmont, and One Loudoun.

[02:17:46] Dominion's proposed industrial infrastructure along this corridor will have a lasting negative effect on our quality of life and our homeowner investments. Lansdowne has actively opposed these plans

from the start. invested in the exploration of alternate routes and undergrounding. We participated in hearings and in litigation. As citizens, we have done everything in our power to bring some common sense to these expansive plans, which show so little regard for our communities. Despite our efforts, Dominion keeps using non-disclosure agreements for service to data centers that

[02:18:24] are not yet even built, only informing us about the decisions after they are finalized. Yesterday, Dominion announced plans to merge with NextEra, forming the world's largest power utility company.

[02:18:39] Energy analysts already warn that regulating such a massive mega-monopoly will be nearly impossible, especially given NextEra's history of influencing favorable outcomes. Tonight I ask our board, please exercise whatever remaining power over Loudoun that you might have especially as it pertains to the development of Route 7. Defer your decision on the substation tonight. Establish who it is intended to serve. Try to regain some degree of control over the unfettered industrialization of our neighborhoods and landscape. Please defer, get the facts,

[02:19:18] protect our gateway. Thank you. Thank you. Thank you very much. I should say for the record I'm actually a resident of Lansdowne in the Potomac, so that is my HOA. Victor Block, followed by Supna Hensensky.

[02:19:37] Good evening, sir. Good evening. Happy birthday. Thank you. Good evening. I'm Victor Block, president of Latin Valley Estates. Our community sits in the shadow of gold in the Mars. And tonight I want to speak plainly about something Dominion will not tell you. Dominion will come before this board and call this a reliability emergency.

[02:19:55] They will tell you that if this application is not approved tonight, the grid will fall into disarray. Do not accept that framing without scrutiny. What Dominion will not tell you is that they manufactured this crisis. They entered into private electrical service agreements, long-term confidential contracts, committing grid capacity to data center operators.

[02:20:17] Before a single public hearing, before a single engineering review, before this board had any say in the matter, Having made those promises, they now stand before you and claim there is no time to wait. But here's the truth. Dominion has contingencies. The most straightforward one is simply not bringing additional high-wattage users online until the grid infrastructure exists to support them.

[02:20:40] Instead, they made private deals promising delivery by specific dates. Dates hidden behind non-disclosure agreements. We heard about that last week. And they are now using those private timelines to pressure this board into rapid approval. Dominion has a conflict of interest.

[02:20:57] They are serving their contractual obligations to data center clients, not the residents of Loudoun County. You do not have to take my word for it. You should not take Dominion's either. Do your own due diligence. Create a county staff position. Do this research for you. And tonight, please defer this application and defer the barrister application.

[02:21:16] Thank you. Thank you, sir. Supna Kinsinski, followed by Stefan Vazvik. Good evening. Good evening. Happy birthday. Thank you. Good evening chair and members of the board. My name is Safna Hensinski and I'm here with James Duquette representing Legacy Farms and the Loudon Human Services Network. Thank you for your continued investment in the Human Services Nonprofit Grant Program and continued partnership with the nonprofit community. We are here to respectfully ask the board to consider filling the approximately \$560,000 funding gap in the fiscal year 28 HSNP

[02:21:51] recommendations so that the eight organizations that scored 75 or higher may receive at least partial funding awards. We recognize that difficult fiscal decisions must be made but we are deeply concerned about destabilizing smaller proven organizations like Legacy Farms. We scored an 83 percent well above the threshold yet we are impacted by this gap. A reduction in our funding despite our high application score directly threatens the livelihoods of neurodivergent young adults in Loudoun County. Young adults like James. Your support puts paychecks directly in the hands of a vulnerable population. Losing it creates a ripple effect of unstable employment and household financial strain. I will now ask James for a quick moment to tell his story.

[02:22:31] I graduated college with a bachelor's degree in English and writing in 2023 and promptly could not get a job. I sent an application after application. I received nothing back but crickets. Legacy were the first people to give me a chance. They were the first people to ask me to write for them professionally, to work in my field under a professional and real manner. The diverse people who have given me the chance to use my skills in a real life environment. And I'm just so grateful to this chance that I've been given. And I just hope that

[02:23:10] I will be able to continue to do the work that I've been doing. Thank you. Thank you, James. Thank you for coming to speak. Thank you so much. Thank you both. I appreciate you. Stefan, that's Vic, followed by Woody Turner. Good evening.

[02:23:26] Good evening, Board of Supervisors. My name is Staffan Wasvik. I'm the Vice President of Latin Valley Estates. And I want to follow up on what Victor just talked about, but with something more concrete. Because this is not just our community's opinion.

[02:23:45] It's a conclusion of four independent authorities. The SEC's own staff stated that these transmission lines and substations would not be needed if not for the multiple data centers in the area. They found it, and I quote, perplexing that Dominion refuses to discuss cost allocation.

[02:24:08] JLARC, the legislature-owned research arm, found that excluding data center demand, projected Virginia growth is effectively 0%. Zero. With data centers, JLARC projects up to 183%.

[02:24:26] growth by 2040. PJM itself, the grid operator, designated this private data center alley local solution. Not a reliable solution, a data center solution. The purpose is not public. It's solely to serve private interest of the data centers. On April the 15th this year, Dominion's own contractor, Jack Story of Dewberry, was asked directly, is this substation being built to serve existing capacity or new capacity? His answer, new capacity. And when asked whatever this new

[02:25:04] capacity exists yet, he said, and I quote, that is correct. This does not yet exist. So this substations are built for something that not yet here for load that has not materialized for data centers whose agreement are hidden behind non-disclosures. The SSC is not listening to county yet. Four requests all ignored. The board must stand and then they will all listen. Place defer the demand and the fact. Thank you. Thank you. Thank you. Thank you. Woody Turner followed

[02:25:40] by Brian Turner. Good evening. Good evening. My name is Woody Woodrow Turner and I speak for myself and my family only tonight. I have the honor and I just want you to know that I have been working with and have known 67 of your predecessors and if i added you all to that list it would be 76.

[02:26:04] i say that so that you will know that i know how important your job is and how important you are the issue tonight for me is the aspen substation i've reviewed that file it has flaws and i have some

observations this is a legislative land use application and you have the clear legal right to require the applicant applicant to adequately mitigate and negate excuse me negate the impacts of this project and there are many this project runs close to residences it's bounded on two sides by

[02:26:43] public parks with one adjacent scenic trail this applicant has a pitiful track record of protecting that trail. In fact, last year in Fairfax County, their action resulted in an MOU between the Park Service and Dominion. An appropriate MOU between Loudoun County and the Dominion folks tailored to this and future applications like it might not be a bad idea. So you have three options. First, you could approve it with all of its flaws and inadequacies, but in my opinion that

[02:27:21] would be a governmental and political malpractice. You could deny it outright, but I believe there's a better option. You could, and my advice to you is that you defer it while you have their attention and require that they engage in meaningful negotiations with you to get a better product for this application for Loudoun County. In conclusion, I respectfully request that my supervisor in whose district this application is located make the motion to defer. Thank you.

[02:27:54] Thank you, Mr. Turner. And Mr. Turner, you will be next. And you will be followed by Paul McAuliffe. Good evening, sir. Happy birthday, Chair Randall. Thank you very much, Brian. I appreciate it. Good evening, Chair Randall and members of the Board of Supervisors. My name is Brian Turner.

[02:28:10] And today I serve as general counsel to the Loudoun Coalition of HOAs and condo associations, representing more than 50,000 Loudoun residents. Over the past several years, our communities have made some honest observations about the data center industry in Loudoun County. First, the data centers do a remarkable job generating tax revenue for this county. We acknowledge that and we're grateful for it. Second, the industry has been a meaningful supporter of local nonprofits and that matters to our communities. But third, and this must be said plainly, the data center industry as a whole has not contributed in any meaningful way to mitigate

[02:28:47] the negative impacts that come with it. You will see some individual data center applications that appear thoughtful. Some operators work to address specific concerns, but they are often reactive adaptations to influence new build approvals. The proliferation of the industry in the Loudoun now suffers from unforeseen or unintended consequences negatively impacting quality of life for its residents. Most operators within Loudoun are members of the data center coalition.

[02:29:12] Despite formal requests to the coalition for help in addressing the broader impacts of their industry on Loudoun's residence and infrastructure those requests were met with silence. Tonight we renew that request publicly and on the record. We ask the data center street to work with us not against us not just on individual applications but as an industry alongside Dominion alongside the county to achieve real meaningful solutions county-wide and we ask this board to do three things. Defer this application pending due process or due diligence, create a county energy

[02:29:48] infrastructure department to engage at the PGM level and the FERC level, and convene meetings between the data center coalition, Dominion, the county, and the community. The urgency Dominion cites is urgency of its own making. Please act on behalf of the 50,000 residents we represent.

[02:30:05] Thank you. Thank you. Thank you, Mr. Turner. No, I've done this already. Paul McAuliffe, now he's here for Valley Commerce, so he might not be here today. If not, is Paul McAuliffe here?

[02:30:23] Okay, you're going to be followed by Greg Pierio, followed by David Cox, who also is here for Loudoun Valley. Greg Pierio? Yeah, I'm here. Hello, sir. How are you? David Cox, are you here?

[02:30:41] Okay. Jeffrey Parker, are you here? Give me one second, sir. And Jim Bingle. Yes, you are here. Okay. Ms. Bingle, you will follow Mr. Pirio. Good evening, sir. Yeah. Hi, everyone. I'm Greg Pirio.

[02:30:57] I'm a director of the trail site HOA based in Sterling. And I want to explain to you my experience of the negative impact from data centers that can happen when the approval process fails to protect residents.

[02:31:15] The data center in question is Vantage 2, located at Sterling, about 100 yards from my front door, 150 yards from my front door. Hundreds, if not thousands, of my neighbors are impacted by noise and light pollution and the industrialization of our once quiet community because of the county allowed a rezoning.

[02:31:37] As a result, many of us experience headaches and sleepless nights because of the sound penetrating into our dwellings, including children. Neighbors report an increase in dry eyes, as I do.

[02:31:53] This data center has its own gas turbine power plant that operates 24-7. And when the backup generators operate, sometimes for days at a time, I feel irritation in my throat and my lungs. We have sought mitigation efforts through proper channels.

[02:32:12] Vantage knows these issues and has not provided any meaningful response to alleviate the problem. So one thing, you cannot, as Vantage expands in the county, you cannot, you should be distrustful of their statements and lack of transparency.

[02:32:33] We require transparency in the infrastructure that you're examining and what we're talking about today. We want enforceable mitigation and without accountability from the companies whose decisions drive the impacts.

[02:32:52] Thank you. I could go on and on. Thank you, sir. Jim Bingo, followed by John Ellis. Good evening, Ms. Bingo. Good evening, Chair Randall and board members. I'm Jen Bingle speaking on behalf of the Piedmont Environmental Council. With the change in your agenda, I'm not going to speak on Valley Commerce Center or Quantum Park, but I had also wanted to speak on the reconsideration motions that you'll be discussing tonight.

[02:33:16] As you know, PEC has opposed more non-residential development in the MOD to protect the sensitive environmental features there. We have expressed support for bona fide agriculture, grape growing, in the MOD. This area is not appropriate for uses that add more impervious cover, impacting groundwater recharge and increasing erosion due to grading on sensitive soils and slopes.

[02:33:41] At least at a minimum, a minor special exception would allow you and the public to be able to address issues of concern. We also continue to have concerns about unlimited parties with unlimited people, both for the public safety concerns staff has expressed impacts on infrastructure, road infrastructure, and neighboring properties.

[02:34:01] Businesses across the county are regulated in ways that may impact their success, and they must navigate a positive outcome, since private and public interests always have to be weighed and balanced. That's what zoning is all about, right? It is disappointing also that Vice Chair Turner's failed

motion has not been reconsidered. In its essence, it asks staff to explore a basic 50-foot setback from neighboring properties for outdoor activities at ABC venues.

[02:34:29] A default 25 feet is minimal, and any neighbor, regardless of where they live, would be challenged by unlimited outdoor activities so close to their properties. I hope this will be addressed as the Walrus Project proceeds. Thank you. Thank you. John Ellis. And you will be followed by, just give me one second, Mr. Ellis. Is Chase Stewart in the room? Okay. Is Keith Mainland in the room? All right. These are all people who

[02:35:02] signed up for Valley Commerce. John Brown. Okay. Michael Parrish. Jennifer Gawler. She's remote. is she on the phone? No? Okay. Jessica Kirkland, are you in the room? All right. Okay. Claflin Schwab, are you in the room? Okay. You're going to, thank you. Thank you very much. You're going to be after Mr. Ellis, ma'am. Thank you for that, Mr. Ellis. I appreciate your patience. Ready when you are. Great. Thanks very much. Good evening, supervisors, and happy birthday to you. Thank

[02:35:41] you, John. I'm not going to speak about VCC either, Valley Commerce Center, but I did send an email to y'all yesterday, and I would appreciate it if you take time to read it. We gave 10 reasons why we think it would be a good idea to decline that application.

[02:36:00] I'd like to talk a little bit about the motions to reconsider. And I wanted to reiterate what I said in the hearing last time.

[02:36:19] I'm speaking for Saverall Loudon. We love our wineries, breweries, and distilleries. We want them to succeed. We know that they are under stress, and nobody wants to impose unnecessary burdens on them. So I want to say that from the very beginning.

[02:36:37] I also want to say, in the initial TELUC meeting on the Walrus project, I said that our concerns are not about any specific land use. They are not. Our concern is with the severe impacts that some large-scale events may have on neighboring farms, residents, and the general rural environment, including noise that can be heard for miles around and dangerous traffic congestion on narrow rural roads.

[02:37:06] We also agree with what others have said about the importance of applying public safety laws without exception. Severe external impacts or tragic accidents have the potential to harm not just the public, but ABC businesses themselves.

[02:37:25] We are not seeking to control the number of events that have little or no external impact. What we want is understanding and addressing the differences between different types of events, the difference between the impacts.

[02:37:40] And for that purpose, tiered, you know, regulations that are tiered to the scale of the events are the right way to go. Thank you. Thank you. Thank you, Mr. Ellis. Catherine, I'm sorry, Kathleen Schwab, followed by Laura Smith.

[02:37:56] Good evening. Good evening. My name is Kathleen Stakem Schwab, and I live in Kincaid Forest, which is back to Cross Trail in Leesburg, immediately next to the proposed Aspen substation. We had no notice of this application and we are just learning about it in the last few days I'm especially disappointed by the lack of notice surrounding this application just last week My neighbors and I received certified mail from LCPS to give notice of an application of a proposed storage facility Yet we've not received anything regarding this much more impactful application Many of my neighbors would be here

tonight if they'd received sufficient notice and have been given a fair opportunity to participate in this process. There is more to this application than just the Aspen substation.

[02:38:35] I feel it's a defining moment for this board. The community and the county are being asked to approve a major substation, one that would anchor 185-foot towers past schools, through residential neighborhoods, and across historic landscapes without knowing what commitments Dominion has made to whom or for how much load.

[02:38:53] My question to the board is why didn't we receive any notice from Dominion? My question to the board is the same as I would ask any planning body. How can you approve an application without facts when the applicant controls the missing information. The community has been shut out, the record's incomplete, and a plan built on incomplete information, in my opinion, is not a plan.

[02:39:11] It's a gamble. That is what Dominion is asking you to do. Take a leap of faith and leave the details up to them. And I don't feel that that's been working out very well for Loudoun. My family and I have called Loudoun County home for generations, and I want the same for my children and for their children. Please defer this application until the county and the community are privy to the essential terms that drive this project.

[02:39:30] I feel that due diligence is not optional. It is your obligation. Thank you. Kathleen, I mean, Ms. Schwab, sorry. I'm sorry. I do know you and your family, and I know how involved you are, so that's the question. I'm not asking for your address, but you said you didn't know about this, and I'm surprised to hear that.

[02:39:49] Can you tell me? I thought I knew where you lived, but... I live right behind the animal shelter. Okay, I did not know that. Right on bus trail. Okay, I got you. Thank you. That's not what was in my head. Thank you. Thank you. Um, Laura Smith, just give me one second. Nancy Delicio, are you here? Okay, Miss Delicio, we're going to just give me the second. Okay, all right. Um, Miss Smith, good evening, supervisors and chair Randall, and happy birthday. Thank you. I think it would be a wonderful birthday gift to

[02:40:24] fund the gap in your honor tonight. I am the executive director of the Loudoun therapeutic riding program, and I am a proud resident of Percival. For 52 years, LTR has served as a cornerstone nonprofit organization in Loudoun County, providing equine-assisted services that improve the physical, emotional, cognitive, and social well-being of children and adults with disabilities, veterans, seniors, and individuals facing mental health challenges. Our services have

[02:41:00] have evolved as the county has evolved and grown. So in this list of services, we, in our 52 years, we've actually received very limited direct financial support from the county, and we have submitted a grant that has been, has met the criteria within the human services grant, but we are in the gap, and we ask for your help. Today, we need our services to continue to grow, importantly. Additionally, 87 percent of our participants are Loudoun County residents and 80 percent of our volunteers also live in Loudoun County.

[02:41:39] This funding would directly strengthen services that benefit the county's own residents while helping sustain a vital community resource that has become woven into the fabric of Loudoun's non-profit landscape. As one, we appreciate your consideration and dedication to the health and well-being of Loudoun County residents and we respectfully ask for you to fund the GAP.

[02:42:03] The LTR is qualified and deserves support. Thank you for your time and your leadership. Thank you. Thank you very much. Nancy Delisio, you're going to be followed by Philip Emanuel. Ms. Delisio, can you come forward? Just -- I have a question. How are you?

[02:42:24] So, ma'am, with respect, you signed up to speak for Item 2B was the Facilities and Standards Manual Public Review Committee Bylaws Amendments. That's what I thought. And we didn't think that was, we thought you wanted to speak on the Walrus process.

[02:42:40] That's what I assumed. Motion 20. Motion 20, not Motion 2B. That's correct, yes. I understand. Give me one second. Supervisors, without objection, I'd like to add back to the consent agenda, Item 2B, the facility standards manual public review committee bylaws amendments.

[02:42:59] I took it off because we had a speaker. As it turns out, I have to go -- Madam Chair, a motion to approve would be sufficient. 2B. A motion to -- okay. All right. I'm going to make the motion to approve. Second.

[02:43:14] Second. Any discussion on the motion to approve? Motion to approve 2B, the facility standards manual public review committee bylaws. I'm good. Thank you. Okay. All people say aye. Aye. Any opposed? Thank you very much. That was very kind of you. I appreciate it. We just like stopped in the middle of public comment and did a whole motion. Thank you so much. We just because now that staff can go home. So we appreciate that. Mr. Lesio, you will be followed by Philip Emanuel and we are ready when you are ma'am.

[02:43:51] All right. Thank you. Good evening. My name is Nancy DeLiso. I'm one of the owners of 868 Estate Vineyards. I'm speaking to you for the third time in this process. I'm here tonight because motion 20 regarding usual and customary events at wineries and breweries has resurfaced for yet another vote. And to be honest, this is quite exhausting.

[02:44:08] Many of us walked out of the last meeting believing that the issue was finally behind us, looking forward to turning our full attention back to running our own small businesses. Instead, we're pulled away again to discuss this ongoing distraction. Operating a small business right now is harder than ever, battling rising costs across the board and shifting consumer spending habits driven by an economic uncertainty.

[02:44:31] On top of that, agricultural life is inherently volatile, the spring freeze that has significantly impacted our 2026 grape crop. 17 years ago, my husband Peter and I chose Loudoun County for our vineyard specifically because of its reputation for being friendly toward small businesses and the hospitality industry.

[02:44:51] We believe that the county understood that agritourism requires partnership, not moving goalposts. These constant regulatory switchbacks do more than just drain our time and energy. They actively stifle future growth. When rules change from meeting to meeting, it creates an environment of unpredictability.

[02:45:09] And that uncertainty makes it incredibly difficult for us to justify further investment in our property. And it will undoubtedly cause other entrepreneurs to think twice before opening a business in Loudoun County. Just like vines in a vineyard, wineries need predictable, stable ground to survive.

[02:45:27] I urge you to honor the direction of the previous vote, reject the proposed event restrictions, and let us get back to farming, providing world-class hospitality, and supporting our community through our events. I support the original motion passed by TLUC 3-2 and further supported by the Board of Supervisors 5-3-1.

[02:45:45] Thank you. Thank you. Thank you, Amanda. The clock has to go. Thank you. Philip Emanuel, followed by Michelle Emanuel. Good evening, sir. Good evening, Chair Randall and board members, and happy birthday.

[02:46:02] Thank you. New Orleans is arguably the murder capital of the U.S. with the highest per capita murder rate. Loudon is the data center capital of the world. Neither of these are enviable titles. Loudon's title was earned on this board's watch, and it's not going away.

[02:46:21] But you are elected by the people who live in the data center capital. Their interests and the industry's interests are not the same, and the gap is widening. Dominion's letter to the county explained to you, with practice courtesy, that they view the county's role as accommodating decisions that have already been made elsewhere, at PJM, at the FCC.

[02:46:43] You are not the decider. You have become the facilitator, expected to rubber stamp the outcome. The question tonight is not whether Aspen and Barrister are technically necessary. Dominion will always find a way to make that case. The question is whether you have the will to insist on a plan that treats the inputs to livability as an integrated problem, not as variables optimized around industry growth.

[02:47:09] Right now, there is no such plan. There is a permitting cadence. That's not the same thing. Tonight's vote is not a routine special exemption. This is an up-or-down vote on whether the board insists on accountability and a plan, and your constituents are paying attention.

[02:47:26] So the ask for this, please wait on Aspen and wait on Barrister. Force the conversation that needs to happen. Dominion, the industry, the county, and the community at the same table with a real plan. This is not anti-data center. This is not anti-Dominion.

[02:47:45] This is a pro-plan and pro-Loudin. And just of note, with the special exemption for reducing the parking spaces for one for every 33,000 square feet, that results in approximately eight spaces. Where would emergency vehicles park in the event of a crisis?

[02:48:04] Sir, your time is up. Thank you so much. Thank you, ma'am. Good evening. Michelle Emanuel, followed by Georgian Overman, who's on the phone, I do believe. Good evening, ma'am. Good evening. Happy birthday. Good evening, supervisors. I am actually reading a letter on behalf of Sue Manch. She cannot be here this evening, and she asked me to read this to you all.

[02:48:26] Good evening, Chair Randall and supervisors. I am Sue Manch, past president of the Waterford Foundation and chair of the Loudoun Transmission Line Alliance. The alliance was formed by over 50 nonprofit businesses and citizen groups in Loudoun to fight the moral line that was planned to run through Loudoun's pristine green space.

[02:48:47] One of the things we understood very early on in our fight was that without the work of the Piedmont Environmental Council, we would never have known that the moral line had been approved by PJM, and work was underway to make it happen. Because we were able to intervene early, gain the

support of the county, and articulate all the impacts to business, tourism, agriculture, and historic protected sites, the moral line was canceled, and plans were made to move it to existing rights of way.

[02:49:17] Today, I am here to ask the board to defer approval of the Aspen substation so that more work can be done to assess the impacts of this project. Just as the Loudon Transmission Line Alliance could not act until we had good information about the Morrow project and its impacts, we believe the county cannot responsibly act until it has complete information about the Aspen project and who it serves.

[02:49:45] Loudoun County must be a part of the PJM discussions in order to fully understand what is needed and the options for fulfilling those needs. Allowing the service provider Dominion to be the only party involved in project approval goes against the community representation pledged by board members.

[02:50:03] Having a county staff position that attends and participates in PJM meetings allows for Loudoun's voice to be heard early in the process. Thank you for listening and for all your work on behalf of the people of Loudoun. Thank you very much. Thank you. Georgianne Overman, is she on the phone, followed by Kate Zurchmead?

[02:50:25] Is Ms. Overman on the phone? Hello, yes. Get ready when you are. Yes, this is Georgianne Overman. I'm speaking about Motion 20, the usual and customary events at wineries, breweries, and distilleries. And happy birthday, Chair Randall.

[02:50:43] thank you. I would like to speak in support of the motion. The industry has pointed out the protective statutes that exist that this motion is in alliance with. There are other statutes as well. The Right to Farm Act also protects events and customary activities at farm activities. And the Agricultural Operations Statute, which is 15.2-2288.6, also has a

[02:51:16] substantial impact test before localities can regulate these activities. But I'd like to point out that I don't see a distinction between the types of activities that wineries have all the time, which is that customers come. They may or may not know one another. They have their wine.

[02:51:38] They have food. There's music. I don't see how the board can distinguish from those activities that take place every day at a winery and a private party. There's a great deal of overlap.

[02:51:56] And so looking back on it, today is actually my anniversary. At my own wedding, the distinction I could think of is that weddings have dancing. And so I suppose that if you start regulating weddings, you will have to perhaps cut back on the dancing that could occur. But other than that, these are people who are doing the same thing that they would do if they were attending a wedding or they were just coming to enjoy the winery. And since clearly those activities are not regulated, neither should these parties be. Thank you. Thank you, Ms. Oberman. Happy anniversary.

[02:52:34] Kate Zersheim followed by Stephen Fortier. Good evening. Good evening and happy birthday. Thank you, Kate. My name is Kate Zersheim. For 60 years, our family has farmed in Loudoun. Today, we steward more than 800 acres via Great Country Farms, Blumont Vineyard, and Dirt Farm Brewing.

[02:52:54] Tonight, I want to put a human face on what's at stake. I'd like to introduce to you Stacey Collins. If you can see her, I don't know how well that turns out. Our vendor and community relations coordinator, Stacey, was recently named Visit Loudoun's Certified Tourism Ambassador of the Year for creating events that drive tourism and support local businesses across Loudoun County.

[02:53:18] Last year, a hard freeze devastated our orchard season, as it has again this year. Stacey helped our farm adapt by creating new events like Pickle Fest, Watermelon Fest, and the Doxy Derby. These events helped offset our agricultural losses and allowed us to keep supporting amazing employees like Stacey. That's why reconsidering Motion 20 is so concerning.

[02:53:45] Events are not extras for farms and wineries. They are a critical diversification strategy that helps us survive the unpredictable realities of farming. In 2023, the Virginia Assembly address safety concerns with a Loudon Fire stakeholder input by requiring evacuation plans, fire extinguishers, and public notice signage. If a structure is safe for one event, those same safety standards apply every time it is used. Limiting the number of events does not improve

[02:54:18] safety. It simply limits economic viability for working farms. Our family urges you to keep Motion 2020 as written, combined with the performance standard motions that were passed, county staff has tools to address noise, parking, lighting, and operations without undermining the fundamental viability of Loudoun's farms, such as ours.

[02:54:42] Thank you. Thank you, Ms. Zurchmeade. Thank you. Stephen Fortier, followed by Donald Walker. Good evening, sir.

[02:55:01] Good evening, Madam Chair and members of the board. My name is Stephen Fortier. I'm the owner of Domain Fortier Vineyards. I also hold a doctorate degree in systems engineering with a concentration in crisis disaster and risk management and recognized professionally as an expert in the field of safety.

[02:55:20] Understand that, and I support legitimate safety concerns that the board has, but safety is not theoretical to me. It's part of my profession. But effective safety policy must be evidence-based, risk-based, and proportional.

[02:55:36] The proposed blanket cap on farm winery events does not meet this standard. If a structure has already been evaluated and approved by the fire marshal and meets occupancy and safety requirements, the determination does not become less safe after the 10th event or the 20th event.

[02:55:54] Limiting the number of events does not reduce risk. It simply reduces the economic viability of farm wineries and agro-tourism businesses. Virginia has already addressed these concerns through statewide legislation and regulation. The General Assembly specifically exempted certain farm structures from the USBC while simultaneously establishing additional public safety requirements for those structures, as pointed out by the last speaker.

[02:56:24] In 2023, the legislature further strengthened agricultural requirements for farm winery licenses to address bad actors attempting to operate purely as event venues. Those regulations are now in place and continue to be implemented statewide.

[02:56:43] The result is that Virginia already has a comprehensive statewide framework addressing both safety and agricultural integrity. Additional local event caps would duplicate existing regulations without creating measurable safety benefits. I respectfully ask the board to support policies grounded in actual risk, existing law, and fairness to the agricultural businesses that help sustain Loudoun County's rural and economic economy. Thank you. Thank you. Thank you very much. Donald Walker, followed by Lacey Huber, who actually is now in the room. Good evening, Mr. Walker.

[02:57:23] Good evening board and happy birthday. Thank you. I've been coming to board meetings for every 40 years. I'm sorry. The idea that small businesses destroy our rural environment has been running in cycles for as long as I can remember. What I do remember is we lose businesses and the houses just get bigger in western Loudoun. I want to encourage the board to continually listen to the business sectors that have been good neighbors here in Loudoun and continue to encourage the use of our old barns and our structures. This is preservation. This is what I think we should see.

[02:57:58] I want to talk about the uh the special exceptions. Um the minor specs they're expensive for most reasonable. They're going to be too expensive to do a small scale business in western Loudoun. I hope that we can set a scale for requiring minor special exceptions or special exceptions or we're going to see only large homes, loss of small businesses, and only large attractions that people can afford to pay for the special exceptions. I want to save the special exceptions for the data.

[02:58:30] Centers not for our businesses. Thank you, thank you, Mr. Walker, Lacy Hubert, followed by Susan Munch, followed by Chad Marston. Good evening, good evening. My name is Lacy Hubert, representing my family's business, Stone Tower Winery. We've been farming in Leesburg for over 50 years and grown grapes since 2009. Today we have 95 acres under vine and over a thousand acres of land. At its core, Stone Tower is an agricultural operation with significant land stewardship.

[02:59:06] Responsibilities. The hospitality and events side of our business is what allows us to sustain our large family farm and remain economically viable. We ask that you please support the original motion 20. Farm winery events are how we share and sell the wine grown from our land, and they're essential to keeping that land in agricultural use in our business alive. I understand that building safety has been part of the concern, and we take that very seriously, but placing numerical limits on events does not make buildings safer. If the concern is safe public use of farm structures, then the solution should be targeted to building and life safety standards,

[02:59:45] not arbitrary limits on the number of events a farm winery may host. Furthermore, existing state law regarding agritourism event structures, ABC laws, and local ordinances already provide meaningful regulation. We also ask that you support the original Motion 57.

[03:00:01] This motion provides an important structural protection. If Western Loudoun businesses are treated more restrictively than equivalent uses or operational intensities elsewhere in the county, there should be a clear written finding explaining why. This is not asking for special treatment. It is a fair examination. Finally, please oppose requiring a special exception for all non-residential covered activities in the Mountain Overlay District. Adding a special exception process would add major costs, time, and perhaps most importantly, uncertainty without a demonstrated need. What is particularly troubling is that

[03:00:40] single-family homes built in these same areas would not require the same level of review. Rural preservation depends on rural economic viability. If farms and farm wineries cannot reasonably invest, grow, and operate, open land becomes harder to preserve. Thank you. Ms. Hubert, give me one second, because I've heard this now quite a few times, and it's the first time in two years I've ever heard this.

[03:01:01] I don't understand what the discussion of who has said to someone that because there are more events, we believe, we believe that changes the safety standards that were approved.

[03:01:18] But we have never said that. And this is the first time I've ever heard that. So can you help me understand where that's coming from? Certainly. So, I mean, tonight I'm surprised to be here because

we've, you know, we went through the whole thing a few weeks ago.

[03:01:36] And so I heard through the proverbial grapevine, the grapevine is that why this would be brought up is because of a safety issue. So that's why you're hearing that tonight. Well, let me say, like the temptation say, the grapevine has no name. So, okay.

[03:01:52] Thank you. Thank you. All right. Susan Munch, followed by Chad Marston. Susan, are you here? Last name M-A-N-C-H. Are you here? No. Chad Marston. You will be followed by Mary O'Connor, although Mary O'Connor, it might have been about the partial bill.

[03:02:15] Are you here, Ms. O'Connor? Wonderful. Is Chad Marston here? Okay. Ms. O'Connor, how about you come down? You'll be followed by Bill Hatch. I don't see him. Bill, Mr. Hatch, are you here? There you are. Wonderful. Hello, ma'am. How are you?

[03:02:36] Hello. I am Mary O'Connor. Thank you for the opportunity to speak about the Valley Commerce Center. I'm a resident of Unison. We moved here about 20 years ago to beautiful rural Loudoun County.

[03:02:55] I have a number of concerns about the Valley Commerce Center. Number one, I find it curious that the planning board voted to approve the application despite the unanimous professional staff recommendations to disapprove.

[03:03:16] I read through all the proffers that were published on the website. I watched the last public hearing about it. I listened to all the speakers. I do acknowledge that business owners are always looking for flex space and light industrial use.

[03:03:38] It's always needed by local contractors. I come from a family of local contractors in New York where we were the second family to purchase an industrial space on a light industrial use road such as this proposal.

[03:03:55] There's never enough of it. It's never in the right place. It's never enough to satisfy local businesses. It's always awkward. It is always awkward. However, the reality is that approving this application would bring development that is too intense and too extensive for the location, which for good reason is not presently zoned for that commercial development and light industrial flux use.

[03:04:29] But I'm also curious about why I have not heard any other proposal other than all or nothing. I think the place should be subdivided, and whatever use is approved should be of the size, scope, and nature of nearby properties.

[03:04:51] Thank you. Thank you very much. Of the same use. Thanks. Thank you. Bill Hatch will be followed by Ann Fortin, followed by Ted Tidmore. Good evening, Mr. Hatch. Good evening, Madam Chair and Board. My family has farmed dairy, beef, lamb, and now wine, here continuously for seven and a half decades.

[03:05:14] I'm going to speak tonight on the MOD issue in front of us. Most of Loudoun agrees that bona fide agriculture is a good thing for Loudoun County. However, bona fide agriculture is financially flaky. Now, what I mean, that recent freeze was catastrophic for most growers here in Loudoun County.

[03:05:37] The few vineyards that came through and survived this freeze were in the MOD. And this is, I think, very, very important. Bonafide agriculture does not make any money. It is the sale of agricultural products and or the value-added processing that makes agriculture financially viable and feasible.

[03:05:59] We all know that Loudoun is an expensive place to live. It is not an option to ask farmers to lose money year after year in order to force their hand to sell to developers. If Loudoun wants farmers, they should consider easing the burden on farmers, owner-operators, allowing farmers and farm workers to not only produce in the MOD but to live in the MOD and to process and sell products they grow in the MOD.

[03:06:29] this will allow farmers to stay and not sell thank you thank you mr hatch um and for 10 followed by ted tim tidmore followed by george davis davies i'm sorry george davies good good uh evening ma'am hi um i appreciate the opportunity to speak today um my name is ann fortin and i live in percival i own and manage clara vineyard a small tasting room outside of hillsborough i purchased the property in 2015 and lovingly renovated an old barn on the property originally built in 1834.

[03:07:03] It is believed to be one of the few barns that survived the Civil War burning raids in Loudoun County and today it serves as our tasting room. I believe our property contributes to the historic charm and character of western Loudoun County. I currently employ 12 people and we host a wide variety of events including theater, comedy, yoga, sound baths, candle making, flower arranging, and art classes. We also host private events such as baby showers, graduations, dress rehearsals, corporate gathering, and weddings, and these events are essential to keeping my business operating and allowing us to continue to sell wine. These events also support an entire network of local

[03:07:42] businesses including caterers, florists, photographers, musicians, and many others who rely on wineries like ours. Our property is located right off Route 9, so we have no traffic complaints except Route 9 at rush hour. And we have ample parking, and in more than nine years of operation, we have never received a single noise complaint. The fire marshal visited my venue when we first opened. We have emergency exit lights at all exits, evac plans, and fire extinguishers. We comply with the current USB-C requirements for farm buildings, as all wineries do. I strongly encourage you, before making decisions that effectively could put wineries

[03:08:19] and breweries out of business to come visit us. See firsthand what we do responsibly, how we responsibly operate, and that we are safe for guests. I would gladly welcome you for a field visit anytime. I believe there may be a misunderstanding of the real impact these restrictions will have not only on my business, but on the 40-year legacy of Loudoun County's wine industry. If these restrictions are put in place, visitors will simply choose to go elsewhere, Taking their tourism dollars and economic support with them and my property will simply become another housing development. Thank you

[03:08:52] Thank you. Thank you. Thank you. Ted Tidmore followed by George Davies followed by men pack. Good evening, sir Good evening. I'm Ted Tidmore And I've been making a number of changes back here trying not to regurgitate all the great points made tonight So we'll give you something new I I have, I'm a partner in Bear Chase Brewing Company.

[03:09:17] I have a construction company of 30 years and Letourneau's district. I have a few different properties that's also in Letourneau's and Turner's district, as well as to Crony's. I'm asking the board to vote no in all three of our considerations tonight. So what keeps a rural business alive is the weekends.

[03:09:37] You've got 52 weeks a year. Half of that is off-season. It's cold. It's not the time to go to a winery or brewery. So you've got 26 left. It rains. It's too hot. You got to compete with other things like graduation. So we end up with 10 to 12 really good weekends a year. Sundays are never really overcrowded. So you do

have some busy Saturdays. That's what keeps us alive. That's what keeps things going. That's the difference in breaking even, losing money or making money. You can't tell in advance which 10 to 12 days those

[03:10:11] are going to be. So planning can be tough. A cap on attendance, events, cars turn the year into a gamble, you cannot win. I'll also say that the parking lots. So if you have safe parking on property, we have staff that manages people coming out. It self-regulates because when we're full, we safely send people elsewhere. That's not many days a year. It's managed. Responsible operators do that. We don't have street parking. We don't have off-property parking. And I can tell you from all the ones that I know here, I think that's relative and the same. So if the board has

[03:10:51] concerned about a few actors out there that are causing issues there's laws already just to enforce that's all it really needs to be done so let's vote no on all three i actually sent everybody an email it was late today you probably haven't seen it mr titmore thank you so much if anybody wants one can i leave them on the side you can leave them over here thank you sir um george davies followed by min pack good evening sir good evening good evening chair members of the board My name is George Davies, Executive Director of Creating Foundations for Hope,

[03:11:29] and I am speaking on behalf of the Loudon Human Services Network. I thank the board for recognizing the critical role nonprofits play in serving Loudoun County residents through the Human Services Nonprofit Grant Program. It is important to understand that earlier this year, the board approved increasing the maximum allowable grant requests from \$113,000 to \$135,000.

[03:11:52] following recommendations to account for inflation and rising service delivery costs. Organizations responded to that policy change by requesting funding levels that reflected current community needs and operational realities, therefore limiting the number of applications approved as the funding ceiling only was increased by 3%.

[03:12:12] There are eight organizations that have met the recommended score of 75 points or higher that had not been funded, and they provide vital services to Loudoun County residents, which these residents have come to rely on. In many instances, these are crisis intervention services, whether it be a senior facing eviction as they had to make a choice to put food on the table, pay a medical bill, or keep utilities flowing, or a single mother seeking support to

[03:12:46] feed her children, assistance for court mediation to avoid family crisis, a disabled adult needing support to live in the community or child facing mental health issues. All these services enhance the current delivery systems and fill the gap when other services are not available. Now that you're aware of the vulnerable populations that will be affected by this action, I'm here tonight to request the board to consider filling the approximately \$560,000 funding gap in the FY28 Human Services Nonprofit Grant. I thank you for being a partner with the nonprofits in the

[03:13:23] community, and hopefully you'll give the consideration to that. Thank you, sir. Thank you. Min Pack, followed by Marates, I think. Marates? Marates Pack. I hope I got that right.

[03:13:41] Good evening. Marates, but that's close. That wasn't even close, but thank you for being so gracious. I'm Min. Yes, yes. Good evening, supervisors. My name is Min Pack. When is enough enough. Last week, Consumer Reports, a 90-year-old consumer protection publication, not an advocacy group, published a national investigation into AI data centers and what they are doing to electricity bills, water, and communities. Loudoun is prominently featured

[03:14:21] throughout it. I want to share a few things, a few findings. 78 percent of Americans are concerned new data centers will raise their energy bills. In Virginia, nearly three-quarters of voters already connect rising electricity costs to data centers. Data centers accounted for almost 40% of Virginia's electricity consumption in 2024. This is not a speculation. These are findings from independent researchers and national pollsters. Loudoun has become a case study,

[03:14:58] the case study that you have helped create, and the case study is not a good one. International journalists reach out to our residents here on a regular basis. I personally have participated in these interviews.

[03:15:15] Their questions are not about how to get more data centers. Their questions are about what not to do. It's telling that they are coming to us for answers. Tonight, you are voting on Aspen and Barrister. they seem they might seem like two more smaller pieces they are not they are a systematic symptomatic of a larger problem a problem the rest of the world is now studying by watching what is happening

[03:15:45] here we are not saying no to infrastructure that is not we are saying no to the way that it has been executed let's take a pause and finally get this right thank you thank you sir thank you and and I am sorry for destroying your name.

[03:16:06] Can you say it again for me? - Mayor Ates. - Mayor Ates, thank you very much. - That's easier, thank you. Good evening, board. There is a strategy, there is a plan. Someone knows what it is, and unfortunately, it is not you. This is what is wrong here.

[03:16:22] The people elected by this community to govern this county do not have the plan. Dominion has it, the data center has to have it, and they are not sharing it, not with you, not with us. Why? Because a plan that is visible is a plan that can be debated.

[03:16:41] A plan that is debated is a plan that can be slowed down. The last thing they want is for this community to see the whole picture at once. Build up a head of steam and push back as one. That is not an accident. That is a strategy.

[03:16:58] And as a community, it is wrong. But here is what they did not count on. We are building up a head of steam anyway. You're hearing it. You are feeling it. It is in this room. It is in the community meetings. It's in our community neighborhood group chats. It is everywhere now. Now is the time to act on it.

[03:17:20] Do not advance Aspen. Do not advance Barrister. Not tonight. Not while the people who actually have the plan refuse to tell us what it is. You are elected to govern, not to react. You are elected to lead, not to ratify. Tonight, you have a choice about which one you want to be. So I will leave you with one question. Are you going to follow the will of the people who live here, your constituents, or are you going to follow Dominion's plan? Your answer

[03:17:55] is telling. It tells this community where Loudoun is going under your leadership. Thank you. Thank you, ma'am. Everyone, we do board comments. I'm sorry. We do public comments for one hour and 90 minutes. We're getting pretty close. I will try to get through as many people that we have left as possible, but we probably won't get through everybody.

[03:18:18] We have about -- we may have three or four more than the time will allow, but I'll do my best. The next speaker is Phil Daly. You will be followed by John Harmon. Is Mr. Daly here, Mr. Daly, going

once, once, twice, Mr. Harmon, and Mr. Harmon will be followed by Ben Young.

[03:18:47] Members of the board, thank you for your time to speak tonight. I'm here representing not only my company, Shirley Contracting, but also the highway construction industry as a whole, regarding coming out in opposition of item 1A on the agenda, the mandated PLA on the Route 15 widening project.

[03:19:06] We're one of the largest highway contractors in the state. We employ over 700 people, many of which live here in Loudoun. We're in our 52nd year, and we've always operated open shop, as Virginia has always been a right-to-work state since 1947. We have many projects here in Loudoun.

[03:19:23] We're proud of the work we do to finish projects on time, honoring our commitments. We do what we say, and we value our relationship with the county and our workers, and more importantly, we take care of them, or otherwise we wouldn't be in business. However, we will not bid on the Route 15 project if there's a mandatory PLA.

[03:19:43] I'm also here as a 28-year resident of the county, and obviously a taxpayer concerned about how our tax dollars are spent. I don't understand why a PLA is even under consideration, a mandatory PLA that is. There is no benefit to the county, the workers, the taxpayers, and our industry certainly is not asking for it.

[03:20:02] The talking points you always hear to the benefit of the county are a PLA will negate a labor strife or a strike. In my 37 years, there has never been a single strike. There is no labor strife to speak of. Wage theft, we do certified payrolls weekly.

[03:20:18] They're audited weekly under penalty of law. There is no wage theft in the highway industry. Guaranteed schedule, the unions aren't responsible for the schedule. We, the contractor, are responsible. Putting our workers to work. We heard the earlier speaker say that a PLA will get workers to work.

[03:20:35] We already are putting the workers to work. We don't need a PLA to do that. Because 95% of the workers in Virginia are non-union, those workers are going to come from out of state, which means those dollars are going to go out of state. Apprenticeship programs, we are all about educating people.

[03:20:53] Am I up? You are, sir. And I'm sorry, are you Mr. DeLay or Mr. Harmon. You're Mr. Harmon. Okay, thank you. Thank you very much. My colleague said I said an hour and 90 minutes. I meant 90 minutes. So let's fix that. Good evening, sir. And you are? Ben Young. Ben Young. Thank you. We're ready when you are.

[03:21:18] Good evening. Happy birthday, Madam Chair. Thank you. And thank you for the opportunity to testify. My name is Ben Young, and I'm here representing the Virginia Coalition for Fair Contracting and Employee Protection. Virginians for Fairness is a coalition of the Commonwealth's major commercial construction industry associations representing thousands of contractors and workers in the state of Virginia.

[03:21:37] Yesterday, we provided the board a letter outlining a few of the coalition's primary objections to item 1A on tonight's agenda. This item would mandate two project labor agreements or PLAs on county funded projects. Given the time constraints, I want to focus on one item tonight. In the PLA wards, there's often a lot of science that has been funded by either the construction industry or the labor unions, I'm sure you've seen some of it. The RAND study that I passed out earlier, I think you have copies and we've

certainly cited it in our letter, is the largest ever independent peer-reviewed study specifically on the question of whether PLAs increase the cost of construction. RAND studied

[03:22:15] proposition HHH, a \$1 billion voter-approved initiative to build 10,000 units of affordable housing in Los Angeles. After the voters approved the proposition, however, the LA City Council placed a PLA on some but not all units providing a great natural experiment for this very question which gets debated in a lot of chambers like this. Rand which has no dog in the PLA fight and is an independent non-partisan respected research group found that the existence of a PLA increased the cost of an affordable unit by a whopping 21 percent meaning that when PLAs are mandated the public loses 20 cents on the dollar. Stated differently in affordable housing with a PLA

[03:22:53] the public receives only 80 units for every 100 units it pays for with the PLA. It's no surprise that the propositions in HHH produce less than 8,000 of the planned 10,000 affordable units. This phenomenon, however, is not unique to affordable housing construction, it applies equally across transportation construction, commercial construction, and civil construction. And to be clear, and I'll close, this is not, this is, and this is important, the cost increase is not because of lower wages. That is a farce. All, both projects will be covered by Loudoun's prevailing wage ordinance, wages and the benefits will be the same. Thank you, thank you.

[03:23:30] Carl Eager, and I think we can go on, I'm just going to go on and finish, finish everyone because it's literally probably will just be one more person. So Carl Eager, followed by James Russell and Sarah Jose Bazar, and those are our last two speakers. Good evening, sir. Good evening. Thank you all for your service to our community. I'm Carl Eager, I've been on the board of directors for Kincaid Forest Homeowner Association for 21 years.

[03:23:58] I can't find another job. It's just one of those additional duties. But we actually really care about our community and been very active in trying to plan things out. And we had Mayor Burke over our meeting for the last annual meeting we had last month. We asked specifically about the cross-trail community development, what's happening in that area across the way.

[03:24:18] It was not even evident. So to find out this weekend that this Aspen substation is being planned, apparently by data, not for current needs, but for future needs of additional data centers, not residential needs, from the evidence that was presented.

[03:24:35] And we find out that there wasn't really much notice about this at all, not like we had for the power line installation. It was 18 years ago. We had hired lawyers and everything to make sure we got the routing the right way for that one. The information associated with the Aspen Substation and the new data centers has a very great lack of transparency.

[03:24:56] There is not much information. There's no reach out and community effort. When asking questions, we get no replies from Dominion. So it's really concerned that they're proposing a plan here with holding all the cards, like playing poker, and not playing open face down what's going on.

[03:25:12] So the lack of transparency creates great concern on why you should approve this effort when they're not telling the full story. I negotiate many contracts, open kimono with contractors left and right in my job.

[03:25:29] This is not the way to do it. So I strongly encourage you to delay the approval of this until actually public hearings are held and understand what's going on and they're more transparent about what

they're doing. Please don't let them ramrod this process through for something that's not needed today, but for future needs of a plan to put a whole bunch more data sends in the community.

[03:25:50] Please, I implore you, don't approve this. Thank you. Just for the record, when the gentleman was talking, what he said was shady. That was the word he used, because he didn't use the other word. He said it's been shady.

[03:26:10] What did you think I had said? Well, I'm going to get... I'm going to get... So my previous boss... I'm going to get emails. I'm going to get emails. I don't want emails, because people would be like, if he got to say it, why can't I say it? I'm not doing that. So he said shady.

[03:26:27] My boss has had a bet on me to get me to cuss for the last 25 years, and he's failed, so I didn't do that. I'm not taking that bet. Yeah, I'm going to get emails, and I'm going to get what he said. Shady was what he said, so thank you, sir. I want transparency. All right. James Russell, you are the second to the last speaker and followed by Sarah Hussain-Bazaar.

[03:26:47] We will get you both in here. Good evening. Yesterday, there was a hate crime at the largest mosque in San Diego. Facts are still coming to light, but these teenage suspects were believed to be radicalized through intricate white supremacist online indoctrination networks.

[03:27:03] Yesterday, it was San Diego, but next time it could be literally anywhere in the United States. That's not fear-mongering. It's a fact. As diverse as Loudoun and Northern Virginia are, it's hardly immune from such hate. I wave the Palestine flag everywhere I go, and while most neighbors are now happy to see these symbols in their community, there is an ever-intensifying toxicity from bigots and reactionaries.

[03:27:27] These anecdotal, relatively minor personal experiences are dwarfed by the incentives in prominent local industries. Two and a half years of genocide in Gaza has surely brought further enrichment to Virginia through the profits of weapons manufacturers and through the profits of companies using space in our data centers that provide a cutting edge to the targeting of airstrikes in Gaza and now Lebanon and Iran, killing journalists, medics, doctors, children.

[03:27:56] Many Loudoun families are directly affected by these war crimes, and for the life of me, I cannot stop thinking about how they're feeling, especially after the events in San Diego. I recall three years ago, Supervisor Briskman simply wanted to get a cup of coffee from our local cafe, and every time I saw her there, I would bug her about the upcoming erosion of our commercial logistics.

[03:28:16] I told her if the Democrats do not take leadership to mitigate the impact of climate change on our logistics and infrastructure, then the far right will meet the moment with fascism. Since then, genocide in Gaza has rocked our world and our local communities. Secret police tactics terrorize our immigrant neighbors due to terror—I'm running out time here. Unlimited data center expansion continues Loudoun's descent into a techno-dystopian hellscape. Government and corporate interests will stop at nothing to take every inch of this place from us. Our protests will not be enough. They are a military asset. We must

[03:28:52] protest it with everything we have. Free Palestine, free Lebanon. Happy birthday. For some reason, I don't think that one was the junior one. Sarah Hussein Bazar, you are our last speaker. Good evening, board members.

[03:29:07] Good evening to the Zionists. Representative Suhas has introduced a data center security bill. The bill sets a six-month deadline for the Secretary of Homeland Security and the Secretary of Defense to designate data centers as critical infrastructure and requires them to consider the security of their power and water supply infrastructure.

[03:29:28] Sharing this so my community here can reach out to his office. It's all about transparency. For months, the world has watched Gaza burn, entire families erased, children buried beneath rubble, hospitals bombed, aid blocked, journalists killed, human beings starve under siege while the world debates semantics instead of saving lives.

[03:29:47] In southern Lebanon, entire communities have been internally displaced, villages emptied, home destroyed. In the West Bank, settler violence continues to terrorize Palestinian villages, olive groves burn, families attack, children traumatize, while accountability remains absent. Churches and holy places have not been spared. Christian places of worship have been desegregated.

[03:30:14] Even the image and symbols of Jesus Christ, our prophet, have been attacked with hatred and contempt. Mosques, churches, and sacred spaces should unite humanity, not become targets of violence and political extremism. And now we see humanitarian workers and activists intercepted in international waters while trying to bring food and medicine to starving civilians in Gaza.

[03:30:37] Aid is treated like a threat. Compassion is criminalized. Meanwhile, extremist policies continue to exalate. Israel's recent death penalty law targeting Palestinians apartheid. And here in the United States, hate has consequences too.

[03:30:54] Just yesterday, three Muslims were murdered in cold blood at the Islamic Center of San Diego in what authorities are investigating as hate crime. This is terrorism. We have been raising our voices for years, pleading for humanity, equality, and justice, and too many leaders still refuse to listen.

[03:31:12] Thank you. Thank you, Ms. Bazar. All right, that is our speakers for this evening. Thank you all for coming out. Thank you all for speaking. Advisors, I'd like to try to keep us on the dais a little bit longer and go through some of the Walrus motions because we can take our break, but end break will be, one, will be our dinner break, and two, will be a closed session item, which, you all know, I'm going to try to rush you out and rush you through so we can get back out here.

[03:31:41] I know it's going to take a while, and we will see if we can get through all the walrus motions. But I'd rather try to do them right now and then take our dinner break, do the second closed session, and come back and do the rest of the items. That's what I'd like to try to do.

[03:31:58] If you have to get up and leave because you can stretch your legs or whatever, that's fine. I know we've been on the dais for a very long time. I understand. I'd like to try to do that. So toward that effort, and by the way, I had said in advance that I was going to do the walrus motions early in the meeting.

[03:32:14] I had already said that. And so I'd also like to explain how this works. When motions are passed, a person who is on the failing side of a motion cannot bring the motion back.

[03:32:31] for instance, the Mountainside Oval District issue, it was a 6-3 vote with Ms. Controni, Mr. Turner, and myself voting for the motion.

[03:32:47] For the motion or against the motion? For the motion. And so the three of us were on the losing side of the vote. We can't bring that back. It has to be somebody who was on the affirmative side of the vote to bring it back. That's just, that is Robert's rules of orders, that's our rules of orders.

[03:33:04] And so that's why you're going to see different things happening up here that you might not have kind of expected. I also want to remind everybody that this is not the end of the Walrus process. This is Arroyo, and so it still has to go to zoning, and then planning commission, and then back here.

[03:33:23] We are not at the end of the process. We are just past halftime. All right, so having said that, there are motions on the dais.

[03:33:42] Now, Supervisor Tocroni and Supervisor Amstatt, your motion on Motion 20, if I'm reading it right, is a pretty similar motion. Are you all reading that? Is that way? No?

[03:33:59] You can say no. That's fine. I'm just -- I don't want to go to one motion and not the other. and then it kind of negates the other motion altogether. That doesn't seem fair. So, Supervisor Umstead is doing the reconsideration motion, and then I'm going to do the motion to deny motion 20.

[03:34:19] So, after she does the reconsideration. Ah, so, okay, so they're opposite motions. No, no, no, they're not. No, they're not. She wasn't at the meeting. She has to reconsider. If the reconsideration does not. She wants to reconsider. Oh, okay. I will do the motion to deny. Okay, gotcha, gotcha, gotcha, gotcha.

[03:34:34] Okay, so your motion is just to reconsider, Simpaz Umstead. Yes, I am. Okay, we can take that motion. All right. Thank you, Madam Chair. I move that the Board of Supervisors reconsider its action at the May 4th, 2026 Special Business Meeting to direct staff to amend the Loudoun County Zoning Ordinance in accordance with the Transportation and Land Use Committee recommendations numbered as 20.

[03:35:02] To establish for farm winery, limited brewery, and limited distillery uses the ability to hold private parties and events related to product sales that is usual and customary for those businesses in the Commonwealth of Virginia as accessory uses with no limitation on the number of such provided that they are consistent with the alcohol laws in the Virginia Code and to enable enforcement of existing noise parking and lighting ordinances for such product sales events.

[03:35:32] I further move to reconsider Chair Randall's friendly amendment to direct the Zoning Ordinance Committee and the Planning Commission to look at water usage issues. Second. Motion's made and seconded. Is there staff coming to the table for this? Yeah.

[03:35:51] Staff's like, please, God, no. Thank you. The motion was made and seconded. Made by Supervisor Umstead, seconded by Supervisor for the crony discussion. on the motion to reconsider is what this discussion is. Ms. Umstead, do you have any discussion?

[03:36:08] Thank you very much. The reasons I brought this forward are basically twofold. One, I know that staff had a number of concerns, serious concerns, and I was briefed on those.

[03:36:26] The second is, I think that, and I put this in an email to both Kate and Haley Zershmead, I'm very concerned that a lack of limit on the number of attendees to any event is going to create an extremely difficult situation for the fire marshal and for any of our folks who are trying to make sure that structures and venues are safe for the crowds they may have in them.

[03:37:05] So those were my major concerns. The fact that staff and the fire marshal would have major difficulties in enforcing fire code and other building safety measures is the primary reason.

[03:37:23] there are also public safety issues on the having an unlimited number of events part of it being quality of roads deterioration of roads but i think the primary one is what happens in a building that cannot be regulated because of what was passed by the board on may 4th thank you before i go to mr crane is a fire marshal here somebody from the fire marshal office here Okay, Mr. Crony.

[03:37:57] Thank you, Chair Randall, and I want to thank Supervisor Amstead for reconsidering this motion. She, like me, is concerned about public safety and also a balance.

[03:38:13] I've been trying to find this balance between rural businesses and residents and to really meet the goal of the comprehensive plan, which was the compatibility of rural economy uses.

[03:38:30] Just hold her time. Supervisors, this is a motion on the reconsideration. We're not arguing the item. It's a motion on the reconsideration. Well, I support the reconsideration. I want to thank Supervisor Umstead for bringing it up.

[03:38:46] Thank you. Thank you. I'm sorry to stop you. Ms. Umstead wasn't here, so she was actually saying why she was reconsidering it in her absence. But we're not arguing the item, though. So Mr. Attorney? We are arguing whether to reconsider the item, though, which has a factual basis. We are, but we're not arguing -- yes, but Mr. Crony was arguing the -- she was arguing the item.

[03:39:06] Yeah, but -- You're in your time. That's fine. I think that the debate about whether this motion in the original form was right or not is relevant to whether we should reconsider it. So I think the discussion around it is relevant. And I was just going to ask staff, because there was, the chair even asked a question to one of the speakers, the discussion around the public safety component with the fire marshal and the building official and how it pertains to this notion of a regulation on the number of events.

[03:39:35] If staff is not allowed to discuss as part of the ROYA process any limitation on events, explain the implication on the public safety side at that point. Can you do that? Is it because without any regulatory mechanism whatsoever, then you can't have the basic fire marshal and building official inspection process that would come with that?

[03:40:05] Well, again, these are tied. We had an additional recommendation, number 32, that kind of goes together with this. But essentially, if the use-specific standards allow for unlimited number of events, yes, you're essentially able to -- would it be able to conduct those events without any administrative procedure here at the county?

[03:40:31] So therefore, you don't know what's happening? You don't know what's out there and what's happening unless there's a separate process around that, which right now has not been proposed? Correct. There is a qualifier with that, you know, based on how those use specific standards for the land use of the particular use play out.

[03:40:48] But generally speaking, yes, you're correct. Okay, so I will support the motion to reconsider. I was originally opposed to this underlying motion 20 for this reason, but I think there was some confusion around this point around what the nexus was between these things.

[03:41:05] for me. I don't have necessarily a desire to particularly limit the number of events per se to something unreasonable. It's more that I think there has to be a process to at least understand facilities and how they're being used and that what we heard very clearly from staff from the fire marshal and the building official is that they currently have no mechanism to do that.

[03:41:26] And so this was this discussion, this ROYA, it includes in part staff's attempt to do that. and i believe the underlying motion just short circuits that before there can even be a discussion or a debate about it and so i will stay for the record right now i'm in absolutely not interested in putting anybody out of business or having someone reasonable you can only have 10 events no i'm trying to i'm trying to have a baseline discussion which we cannot have if motion 20 is allowed to stand mr kershner thank you madam chair so as to the motion reconsider this is It will be now the, I guess, third time that this motion has come forward in Teluk, full

[03:42:05] board, and now it's a night, and it has passed every single time with support. I will just note, and I know we're not getting into the merits of this, but basically this proposal is the number of events, and there's been a lot of legal debate.

[03:42:20] I've debated with the county attorney on this. I would encourage my colleagues to -- there was a letter that was emailed to you earlier from the wine industry and the state general counsel for them, talking about an opposition to this motion and how it would wreak havoc potentially, not only on our businesses here in Loudoun, but also runs afoul, as I have been saying to our county attorney for a while.

[03:42:50] I understand they disagree with me, but would potentially run afoul just because this is the ordinary -- they sell their products at these events, and so we are really prohibited under Dillon Rule State from regulating a number of events. And again, you have heard, and I would note for this board as well, that the majority of these establishments are in my district.

[03:43:13] Yep. Mr. Kirshner, I'm going to say the same thing you said to Mr. Kirstner. Okay. Am I getting too far afield? Yeah, I think so. That's fine. I will. So I would ask, just based upon that, to respect what was previously put forward, hold your vote, and let's not reconsider this at this time. Thank you.

[03:43:28] I'm going to remind everyone that this conversation and all the people that spoke was exactly why I didn't take this up at the public hearing, because all these people would not have had a voice had we done that at the public hearing. I just want to say that. To the motion to reconsider, I don't know that I understand Ms. Umstead's logic, Ms. Umstead's logic, and I want to, but I don't believe I do, and I need some help with this.

[03:44:03] Are we saying that because there are more events that we could never have the fire marshal out to look at the facility? Because I don't understand that discussion, and the reason I don't understand that particular discussion is because if they're not events but the place is just open every night having their regular their regular practice you know people there the fire marshal if they want to come out can come out it's the fire marshal at any point that the fire marshal says i want to come out now

[03:44:38] and look at this facility if the facility doesn't allow a fire marshal to come out and do that and make sure that the facilities are safe, the facility was shut down anyway. So the number of events, I don't know how that disallows a fire marshal from coming out.

[03:44:58] So help me understand what I'm not getting. I won't speak to the number of events, but I will speak to clarifying that when the structures are deemed to be ag-exempt from the building code. Whoa, whoa, whoa, whoa. But Ms. Umstead's argument was the number of events.

[03:45:18] Right. That was her, that's what we're, that's the reconsideration is based on that. Right. I just want to clarify your point. I'll come back to you. You have a closing. You have a closing. Yeah. I just want to

clarify your point that if the building is ag exempt and does not follow the building code, the fire marshal does not inspect.

[03:45:36] Okay. But that has nothing to do with the number of events, right? That's the exemption for the structure. That's the exemption for the structure. Okay. All right. Well, I mean, you know, I was trying to respond to, again, she made the motion because she wasn't here, and I was trying to respond to what I thought I heard as her reason for the motion, and it just wasn't tracking for me.

[03:46:04] What you said makes sense, but that's not what the reason for the reconsideration motion is. So, all right. Ms. Umstead, would you like to close? Thank you, Madam Chair. Actually, that was exactly the reason for my motion was the difficulty the fire marshal would have going into a structure and trying to figure out whether it was safe or not.

[03:46:27] If the board's position was you are allowed to have an unlimited number of attendees. I think I made that pretty clear as to why I think reconsideration is necessary. A secondary reason is, as the chair alluded to, the fact that an unlimited number of events can create other difficulties, among them deteriorating roads that can create public safety issues.

[03:46:57] But my primary concern is an unlimited number of attendees in a structure that the county building staff and the fire marshal are unable to verify is safe for that number of attendees.

[03:47:13] Thank you. Number of attendees. Okay. Thank you. All right. Ms. Umstead made the motion to reconsider. Mr. Crony seconded the motion to reconsider. All the people who say aye. Aye. Opposed? Nay. So that motion will pass 6-3 with Mr. Sainz, Chair Randall, and I think Mr. Kirshner voted against the motion to reconsider.

[03:47:34] So now I will go to Mr. Crony. Yeah, I put it on here. I know, but you make the motion the first time. No, I didn't. Mr. Rogers, help me out.

[03:47:53] Hi. Hi, Mr. Rogers. No, I'm asking the first time this motion came up. What's the motion? Because never mind, never mind. Okay, okay. Mr. Crony, go for it. Okay. Thank you, Chair Randall. I move that the Board of Supervisors deny Motion 20 as approved at the May 4th, 2026 Special Business Meeting.

[03:48:16] Second. Motion was made and seconded by Mr. Baxter Turner. Mr. Crony, would you like to have discussion on the motion? Yeah, thank you, Chair Randall. So permitting unlimited events with unlimited guests could allow at least 156 weddings per year, if you count Friday, Saturday, and Sunday. And some of these venues have 10 acres. That's the minimum amount for some of these venues.

[03:48:43] it is unreasonable i'm not trying to shut businesses down our current regulation does not allow unlimited events the county staff has defined special events as as not being usual and customary special events are weddings with like 300 people um that that's just a number it could be 300, it could be more. They make a distinction between what is considered a special event versus what is usual and customary. So usual and customary could be a happy hour event, could be a live music

[03:49:22] venue, but a special event like a wedding requires a temporary special event permit or a banquet and facility use this has been in place since our 1993 ordinance 33 years we have had this regulation in place the banquet and event use would require a review by staff looking at building fire fire safety codes looking at building codes so that would get the review that is needed to make sure

[03:49:58] it's safe for a large amount of people, to make sure that people aren't coming into a venue that doesn't have fire codes or building codes. We have a responsibility up here on the board to protect the public. That is one of our main responsibilities with land use. And state code does not bar us from doing land use. We have that right. And I see this as not something that our hands are tied that we're not allowed to do it because state code does not permit us that is inaccurate state

[03:50:33] code allows usual and customary activities weddings have never been considered usual and customary in fact other localities do not permit unlimited weddings and on with unlimited people so this is not and and supervisor kirschner you've been trying to keep us from doing common sense regulation Well, he's shaking his head.

[03:51:00] He has said that we're not allowed to do it. Chair Randall, he has said we are not allowed. No, Mr. Coney, we're not attacking each other up here. Okay, and that is inaccurate. I'm telling you that is inaccurate. Our county attorney has said that it's inaccurate. Staff does not support Motion 20.

[03:51:17] They do not support it. They would like to be able to do common sense regulation that protects the public safety. Thank you. We can have a robust debate, and we should have robust debate, and we will have robust debate. What we are not going to do is go after one another, period, the end, hard stop.

[03:51:38] Yes, we're in closed session. Period, the end, hard stop. Mr. Letourneau. Thank you, Madam Chair. Okay, so I want to start with a point the Chair has been emphasizing, which is that we're in a resolution of an intent to amend process.

[03:51:57] So, a lot of these speakers that came expressing concerns about outcomes, I understand what you're saying, but those are outcomes supposing a process that hasn't happened yet, and a discussion that hasn't happened yet.

[03:52:13] The board got lots of input. TLUC spent a lot of time on a lot of these issues, lots of time. I'm not a member of TLUC. God bless those that were and did all that. And so the process that was proposed by staff was to really trying to get at some of those issues and then have our normal, very collaborative process and trying to resolve them.

[03:52:35] OK, so I just don't want anybody leaving here thinking my business is now under threat because if the board doesn't pass this motion, which preemptively strikes essentially a topic of discussion from a process, that's all it does. So ultimately, to go back to the nexus that was being made and I was trying to make earlier, if there isn't some type of process on the number of events, the number of attendees, then there is no way for staff to know what is happening.

[03:53:05] And the fire marshal, it's true, could show up unannounced, but they're not going to know a facility even exists if there isn't a process to understand what an approval would be. So I'm not interested, as I said repeatedly, in a restrictive process that severely limits the number of events that any venue can have.

[03:53:24] But what I do want is there to be a process simply so that staff now knows this facility is here. It's going to have X number of events. It's going to have X number of attendees and then can look at what the public safety ramifications of that are. And we do this all over the county.

[03:53:40] What this motion is saying is these are the only facilities in the county that have a large number of attendees gathering in which we wouldn't do it. And that does not make any sense. I'm not

going to sit on the dais and be here if there's ever, God forbid, a tragedy at one of these wonderful facilities and then people are going to start asking questions.

[03:53:57] What do you mean there was no fire marshal review? What do you mean the building official had no idea what these plans are? It makes no sense. It just it just doesn't make sense. So let's have a process in a discussion. Let's not stop the discussion before it can even happen. And then if at the end of that, I'll be listening very carefully.

[03:54:15] If the industry thinks that what's being proposed or discussed is too onerous, then by all means, I want to hear that. But I don't want to say I don't want to have a discussion about it. And if there's other ideas on how to deal with that, that's fine, but they're not on the table in this process.

[03:54:31] So this is the best one. There are also issues with the actual number of events in some cases and in some venues. I mean, we've heard that repeatedly from residents who are living near these facilities. So let's have the process. Thank you, sir. Ms. Bricksman.

[03:54:46] Thank you, Madam Chair. To staff, if I may. So there is no other tool to have any sort of regulation on these ag buildings that are exempt because they're ag.

[03:55:04] There's no other tool that could be provided to us in the entire Walrus process, aside from limiting events, that would allow us to have the fire codes enforced and the health and safety codes enforced.

[03:55:22] No other tool besides limiting events. There are tools. There's a site plan process, and there's the use-specific standards that are approved in a different motion. Okay, that's what I thought. So we do have other tools besides limiting events that will allow us to have the safety measures that we all want.

[03:55:44] Because I agree with Supervisor Letourneau. There's nobody up here that wants to see a disaster at one of our wonderful facilities in D.C.'s wine country. That we can all agree on, I hope. And would the proactive enforcement that we've been talking about also help?

[03:56:03] Yep. It would if the board decides to go in that direction. But I want to highlight that this motion doesn't allow staff to address fire and building safety. The motion only allows staff to look at lighting, noise. And what's the other one? Parking. Number 20 only allows you to look at lighting, noise, and parking, or proactive zoning enforcement does? Number 20, lighting,

[03:56:34] noise and parking okay but you just told me there's other tools through which we can manage health and safety and the fire codes and making sure that we don't have too many people in a building that there's proper sprinkler systems that there's proper exits there's proper fire doors where they need to be they've set up their kitchen correctly so that they're not going to have a fire like there's there's other tools right there are tools if the tools are taken advantage of. When we move on in the process. Right. If there's other opportunities to have

[03:57:09] tools. Right. If someone comes in and actually applies for the site plan, that triggers an opportunity for staff to conduct the safety reviews. That issue is not coming in for those site plans and permits. Okay. Okay. But then that's when the proactive zoning enforcement could come into play. Yes, that's correct. Okay. And we have a complaint-based system as well, if there's safety issues. Okay. Okay. I am loathe to tell a business how many events they can have.

[03:57:47] I'm just, I don't, I think we're going to have the discussion. Thank you, Ms. Briggsman. Oh, I'm out of time. Thank you, Madam Chair. Mr. Kirshner. So thank you, Madam Chair. I've got a lot to say, but I can't get it all in the short time we have. But I want to start by saying we already have unlimited events at these venues. They already do. And this has been a struggle with what the industry believes, what the state has written about, what general counsel for the wine industry and what our staff believes. And so this was partly a compromise in the TELUC process to basically say, hey, we're going to, you know, regulate these things and whatnot. One thing that really hasn't been pointed out is that any time you come in, state law does require that these

[03:58:26] localities have portable fire extinguishers, they have a written plan for emergency, and they have signs posted in conspicuous places to enter the farm structure that states the building is exempt from the Uniform State Code, et cetera, et cetera. That is something that has not been pointed out. So there are regulations on there. And when we move into the complaint-based system, which we have started to move forward on and say, hey, we're going to dedicate staff to that, then those individuals can really look at that. In addition to all of that, I have pointed out, and it's amazing how you can read a code, and it can be crystal clear,

[03:59:03] and there's disagreement that it's very limited on how we can regulate ABC's uses in venues. If you read the code, there's no locality should regulate any of the following activities, including on-premises sale, tasting, and consumption of wine during regular business hours. If you're regulating that number of events, you are regulating the consumption of wine and regular business because that is what these places do.

[03:59:25] They have an event, and that's how they sell their event, but you're regulating it. Maybe not directly saying, I'm regulating what you can sell, but you're regulating how they sell it and where they sell it. And that, I think, is completely contrary to what the code says. You're also essentially in this motion saying this isn't, and listen, I understand this is Arroyo, to Supervisor Letourneau's point.

[03:59:46] This is Arroyo, and hopefully, I'm hoping this does not pass. I'm hoping it is opposed by those who opposed it before and they stand firm because, quite frankly, it is a lot of fear in the industry. And I understand why, because I work day in and day out with my Western Loudoun businesses who are trying to get up and started, and it takes them forever because of all the red tape they have to run through, all the red tape.

[04:00:11] And no offense to staff, they're trying to apply the law the way they are, but I just know how this process works. And we already have an established state law that says you can't do these things, and the establishments can sell their wares at their place of business with these regulations. So I think we're really overstepping our bounds, and I would encourage, I've got my fellow supervisors to vote no on this motion, because basically we're saying, okay, now we're going to regulate our very successful wine, beer, and spirits industry that we've had in western Loudoun County.

[04:00:42] And they've been doing well. And what's the whole point of this? The whole point is what? We want to preserve the land that they're using so that houses aren't built. We have hundreds, over 1,000 acres plus in vineyards, and if we begin to say, okay, we're going to limit the events, We don't know the business answer. And I will point out one last sentence, Madam Chair.

[04:01:00] No, your time's up. Thank you. Sorry. No, it's fine. Mr. Sainz. Thank you, Madam Chair. All right, you just confused me when you gave the answer to Supervisor Briskman saying, you know, this is

not intended to look at regulations for unlimited businesses and events and then also having the fire marshal go out and look at the facilities.

[04:01:27] So clarify all that for me, please. It is quite confusing because this motion says you can have unlimited events and staff can, well, not even that staff can, but they can have unlimited events as long as they meet the lighting, parking, and noise requirements.

[04:01:47] We have another motion, I believe it's number 32, that allows us to develop youth-specific standards, and that motion is where staff would like the opportunity to come up with a reasonable amount of number of events and parking and things of that nature.

[04:02:08] The two are a bit at odds, but we would work within the limits that you give us. Does that help at all? A little bit, but not to put you in the hot seat. So if staff had to choose between 20 and what was the number, the other number you said, 32, which would you prefer? 32.

[04:02:30] 32 would at least allow us to help mitigate some of the impacts. One thing that we haven't touched on is agriculture is supposed to be the primary use. If there's an unlimited number of events, agriculture is no longer the primary use. It becomes a banquet event facility.

[04:02:50] So at what point is the threshold where it's another principal use on the property? So you're speaking to this situation where, say, if I have a barn where I'm supposed to be having hay and maybe putting my animals in there or equipment, but instead of that, I'm turning that now into a wedding reception place or wine tasting or setting up tables and chairs and having activities there.

[04:03:17] That's correct. At some point, it's no longer primarily agriculture. It's a banquet event facility. Okay, now which motion, 20 or 32, would get to look into that underneath the hood and fix that situation? If 20 is denied, we can do use specific standards in motion 32 that would allow a certain number of events. We would like that opportunity to work with the community to see what is reasonable so that we could develop some parameters to ensure all the land use implications are mitigated. Before my time runs out, which motion 32 or 20 would get to having

[04:03:56] the fire marshal go out and do those investigations? We could do that in 32. If we're just operating from motion, the recommendation 32, essentially we have to consider every single ABC use is conducting weddings at a large scale so we would have to take that into consideration when developing those use specific standards for a recommendation for the board okay thank you thank you ms sayings ms glass thank you madam chair i almost had it um when you were talking about um

[04:04:31] motion 20 and motion 32 so if we don't allow if we don't pass motion 20 then that would that allow us to work with the issues that I hear some of my colleagues talk about when we talk about the safety standards? We think so. Yes. Yes. Denying 20 and letting 32 stand would give us

[04:05:08] the greatest flexibility to create a framework and a process to review all of these land use and safety issues. Okay thank you. If I could just say the removing 20 the the big issue well approving 20 if if we wanted to take a more nuanced approach to how events are regulated maybe you have enough property you're located on a paved road all those things and you could have unlimited numbers of a number of events but maybe you're on you know 10 acres and you're on two

[04:05:45] very narrow dirt roads where it might not be as appropriate we lose the ability to create restrictions around around that particular situation thank you i know we've heard a lot about you know

we're going to put a cap on everybody on the number of of events or weddings they can have but um that might not be true it's it's a matter of you know the location and the land use that's going on at that particular spot so so that's that's the one thing we're losing by going forward with 20. But we think we can work around things with just 32. Ms. Glass, you're good?

[04:06:25] Yes, yes, okay. Mr. Turner? Thank you, Madam Chair. I agree with everything Supervisor LeTerno said. I want to go back up to the 50,000 foot level here and trying to still this down the key arguments. So right now it sounds to me like 32 and 20 are in direct conflict with each other. They're yin and yang. You can't have both. It's just crazy to have both. 20 negates 32 effectively. Well, we could still develop use-specific standards for those particular operations. It's just that we're developing it with the understanding that that use, what goes with that use is an unlimited number of weddings or banquet facilities.

[04:07:00] Okay. You just said something that to me is the key. I believe every other business in Loudoun County has imposed upon it some reasonable standards of performance and behavior commensurate and collaborative with the surrounding community.

[04:07:20] And what this 20 is doing is telling an industry for 30 years that they've only been constrained by ABC laws, noise, ordinance, noise, parking, and there was another one. Lighting. Lighting. And they're understandably upset that we're now saying, all we want to do is have a discussion to have reasonable performance standards for what you are using your business for and create some large guardrails.

[04:07:46] There is no assumption that suddenly we're going to drive all these businesses out of business. There's an assumption that if we eliminate 20 and keep 32, we will have a discussion about developing reasonable standards of performance and use for these businesses.

[04:08:01] I don't think that's unreasonable. And the fact that right now 20 basically renders 32 inoperable is just a conflict that doesn't make any sense. And to Supervisor Letourneau's key point is, this will all come back. This discussion will all come back.

[04:08:17] Let's not start the Roya process by having two fundamentally incompatible motions in place. Let's get rid of 20. Let's give you the flexibility under 32 to go forward and have this discussion and see where it ends up. And if the industry has problems, great, we'll have those discussions.

[04:08:34] My understanding from staff in this whole discussion has been, all we want to do is examine what is reasonable for this kind of a business. That's it. Let's have that talk. Did I say anything that's inaccurate? I always do, so feel free to correct me.

[04:08:50] No. Okay. That's all I have. Thank you, Madam Chair. Mr. Glass, do you have a point of something? Oh, I'm sorry, Madam Chair. I thought I had it all. Okay. So, a couple of things. One, we're acting as if if we don't have, if we don't, if we keep 20 in place, there's no other ways to check and to find out what is going on for safety measures.

[04:09:12] That is just not true. There are many other ways. And we have what we are now calling, not proactive, but we're called compliance officers, and we have complaint base. And it's Arroyo, and we've talked about having tiered discussions and all those types of things.

[04:09:29] The truth is, right now, right now, a business can have an event every single day. And truthfully, that event can go to at least 10 o'clock, even on Sundays, even though I think it should stop at 9

on Sundays.

[04:09:45] They can go with 11 on most days. They can do that every single day. What you're actually saying is, you can have an event every single day, and that's not an issue, unless at the event somebody has on a wedding dress. That's what you're actually saying. and that is completely illogical.

[04:10:04] The other thing is this. We're saying, well, why this with every other business, and I don't know any other business in the county, and Lord knows I'm the one always preaching about we're all one county, but I don't know any business, any other business in the county, any car shop, any restaurant, any retail shop, anything that has come in and said, we're worried about our business 'cause we had a freeze and all of our grapes are destroyed.

[04:10:31] that's the difference. It is a difference on the business itself. We are trying to let them sell their wear. Their wear happens to be wine or beer, wine, but we're trying to let them sell that. That's different than other parts of the county for that very reason. The other thing I think we're doing is making this assumption that our Western Loudoun County business owners want to

[04:11:05] put their own businesses at risk, not having the proper fire extinguishers, not having the fire marshal come out, not having these things done, they're willing to put their own business. Mr. Letourne is right.

[04:11:21] No one wants to see that in the paper. Neither do they. It's their businesses. And their businesses, to a large degree, are much more on the margins than we think they are. And so, having spent a lot of time meeting with, and I don't like the words the industry because it takes away the humanity, and I don't like the words the conservationist because it takes away the humanity, but having spent a lot of time talking to all sides of this discussion for two solid years, I think it's illogical to say, have all the events you want, just make sure no one has a wedding dress on.

[04:12:03] Would you like to have a closing, ma'am? Yeah, thank you, Chair Randall. So I have a question for Judy. Judy, are VABC uses allowed to have unlimited events?

[04:12:18] No, currently they are not allowed to have unlimited events, although many of them do. Okay. That is not permitted. They're technically allowed 10 special events per year. Okay, and, you know, I do want to make the point, You said 10, and then if they go beyond 10, they come in for a banquet event facility use that allows a review by the board and then also has public input, correct?

[04:12:49] That's correct. Okay, and then there could be use-specific standards and fire safety codes and building codes as well, right? Yes. So this motion, eliminating motion 20, which is what staff recommended, is allowing staff to do those use-specific standards.

[04:13:07] If you have a larger property, potentially you could have weddings, more weddings, without having to go through a banquet event facility use. If you have 10 acres, that's different. So 10 acres, you're looking at the scale and intensity of the use.

[04:13:25] We have to consider adjacent uses. We have to consider the balance. We have to consider our comprehensive plan. This allows staff to go through the process and to come up with standards that make sense, that are going to protect the public health, safety, and welfare, and that are going to really maintain the rural character of Western Loudoun County. I think we need to remove motion 20, which is what my

motion is, and give staff the ability to work off of motion 32, which is to develop use-specific standards that make sense. This is the beginning

[04:14:03] of the process. This is Arroyo, so we'll come back, and we can look at it, but I got to tell you, I'm not going to support a huge amount of events that are 300 people at a 10-acre property. I'm sorry. I think that's an intense use, and I think we have to be considerate of our neighbors and look at our neighbors. So the rules have not changed. The rules have not changed. These rules have been around, like I said, for 33 years. It's just a matter of enforcing the rules with proactive enforcement and then also making sure we have the use-specific standards and the

[04:14:42] regulations that make common sense. Thank you, Supervisor Umstead for reconsidering and I hope my colleagues will support removing Motion 20 to give staff that flexibility. Just a point of clarification, everyone. We have not passed any positions for proactive enforcement. So I just want to make sure we know that they were compliance. So, all right. Mr. Crony, you made the motion.

[04:15:11] And Mr. Turner, did you second the motion? Mr. Turner second the motion. All the people who say aye. Aye. Opposed? Nay. Nay. So that motion will pass, 5 to 4, I think, with Mr. Sains, Chair Randall, Mr. Kirshner, Mr. Preexman voting against the motion.

[04:15:31] Okay, Mr. Crony, would you like to make your other motion, please? Oh, yeah, no, would you like to make your motion? 57. You can do 57. So I'm making a reconsideration motion first.

[04:15:48] I move that the Board of Supervisors reconsider its action at the May 4th, 2026 special business meeting to direct staff to make any necessary revisions to the zoning ordinance as appropriate to ensure consistency among uses and use-specific standards as related to amendments associated with ZOAM 2024-002, Western, Loudoun, rural uses and standards and to ensure no conflicts are created.

[04:16:15] I further move that the Board of Supervisors consider its action that the standards adopted under this zoning amendment shall be interpreted and applied consistently with standards applicable to equivalent uses and operational intensities throughout Loudoun County.

[04:16:34] Any standards applicable in Western Loudoun County zoning districts that is more restrictive than a standard applied to an equivalent use or an operational intensity elsewhere in the county shall be supported by a written finding of fact documenting basis for differential treatment.

[04:16:54] Second. I will second that. Mr. Crony? Okay, thank you, Chair Randall. So this motion was put in as, it's the second portion that I'm reconsidering, really. It was put in without staff review or the county attorney review, and it is problematic and creates challenges for staff when they're drafting the CPAM and ZOAM because it contains ambiguous terminology and does not provide clear, precise instruction.

[04:17:31] It would make drafting the ZOAM problematic and much more time-consuming, particularly with the written finding of fact. Western Loudoun uses are very different from Eastern Loudoun uses. The two would be hard to compare.

[04:17:49] Most of the uses are agricultural uses. They're not commercial. So they do have different use-specific standards. And again, this is Arroyo. So this is giving staff the opportunity and the flexibility to draft. So I made the motion.

[04:18:05] And I made the motion last time. I seconded the motion this time because I was agreeing with you already. So we already had this discussion. Truthfully, what I was trying to do is just simply say that we

recently passed three.

[04:18:21] Well, no, I'll have that discussion in the other motion. Let's just have that discussion later. Ms. Curry made the motion. I second it. All in favor, say aye. Aye. I'm sorry. I'm sorry. I did not see your light on. I apologize. This is a motion to reconsider. This is a motion to reconsider. yeah okay all right all in favor say aye aye any opposed that motion will pass eight one nine zero okay would you like to make the motion okay thank you chair randall so i'm going to make the wrap up motion that was in the packet i move that the board of supervisors direct staff to make any

[04:18:56] necessary revisions to the zoning ordinance as appropriate to ensure consistency among uses and use specific standards as related to amendments associated with ZOAM 2024-002, Western London Rural Uses and Standards, and to ensure no conflicts are created.

[04:19:12] The motion is made in second by Chair Turner. There's a discussion on that motion, Mr. Crony. Well, I kind of mentioned it before, but this is basically just the wrap-up motion that was in the packet, giving staff the ability to ensure consistency and giving them clear direction, so it removes that paragraph that was ambiguous and did not give clear direction, and that's it.

[04:19:42] So we're basically just doing the wrap-up motion that was in the packet and was vetted by staff. Mr. Kirshner. So I have a question for staff within the motion. So we've already given you direction on a number of different things, for example, the equine and the lighting and stuff like that, so this is going to run in direct conflict with that.

[04:20:00] So how would you handle those things we've already given you directions on, if it's different than some other standard. I think that's why we had the second part of the motion. Am I correct? In part? I mean, I guess if you wanted to nitpick, you could say to ensure consistency where applicable or something of that nature.

[04:20:22] So could we accept that as a friendly to ensure consistency? Because we have given them different directions for different standards in different places. Yeah. Do we accept that as a friendly? No, I don't really understand why we would need that. I mean, because it just says consistency. I don't know why you would need where applicable.

[04:20:39] Yeah, I think this would be more along the lines of where there's not a specific reason for the difference, a difference to be drafted. So I was under the impression that this motion was to just make sure there wasn't conflicting issues within different sections.

[04:21:05] not what I'm understanding it now to mean, and that is to ensure consistency among use-specific standards. So can you tell me practically how this is actually going to work in your mind?

[04:21:22] Because we have given different direction on the hiding, I believe, for example, the height of lights in equine use. So that would be inconsistent with similar uses. Yes, but you discussed that and have a specific reason as to why you want that light pole to be a specific height that's different than the rest of the standards in the ordinance due to the issues with it.

[04:21:47] Okay, so the way you're reading this is, well, we now don't have to change that even though we've been given direction to be consistent with similar uses. Correct. Okay, all right. And are you, do you have a problem with the second portion that was taken out by Supervisor Tacroni?

[04:22:06] Do you feel that's going to be too burdensome for you? Is that why we're taking that out? Is that just a, no, I'm, well. Well, the second part, it's, it's difficult to say what an equivalent use is in the East with the West.

[04:22:21] The second part seems to make us really open up the whole zoning ordinance and look at all the uses in the East when there really aren't exactly comparable uses. All right. That's the problem. Okay. Yeah. All right.

[04:22:37] I think that's a decent explanation. So I'm going to do a point of information. So this was my motion and the reason I seconded Mr. Crony is because I had one goal in this motion and that goal was to make sure that we had consistency with the new compliance officers that we were putting in place during the budget.

[04:22:58] As it turns out, we're going to have a discussion about those new compliance officers at the June 16th meeting and make some decisions. And so my motion was ran ahead of that discussion. And so that is, so I was trying to make sure that happened with this motion. We're going to have the discussion and then we'll come back or send it to Roya and do that. That's why I made the motion. But when I realized my motion ran ahead of that discussion is why when Mr. Crony came to me and and said what is this I realized we hadn't

[04:23:33] got there yet that's all that's really is it it's just not that deep miss mr. Miss Brixman okay I think that clarifies things for me I was I was a little bit worried also with that that second paragraph because I don't think it was on the dais when when the motion was made and so I was really confused at one o'clock in the morning but then when I went back and reread it I was like are we really trying to I mean I think we are allowed to have different zoning for different policy areas so yeah but now it makes a lot more sense with that explanation happy to support the motion thank you Mr. Turner

[04:24:13] thank you Madam Chair I've viewed this and it came up late in the last meeting I think I voted for the motion that we're now reconsidering late in the meeting it just seemed to me we're just verifying that it's consistent. And then afterwards, I realized, well, yeah, but there's a whole lot more in here that burdens the staff, and really, it is really an owner's burden to no purpose.

[04:24:35] And so I went back and I looked at this. Basically, the motion we're considering right now is essentially a Scrivener's error motion that we wrap up all major zoning changes with. We have this wraparound language that says, you're giving us permission. If we see an obvious mistake, we can correct the mistake without having to come back to the board. Is that correct?

[04:24:54] Yes, that is exactly correct. Thank you very much. That's what I thought. Once again, let me say, it was my motion. I was just trying to say that we passed this thing during the budget process that said with the compliance officers that we just put in place, the three, were compliance officers for the entirety of Loudoun County.

[04:25:17] And I'm trying to make sure that the language we had in the budget discussion did not run afoul of the language we have here but then i forgot that we're taking this to another meeting and we do it there and that's where we will work it out and then it will go to zock and to everybody else i don't know that we need to beat everything to death guys especially in the meeting this long okay i i don't have a closing thank you all right um all in favor please say aye aye any opposed That motion will pass 9-0.

[04:25:54] Was there another motion on the dais? I think Ms. Bricksman has a motion on the dais. Thank you, Madam Chair. I move that the Board of Supervisors reconsider its action at the May 4, 2026 special business meeting on the motion to require a minor special exception for all non-residential covered activities in the somewhat sensitive and sensitive areas of the Mountainside Overlay District.

[04:26:15] Second. Discussion on the motion, Ms. Bricksman? I believe that we should allow staff to explore these possibilities. That's all. Mr. Kirshner. So I believe the reason I'll oppose this motion at this time was because I believe we asked staff at the time and they felt like they could prepare enough.

[04:26:37] And correct me if I'm wrong, staff, on this. When I refer to staff, it's all four of you sitting there. But my understanding is you felt like you could put enough parameters around these specific areas for non-residential uses and that would make it sufficient to protect what we needed to protect rather than going through the whole special exception or minor special exception as I think the next motion will be.

[04:27:03] I think that we had that discussion and was that -- am I correct in remembering that? Use development standards, et cetera. I know that was true on a number of my recommend -- I don't believe we had a specific position on this particular issue because this was one that was brought forward at the end.

[04:27:25] At the end, yes. So I think, and do we have, I mean we have specific uses now that would require any sort of non-residential as well as residential, but is that fair? You can't just go and do it without going through a site plan or whatever the case may be.

[04:27:43] I believe so, yes. Yeah, okay. There's not a special exception that exists right now for sensitive and somewhat sensitive or not or is there no I don't believe so it's just highly sensitive so once again the there's a lot of these but again these aren't the mountaintops we're not talking about the mountaintops we're talking about a lot of area um pecan hill peonian springs a lot of these places which we have residential development peony springs we have a number of different businesses in there and um and i appreciate supervisor um the motion that will will be coming forward if this passes, much more than the original one, which would have

[04:28:20] required, going forward, required minor specs. But I think -- I'm the one that gets the calls on these. My office is literally constantly busy with these sorts of -- it's mountainside, it's steep slopes, you know, and there is some -- it's just going to create a ton more uncertainty when we get into this.

[04:28:40] And I think, quite frankly, it's going to create a lot more work because now these minor specs would have to come to the board and i showed the map before i think supervisor or chair randall said just send it all to us which i have sent to all of you and you have seen the mountainside overlay and the sensitive and somewhat sensitive of course are not like the highly sensitive areas which are more susceptible to the erosion and those sorts of things but it includes a lot of areas that we don't realize it includes and in in areas that um are going to have huge impacts on our residents who want to start little small businesses or do a small site plan and there

[04:29:18] will be a lot more hoops to jump through it'd be far more expensive for them i mean listen i just did a i just did a site plan just simply to build a pole barn agriculture and just the engineering cost alone cost me 25 000 so this is a mistake for us to even go down this route mr mr latourno yeah so this was one that i remember this discussion i remember the map and and staff actually whether you intended to

or not did convince me not to support the motion because you walk through the process that currently exists for the somewhat sensitive and sensitive areas of

[04:29:54] the mountainside overlay district what you had to do essentially to build in that area could you remind us what that is if anybody here is able to do that i'd like to ask our building and development staff is it miss mason that's online could you address that i became convinced it was sufficiently regulated, but go ahead. Sure. So basically you have to go through all of the regulatory processes. If you need a site plan or a legislative application, you would have to do those. Anything over 600 square feet needs a grading plan. So pretty much anything that you

[04:30:32] would want to do that would require land disturbance needs a grading plan that has to get approved through our staff. And then there are also multiple restrictions dependent upon whether or not the area is forested or has steep slopes, which prevent how much land disturbance you can do. So if you have a forested area, you could be limited to only being able to clear 25% of the area. Or if you have very steep slopes, you could be limited to like 50% of your land disturbing area activity. So there are a lot of limitations there already, and everything does get reviewed through the creating plan process.

[04:31:09] Okay, that's helpful. Thank you. Mr. Crony? Yeah, thank you, Chair Randall, and thank you, Supervisor Burstmann, for reconsidering it. So there is still administrative applications that are pretty intense allowed on the mountainside.

[04:31:26] You know, there's a proposal for one that has not submitted an application yet, so I feel confident in speaking about it for two country inns, one restaurant and one spa that is potentially by right. So this is going to protect the sensitive areas of the mountainside.

[04:31:43] I think it is in our purview to look at a minor SPAC so that we can get public input. The public needs to have a voice in these some of these intense non-residential uses and make sure that that the it adequately meets the land use requirements that the roads aren't inadequate that we're not impacting the groundwater recharge.

[04:32:08] We have droughts in the county right now, and this is an area of groundwater recharge. This is a very sensitive area. Our mountainside is worth protecting. It's beautiful, and it provides really the rural character of Western Loudoun. So this is an explore motion.

[04:32:25] This gives the staff the tools to look into it, but I will say that there are by right uses right now that are being proposed. I heard what staff said about some requirements, but maybe it's not enough. Maybe there should be a review where we look at the impacts, because it is such a sensitive area and it deserves protecting. So I appreciate Supervisor Burstmann bringing this reconsideration. Mr. Turner. Thank you, Madam Chair. Once again, we are not debating

[04:33:01] the merits of minor special exceptions in the Mountain Overlay District. We are asking staff to go find out information about what that would entail and what the impact would be. We are asking staff to go find information so we can have a fact-based discussion.

[04:33:18] We are not now having the fact-based discussion. Thank you. We're at the start of the process, not the end of the process. A vote of no on this is we don't—we know everything and we don't want to know any Any more information? This is common sense. This is a vote to ask staff to go research the issue and give us some facts so we can make an informed decision.

[04:33:39] Thank you. Is this still a reconsideration motion? Reconsideration, Madam Chair. Guys, guys, listen. I'm sorry. I actually lost track, and I apologize. It's a reconsideration motion, guys. It's a reconsider —it's not even the main motion yet. I need you all to—it's a reconsideration motion.

[04:33:56] No. No one's speaking right now. I move the previous question. Truthfully, you're right. I move the previous question. Well, no, because Ms. Dixman gets a closing if she wants it. It's a closing.

[04:34:12] I do not need a closing, Madam Chair. It's a reconsideration motion. All who favor the reconsideration motion, please say aye. Aye. Opposed. I mean, we— Okay. We are going to now have the main motion that everyone has already spoken on, for the most part.

[04:34:34] Yes. Would you like to have, would you like to make the main motion? I would, Madam Chair, thank you. I move that the Board of Supervisors direct staff to explore a minor special exception for all non-residential covered activities in somewhat sensitive and sensitive areas of the Mountainside Overlay District.

[04:34:53] Second. I'll give that to Mr. Crony. Thank you, Madam Chair. Again, this is just to explore the idea. Actually, I will just associate myself with Supervisor Turner's comment during the reconsideration because that's exactly what this motion does.

[04:35:13] We're not making any decisions yet. We're allowing staff to come back to us and let us know if this is a good idea or not a good idea, whether we should have this in the end in our walrus. Thank you, Madam Chair. Mr. Sains, who did not speak the first time.

[04:35:30] yes thank you a question for staff just to see if um so say if i have land and i'm farming and i already have grapes um on the vineyards and i want to plant some more do i have to come and get this minor special exception to do that or no no uh the actual bona fide agriculture would be exempt the structures are not but the uh the uh the farming is is is permitted without any type So, let's say if I want to build a structure or anything of that nature, possibly.

[04:36:03] Yes. Okay. All right. Thank you. Follow up on his question. No, I didn't. Technically, the rules of order allow me to speak, but I just said, can I have a follow up with his question? Technically, the rules of order do, but really...

[04:36:19] I'll make it quick. Yes. Can I ask for clarification of his question? That's all. Yes. Are you asking it to Mr. Sainz through me? Yes. Okay. That's fine. That way I don't speak anymore. Okay. So, your answer to his question was if they wanted to build a small tasting room or something in a somewhat sensitive or sensitive, then they would have to go through this mod if eventually you guys suggested it. Yes. Okay. So would it impact the ag in that way?

[04:36:44] But not necessarily crops? Yes. Correct. I supported this the first time. I'm going to support it the second time. I'm done. Mr. Brickson, would you like to close him? I would not, Madam Chair. Ms. Brickson, make the motion. Mr. Crane, second the motion. I'll pick, please, aye. Aye.

[04:36:59] Opposed? Aye. That motion will pass 8-2, I'm sorry, 7-2 with, did I miss somebody? who was it no miss miss glass said no did anyone else say no that you said no you didn't say anything you know so 72 okay if you're going to help me be helpful go help me be helpful 72 thank you very much are there any more raw risk motions on the dais right now are there any more walrus motions this is

[04:37:35] now going to or to the to the planning to the zoning ordinance group and the planning commission and then back to us by by before next september thank you very much can i make just one more information comment it's you have a point of information yes no we have to have fun right now 15 seconds yes i have commissioned the making of a t-shirt and everybody who's been involved in walrus can have a t-shirt i'm paying for my out of my own pocket it is the classiest

[04:38:12] t-shirt i have ever ever seen and i've got five large five mediums and five extra large and when they come out i will be happy to present them here at a board meeting for everybody who has been through the last two years of agony on walrus not agony not agony all right thank you supervisors let's take a five minute break and then come back and read into the closed session for this for uh take the take a five minute break take back come back and read into the second

[04:38:41] closed session. Literally, guys, five minutes. Thank you. The second one? But I also am going

[04:45:32] to go and do the PO. I'm going to do the, yeah, can I do that one? No, I can't do that one. I can do that one. Supervisors, we're back. And there's two things we could actually do really quick, I think, before we leave the day. One, I took Quantum off the consent agenda because we had a speaker on it. The speaker did not show up. And so we might as go on and do the motion for Quantum right now that was in the package because it would have been on the consent agenda anyway.

[04:46:01] So would you like to make the motion, Ms. Glass? Yes, thank you, Madam Chair. I move that the Board of Supervisors forward Leji 2023 dash 0097 Quantum Park ZCPA dash 2023 dash 0008 to the October 20th, 2026 Board of Supervisors business meeting for action. Second.

[04:46:24] second discussion on the motion yes thank you madam you would well no no no go on i'm missing with you go on go for it discuss the motion okay the applicant has requested a deferment to allow them time to consider the feedback from the public hearing and to allow them time to explore all possible uses of the property this is their first time for deferment yep all right anybody else Seeing none, on paper, say aye.

[04:46:54] Aye. Any opposed? That motion will pass. Is everybody here? Nine-zero. Supervisors, can we do 1D, which is the, because I see Mr. I'm trying to get Dr. Ramadan out of the room. It's the renewal contract for the maintenance and combined transit system.

[04:47:14] I sent you all a motion today. I can make that motion. We can have discussion in the motion, if that's okay. Does that sound okay there, everybody? Okay. I move the Board of Supervisors authorize the Purchase Agent to renew the contract for Keolis for the operation and maintenance of the combined transit system for the period of July 1st, 2026 through June 30th, 2030, in the estimated amount of \$1,231,65,000 with an additional one-year renewal option.

[04:47:44] Second. Motion is made. Who said second? Motion is made and seconded. You all don't even have to be here. Motion's made and seconded by Supervisor. I do have a question, madam. Okay, come on back. I'm sorry. I do have a question. I'm sorry. She wants you back. Ms. Bricksman has a question.

[04:48:01] So this actually should not have gone on consent because it wasn't passed unanimously out of finance. And when it was passed in finance, I actually said at the time I was going to make this motion. Because, Mr. I believe, we believe it's going to take four years.

[04:48:20] If it doesn't, we have another year. But it does not cost any more to do this versus five years. Actually, it would cost less. And so, thankfully, and I thank you, Dr. Ramadan, Kirlis has no issues with this motion.

[04:48:38] It could cost a whole year less. And if we need the one-year option, we'll have it. So we could save a year and save money. And if we need the other year, it's still there. There's just no reason not to do this, I don't believe. Mr. Crony why support this but I just have a question for Mr. Brown so I noticed that the Frederick Maryland and Dale City Manassas Pilots were in the kilos contract. Are you gonna come back to the board to talk about those pilots?

[04:49:08] maybe before July 1st or Yes, we'll be coming back to the board to discuss the the findings of the of those particular pilots. You know, can you say when? I don't know the exact date, 16th of June. Oh, June, fabulous. What pilots are you talking about?

[04:49:25] Thank you, the pilots that have one to two riders per day. Oh, okay. Thank you. I'm with five now. Five? Okay, well, still, thank you. I appreciate that, Mr. Brown. Ms. Bricksman? Thank you, Madam Chair. I just, there was some discussion in finance about potential penalties if we end the contract early, and it's my understanding that the five-year was kind of part of the first contract.

[04:49:49] So are we going to face any penalties for doing the four-in-one versus a five? No, we were able to confirm with the contractor that the pricing would remain the same, whether we did a five-year base or a four-year base with one additional renewal. Perfect. Thank you. I'm in support.

[04:50:05] Anybody else? You said you had a friendly? Madam Chair, I just have short friendly. I'd like to add the language after the last word, renewal option, and that includes defined language addressing the potential transition to in-source services, which I believe was in the original.

[04:50:20] That was in the original motion. That's fine. That's fine. That was in the original motion. That was the intention anyway of this motion. Yes, I accept that, and that was in the finance motion. Well, it's my motion, so I do accept that, but thank you. Okay, but thank you. All right, we good? All right, please say aye.

[04:50:36] Aye. Opposed? Mr. Ramadan, thank you very much, and you may go home now. And thank you for the song. I think, I think, yeah, I'm good with the happy birthday song. I think we are ready to go to the second closed session.

[04:50:51] Mr. Turner, would you please read us into the second closed session? Thank you, Madam Chair. I move the Board of Supervisors recess the public meeting and enter into closed session pursuant to Section 2.23711A3 of the Code of Virginia to consider the disposition of a parcel of property for public use in the Broad Run Election District.

[04:51:11] Motion made. Seconded it. Discussion on the motion. On the bill, say aye. Aye. Any opposed? That motion will pass 9-2-0. We are in closed session.

[05:26:12] We are back. Mr. Turnery, read us out of closed session, please. I move the closed session be adjourned, that the Board of Supervisors reconvene in its public meeting, that the minutes of the public meeting should reflect that no formal action was taken in the closed session, and further move that the resolution certifying closed session be adopted and reflected in the minutes of this public meeting.

[05:26:32] Second. Discussion on the motion? None. All in favor say aye. Aye. Any opposed? Motion passed 9-0. Everyone please affirm Ms. Umstop. I'm sorry, Ms. Briggsman. Affirm. Affirm. Affirm. Affirm. Affirm. And I affirm as well.

[05:26:48] Okay, supervisors, we're going to go on. Supervisors, I want to remind you all, we don't, please, please, we have another closed session. It's going to take a long time, and some of these items are going to take a long time. So can we just be aware, mindful, and aware of that?

[05:27:04] Thank you very much. Okay, we might as well go on and go, well, no, I think we have a lot of citizens here still who would like to, well, we have two things, the human services grant and the, no, not barristers, but I think people are not here for, they're not here for barristers, they're here for the Aspen, yes, thank you, the Aspen substation.

[05:27:32] So we'll do the Aspen substation, and then we'll do the grant applications, and then so people can go home, and then we'll do everything else. So would the people with staff for item number 10, please come to the table. While you are coming, Mr. Rogers, may I ask you something?

[05:27:52] Mr. Crony, why's your light on? Mr. Crony, your light's on? Mr. Rogers, may I ask you something? Not having any idea what's going to happen and where this conversation is going to go at all, but if there was a deferral, is that a legal thing to do in this application, and what would it mean?

[05:28:15] The board can have a deferral when you need more information, when you want to send it back to staff to see if there's additional conditions that you'd want to put on a special exception. It's a specially permitted use, so the use is permitted, but you could put restrictions on it.

[05:28:37] So if there were legitimate land use questions pertaining to this particular use, then a deferral would be an appropriate action by the board. Legitimate land use questions pertaining to this particular use?

[05:28:53] Yes. Okay. Thank you. Is there staff coming to the table? Are you by yourself right now? Is this going to be you? You're going to hold it down? I guess I'll have to. She's like, yeah, I guess we'll hold it down. Let me get to the item.

[05:29:16] We have a -- we have a nine-slide presentation. Just because there have been so many comments and because there's public here who'd like to see it, I'm just going to quickly have you do the slide presentation.

[05:29:34] If Dominion is here -- are you here? Can you come -- not all of you, but whoever is going to come to the table, can you come to the table right now please good evening um well thank you thank you thank you no songs all right we're ready when you are good evening my name is tess lynch with the department of planning

[05:30:10] and zoning here to present the application for aspen substation not letting me share the screen

[05:31:19] Ready? No? Stand? Stand? Yes, ma'am. Already? Yes? Yes. Okay.

[05:31:35] Okay. We're ready too. I'll start over. Good evening. My name is Tess Lynch with the Department of Planning and Zoning. Here to present the application for Aspen substation. The subject property is located northwest of Cochran Mill Road and southwest of the Washington and Old Dominion Trail.

[05:31:52] The site is located within the Leesburg JLMA employment place type in the Leesburg Election District. site is a total of 34.32 acres. The substation shown is the existing Goose Creek expansion, which is not part of today's application. The applicant is proposing a special exception to construct a utility substation, a special exception to reduce the parking ratio from one space per 1,000 square feet to one per 33,000 square feet, which would be one for the whole facility, and a minor special exception to modify buffers. An existing substation on the property

[05:32:29] was approved in 2013 as the Pleasantview substation, and an expansion was approved in 2023 as the Goose Creek substation expansion. These are not part of the current application. The commission permit associated with this application was ratified by the Board of Supervisors in January.

[05:32:46] On May 12th, Dominion Energy provided a written statement to the board explaining the purpose and need for the Aspen substation. Present on screen is an annotated specs plat. The limits of specs application are outlined with the proposed substation in purple. The approved substation on the site is to the north in gold. Existing substations in the area are to the right in gray. This application is a compatible use in the place type and is located in an existing developed industrial area. It is part of the Aspen to Golden transmission line project.

[05:33:20] The transmission lines run through the center of the property along the top line of the specs limits shown in red. The general plan supports locating substations proximate to existing overhead high voltage electric transmission infrastructure and promotes the preservation and protection of trees and forests. Staff have no outstanding issues related to this application.

[05:33:42] Staff recommends conditions related to the redistribution of TCA, wood turtles, pollinator habitat, specimen trees, easement realignment, and screening. Planning Commission forwarded the application to the board with recommendation of approval. Staff supports approval of this application subject to the proposed conditions. Available for any questions. Thank you very much.

[05:34:08] This is in the Leedsburg District, although it does kind of impact, well, all of the eastern shore, it feels like, but this is in the eastern, or the eastern country, but it is in the Leedsburg District. And so, are you ready to ask questions, Ms. Holmstadt?

[05:34:24] Yes. So, my concern is that substations, transmission lines, data centers, houses, they're all part of a grid.

[05:34:42] And I'm concerned that if we start cherry-picking which substation to say no to, in the hopes perhaps that that'll prevent another data center, we're undermining the grid.

[05:34:59] So I guess my question is, is there any risk to the grid if the board says no to this substation? And I'm interested in knowing the impacts on not necessarily data centers, but homes and businesses.

[05:35:17] So that's my question. Is that question to Dominion or to the staff? I don't know that staff has the expertise in that area. So I guess Dominion. Thank you. Unless, Dan, you guys feel you do have that expertise.

[05:35:35] We'll defer to Dominion. Thank you for that question. Greg Matthew with Dominion Energy. I lead our electric transmission communications engagement and permitting group. With me, I have colleagues from Dewberry, who's helping with our site, and then John Devereck, who is in our planning

organization that can also talk, since he was in our system operations center, that can talk about sort of the real-time operational concerns we have. But absolutely, the Aspen substation is a critical part of the grid

[05:36:08] that was identified in 2022 for current forecasted ramp of the grid, including residential and data centers, needed in 2028. And so we've been talking about this project for a number of years now.

[05:36:28] Without this project, we'll have major reliability concerns on the grid, but also we have a number of projects on the heels of this that are needed as well to serve the demand, that is dependent on this one being in service.

[05:36:44] But I'll defer to Jonathan to talk about real-time operational concerns. Hey, good evening. My name is Jonathan Dobrik, Manager of Electric Transmission Planning. And my previous role was at the System Operations Center. So I'm here today to talk about the grid concerns if the Aspen substation project is deferred delayed. This project, just to provide a little background, was identified in the 2022 PGM Open Window 3. It resolved 350 violations on the grid. This is a project that is very much needed.

[05:37:23] It was part of the Regional Transmission Expansion Plan, and it went through the PGM FERC 1,000 order, so it was competitively bid to make sure that it cost prudent. And we won that bid and was awarded the project. This project is extremely important. It's a huge interchange with First Energy. We have plans to utilize the existing corridor between First Energy and

[05:37:55] Dominion to add three 500 KV lines and using the two existing 230 KV lines. That is a huge increase from the existing one 500 KV line and existing 230 KV lines. So the interchange is very much needed. And as we talked today in this meeting, it just happens to be on a May 19th, on a 90 plus degree day.

[05:38:27] And as we were here, I could feel the anxiety of the operators today as I used to be part of that mission. We were in Energy Emergency Alert One today. The PGEM deployed maximum generation efforts and we had a number of PCLLRWs.

[05:38:52] This is an acronym called -- it stands for Post-Contingency Local Load Relief Warnings. And what this means is if certain lines go out of service unplanned, there -- the line that's being monitored would have an overload.

[05:39:11] So there's a couple ways to mitigate an overload. Sir. I'm sorry. Right here. Right here. Hi. Yeah, hi. So with respect, I do absolutely want you to feel like you're answering my colleagues' questions. However, you all are at the table tonight to answer questions, not do whole presentations. And so if you could narrow down your answers to the questions, that would be really helpful. And I didn't do a good job having you all introduce yourselves and things. After you answer these questions, I'll go back and do that. I apologize for that.

[05:39:45] Yeah, and thank you for allowing us to come here tonight as well. It's a pleasure to be in this town. Thank you. Thank you. So the short answer is yes. It's a reliability project. It's very much needed and we need it today. Okay. You all want to introduce yourselves and all that because I didn't do that. Like I said, you're here. You can answer questions but not do presentations. Sure. By the way, you just happy birthday to me. What's going on? I'm just so So kidding, so kidding.

[05:40:17] - I got into my speech here. Jonathan Deverick, with Dominion Energy, been there for 17 years, various engineering roles, majority of the time, and recently, Operations Center, Supervisor of Planning,

and today I'm in the role of Electric Transmission Planning.

[05:40:35] - Okay, thank you. - Greg Matthew, Dominion Energy, Director of Electric Transmission Engagement and Permitting. - Thank you. - And I'm Jack Story with Tuveri, Applicants Representative. Thank you. Okay. Other questions? Mr. Crony. Thank you, Chair Randall. So I saw, and thank you for giving that detail. I do appreciate that from Dominion. I appreciate information. The enhanced screening that you're proposing at Barrister, could that be proposed here at Aspen along the W and OD?

[05:41:07] It could be proposed here. I think that it might be more appropriate to enhance the landscape buffer given kind of the linear park nature of this project versus the urban transit center place type that that screen, the particular screen with Barrister is geared towards.

[05:41:27] So are you eliminating the plants along the W&OD? Like I remember you said you had to remove some of the taller specimens. You know, I think a buffer would be helpful that is plant-based, but we can't be removing stuff. I mean, is that what you're doing along the W and OD?

[05:41:51] There are portions of where the transmission lines will cross the W and OD or run parallel portions of it. And yes, in those locations, there can't be any plant material taller than 10 feet. Okay. So what are you proposing to enhance then as far as plant materials? At this time, we don't have a proposal. We are providing the required buffering along there. But if you're asking what can we do to further enhance that, I think we could increase the plant units as long as they are maintained at a height that's under 10 feet.

[05:42:21] Okay. And would you be willing to defer the application so that we could get that in writing? If we could work with staff to come up with a condition that everybody's agreeable to, I think that's -- Go ahead. Yeah. I think our concern around a deferral versus sort of the clean application that we have in front of you tonight at a recommendation to approve, given the special exceptions noted, we would ask for a vote simply because of the reliability

[05:42:56] concerns. We're already sort of on the on the shot clock of making the 2028 in-service date. The line, as we talked about, is needed. It's been adjudicated through the PJM process and the State Corporation Commission process. They found an immediate need for it to be put in service in 2028. And so any sort of delay in moving through towards construction I think is something that we'd like to resolve tonight. If there's a condition or an approval with the condition I think will be amenable to adding plant types that meet our

[05:43:32] encroachment specifications like Jack talked about. Okay thank you. Thank you Mr. Crony. Mr. Letourneau. So during the public hearing in response to a question asked there was a statement made that this substation was needed primarily to support future data center growth. That raised my antenna at the time because that wasn't really my understanding of this application. I felt like there's been sort of a walk back of that statement since that time. It was made by you, not pointing

[05:44:07] fingers, but it was. So what that did was it created a perception that if the board rejects this substation then we can stop all these data centers right and that's what the public thinks and that's what perhaps some of the board members so is that true so i i think it's um a distinction that needs to be made i don't think the statement was was wrong um we live in the future um as far as planners go again we were talking about a project that was approved in 2022 through the pgm process looking at the forecast in the future to resolve reliability concerns in 2028 and so when

[05:44:44] when we talk about future growth, it's not new growth. It's existing growth on the system that's right now that's ramping into it. So what we have here is that we know that data centers are the largest growing industry across the Commonwealth. We know also from our history that when they ask for service, they ramp into their asset asked capacity, which is about four to five years, depending on what's happening. And so projects that already were approved and under construction three, four, five years ago are now ramping into their load.

[05:45:17] And so we're addressing that ramp. So if no other data centers were approved by this board today, we would still have a growth of over 2,500 megawatts in Loudoun County alone. That's not talking about growth in Maryland. That's not talking about growth in Culpepper or Prince William or any other jurisdiction.

[05:45:35] And so when we talk about future growth, I think it's just a nuance. - In my last minute, so then what are the implications if this substation's not built? What really will happen? We're not just talking about the reliability concerns in Loudoun County. We're talking about reliability concerns across the Commonwealth and the eastern grid.

[05:45:51] There's only, as John said, there's only one major backbone transmission line as an interface between us and First Energy to the north. Without substation, the Aspen substation being built, those projects can't be built. And that's in front of the State Corporation Commission right now.

[05:46:09] We already know and we've talked about the Loudoun 500. When you say those projects, which ones do you mean? The 514 corridor that we're talking about. There's a number of projects. We have two projects, and then Nextera has the third project that we were able to work with them, so they used existing right-of-way.

[05:46:26] And the reason why the Nextera project works is because of the need for Aspen substitution. And so what we're talking about here is the reliability for the Commonwealth in general. It is not just to Loudon. It's not just going to be reliability issues to data centers.

[05:46:45] It's going to be for anybody in the area that we need to relieve load on. Approving this substation is really an approval for reliability. It's an approval for dependability and assurances to the constituents that we serve.

[05:47:02] It's really a partnership between us. Our obligation to serve is not ours alone. It is also the jurisdictions that we partner with for local approvals like substations. And so this is a project for reliability. It's for a project so that we don't have backup diesel generation running constantly because we're constantly shedding load because the system is overloaded.

[05:47:25] These projects are not optional. They're foundational to the health of the grid. Thank you. Mr. Sainz. Thank you, Madam Chair. All right. So this project is called Aspen Substation. So is this, correct me if I'm wrong, this is connected to the Aspen and Golden Transmission Line, is that?

[05:47:46] That is correct. And tied into the grid with the north-south corridor that it's sited underneath. Okay. And so correct me if I'm wrong, and Madam Chair, if Mr. Rogers can answer through me, our staff, we were against that transmission line. We asked for it to be built underground, went to the SEC. They ruled against that rule for above ground power lines. We went through the process of challenging that ruling, went, I think, all the way up to the Virginia Supreme Court.

[05:48:23] We lost that fight, unfortunately. So here we are today, I guess, that this is going through all that and that whole process. So my question, I guess, to staff or to Mr. Rogers, so say if we were to deny this application, knowing the SEC ruled against us in the Virginia Supreme Court, what would happen? If you're going to approve or deny this application, you should do so under valid land use criteria. The transmission line issue is really not an issue in this case.

[05:49:02] It is important to understand that this is a receiving point from Maryland where the power is coming into the Aspen substation and then is going to go out to the Golden substation through a loop. While we did oppose a portion of the above ground route, there was about three miles that we wanted to put underground, the routing of Aspen to Golden was actually something that we did work with Dominion and supported the route. We just wanted a portion of it to be put underground.

[05:49:32] So these are two different things to look at the transmission line approvals and the aspen substation approval okay is the lines that will that are supposed to connect to this substation are they there now currently or you need to work to put them up and then connect to the substation so um the north south corridor is existing now re being the tie into first energy is going to be rebuilt and that's in uh in front of the state corporation commission now for their uh review uh and then of course we haven't built the line from aspen uh to golden so can you pull

[05:50:09] up the the site okay so the red lines are existing red lines are existing transmission lines so are those going to connect to what's being proposed in the purple or no uh yes yes just to tie that aspen the subset the substation itself has to tie into the existing broader grid and then we have to extend that 500 and 230 system out out towards golden. Okay but the lines right now those reds will connect to this purple if this was approved that's what you're saying. All those substations will be interchanged and connected. Okay all right thank you. Thank you Mr. Turner. Thank you Madam

[05:50:47] Chair this is going to be tough you guys are regularly at monopoly I think you've been backed into a corner and you just legally don't have any options here. I think you know I've done quite a bit of research on this I try and keep a yes and no answers and it's going to be a lightning round and I apologize in advance. So right now you've got the three five hundred two thirty loops aspen gold and golden mars mars the wishing star. You've got two five hundreds coming in from the north you've got a 500 coming in from the south and we just found out you've got an underground five sixty five seven sixty five high voltage dc underground five sixty five high voltage dc

[05:51:21] coming in from the south planned. It's dc but it's yeah 525. And you're going to convert it to ac and and put it up on our existing grid, is what I heard. Yes. Okay. One caveat, sorry. The current system going up to Wishing Star.

[05:51:37] So that project has been approved from the board. The substations are built. It's energized. There's two 200s and two 230s in that corridor, soon to be a third 500. Got it. Okay, so by my count, I've looked at the power consumption over the last five years.

[05:51:54] We've gone from 2.4 gigawatts demand in Loudoun County in 2022 to 5.4 gigawatts as of last month. If you straight line extrapolate the demand, we're going to need 14 gigawatts plus. If I plan a 500 kV is about 2.1 gigawatts and a 230 is about 750 megawatts, you've got an addition with the two 500s in the north and the one in the south, You're going to add to the 9.3 gigawatts access that we have right now another 6.3 for a total of 15.6.

[05:52:26] My reason I'm bringing all this up, my conclusion is you can build Aspen to Golden to Mars to Wishing Star. In fact, as an aside, just for a second, to my knowledge, none of those lines have been built with the possible exception of Mars to Wishing Star, but that's not energized yet. It won't be energized for a few months. Is that correct?

[05:52:46] No, that's not correct. Okay, where did I go wrong? What's built already? Wishing Star of Mars is already built and energized. And energized? Yes. Okay, was that the basis upon which you removed the constrained area in December? It was one of the last projects to remove the constrained area.

[05:53:02] We had four additional projects that were expedited back in 2022. All of them were finished in 2023. Rebuilds of existing 230 lines, the expansion of Goose Creek, and then the Wishing Star of Mars.

[05:53:17] Here's my premise, and I know it's controversial. By every reasonable extrapolation of the amount of energy and demand we have in Loudoun County right now, AI is going to create demand that we simply cannot meet with all of the new seven lines built and energized.

[05:53:33] With that in mind, yes, I agree with you. Aspen, Gold, and Mars, Wishing Star is critical for the reliability route to carry 2.85 more gigs out to Deddy Center Alley. But it's not going to solve the problem. And we keep characterizing Aspen as it will help solve the problem, and I don't think we can solve the problem.

[05:53:50] And I think Dominion is forced to say, yes, we can solve the problem, when in fact I don't think we can based on the projected demand. So this is not a yes or no answer, but it's part of the solution. They all work together and they all build on top of each one. So the reason why Wishing Star to Mars works is because we also proposed Aspen and Golden and Golden to Mars.

[05:54:09] The reason why that works is because of the rebuild of that corridor going north to First Energy. The reason why that also works is because of the project that we have going down to the Morrisville substation in Falkir. The reason why those also work is because now we have the partnership with the other two utilities for ValleyLink, bringing 765 kV into the region.

[05:54:31] And the reason why HVDC works is because all of those other projects will be in service. So right now, just because of the way the planning works, like it or not, we can only see it at 2032 for projects based on the PGM planning process. And that stops with the HVDC project going from Southside, Virginia, bringing power directly to Loudoun County to resolve all the issues that we see in 32.

[05:54:56] That's the line of sight we have for right now. Is that going to be enough? That's a question that I think we all have. I think I can sit here confidently that's saying probably not. We have projects across the Commonwealth at every given stage to address all these issues.

[05:55:16] Again, just going to 2032, this coming month, PJM will open its window for this year. We think that it's just going to open to the year 2031. So I think we're feeling pretty confident of the things that we've already resolved probably will be minor.

[05:55:35] But then next year, they may go eight years out, and we'll see what happens on the grid. It really depends on what generation comes online, what's in the model, what other generations has been retired. So confidently, I can say that we know what's going on through 2032, and I can say confidently that there's probably going to be more projects coming.

[05:55:55] To what extent, I'm not quite sure, but. I appreciate your candor. Thank you very much for that answer. So I think my frustration and the frustration I hear from constituents and colleagues is that you just said it's up to the board also, a governing body, to be part of this solution and figure out how to make sure energy keeps running.

[05:56:20] And I agree with that. I think my frustration is I don't feel like Dominion ever meets us halfway. I don't think Dominion ever meets us a quarter of the way. So, I mean, can we underground a mile? No. Can we have a green wall? No. It's never, ever, yeah, we can do this, and this is how we're going to try.

[05:56:42] We don't find out until the day before that we're going to have these inner constraints. When did that? I don't remember when that day came, Mr. Turner, when we got the phone call that said, hey, we don't have any energy anymore. But it was like all of a sudden, yesterday I get a phone call to find that you're all about to be the biggest energy company in the world.

[05:57:04] And all these things, it's things like just get plopped on us, and it happens, and we are responding. And on the one hand, it is responsible for us to respond in a way that our constituents don't lose energy or don't have to have blackouts ever, that the grid is not overwhelmed.

[05:57:24] On the other hand, it doesn't feel like it's a collaborative effort or rather a collaborative relationship until the moment when you all say, it's up to you to also join us to make this work. And so I think that is my unease at this moment is that it feels very much like, you know, Dominion holds your cards close to your chest.

[05:57:47] and I understand maybe you have to, and then one day you say, here's my hand, put your hand down, and now we've got to play. That doesn't feel real good, and I think that's part of what we're hearing and what you've been experiencing. So I just want to put that out there.

[05:58:03] I also want to ask two questions. One, first of all, I want to say I'm going to have a data center town hall sometime late June Because the misinformation about data centers that I hear on a continual basis, including tonight, is pretty big.

[05:58:21] And we need to actually have some truth-telling, even if people yell at me, it's just going to be some truth-telling. So I have two questions. Were it not for data centers, would we be here?

[05:58:36] because I've heard someone say that data centers are about 10% of the energy use, which is not that much, to be honest. Were it not for data centers, would we be here at all? Do you think we'd be here at all? And two, can you actually sit here and say that there's nothing more you can do or should be able to do with this ask, with this substation, to make it more palatable?

[05:59:00] To answer your first question, it's a what-if question because we deal in realities. right now. And so the load is here. Data centers are the fastest growing industry in the country.

[05:59:17] It's what has contributed to the growth in the Commonwealth. I don't think we shy away from that. But we can't go back in time to say, what if? And if it didn't happen, what would we do? That wasn't a what if question. With respect, you're not answering my question. I ask you that, My question was the load right now, how much of the load is because of the data center?

[05:59:41] The contributing factor is the growth in data centers. Okay. To what degree? All of it. All of it. Okay. That's a true answer. Okay. And then the second question. I'll pause there. That was a little bit. I'll

back that up for a quick second.

[05:59:56] Okay. It is 90% of the contributing factor. Okay. The growth in the transmission needs over the years has typically been economic development, which in the 20-teens was minor but growing, and it was primarily data centers, but it was also electrification, and it was also driven by aging infrastructure.

[06:00:22] So a lot of our infrastructure was built in the 40s and 50s and 60s, so that just naturally needs to be rebuilt. And then really shifting in generation. Back in the teens, we were thinking about retiring a lot of generation and more solar and distributed resources, and that puts pressures on the grid in a different way. Now we're talking about adding a lot of generation, and that puts pressure on the transmission grid. For instance, our off-coast wind farm in Virginia Beach has network upgrades on the transmission grid, um, as far north as Richmond and, and, uh, near, and Louisa.

[06:00:58] So the, the effects are great when generation comes online. So yes, load growth is, is, is definitely contributing to the build down of transmission from data centers, but also these other contributing factors of whether it's generation retirements or new generation coming on the system. So that's a fuller answer. I'm sorry. Thank you. And the second question.

[06:01:20] The second question is from, I think from an aesthetic point of view, the existing conditions with the other three substations, I think we're happy, again, to put some additional low-level screening along the W&OD trail.

[06:01:38] I think most of the tree save is around the road frontage on the back end of the substation. There's some free areas so that we can get the transmission lines in and out of the substation. We've worked on the decorative wall. The other substations are mesh fencing.

[06:01:55] So I think in those regards, we've evolved our standards. And so, again, happy to know that the frontage along the W&OD Trail is important. You may know that we entered into a new MOU with Nova Parks on vegetation management and trail upkeep late last year.

[06:02:18] That is an important shared use corridor between the utility lines that had the original easements and now the park system that sits on top of that easement. So we know that's important. And so adding vegetation along that front corridor seems appropriate.

[06:02:35] Okay. I'm going to go to a motion, Ms. Umset. Would you like to make a motion as this is in your district? I move that the Board of Supervisors approve Leji 2024-0038 Aspen Substation, Specs 2024-0054, Specs 2024-0055, and Specs 2025-0026 subject to the conditions of approval dated April 2nd, 2026, and based on the findings of approval provided as in attachments one and two to the May 19,

[06:03:15] 2026 Board of Supervisors business meeting action item. Motion is made and seconded. Discussion on the motion. Ms. Umstead. Thank you, ma'am. Unfortunately, we cannot disconnect people's homes from the same grid that provides electricity to data centers and businesses.

[06:03:38] If we could, maybe there'd be an argument against keeping the grid up and running, but I don't think that argument is valid tonight. The two main transmission lines that go through the town of Leesburg came because of residential growth in Loudoun County and elsewhere among the 13 states and the District of Columbia that the eastern grid supplies power to. They were not popular when they were

[06:04:15] built. We all hated them and we don't like the looks of substations either, but when I look at what could happen during the summer with people having blackouts or brownouts in their homes or

small businesses because a substation has not built and the grid is not kept up to par that worries me more than this substation. Thank you. Thank you. Mr. Letourneau. Yeah so strictly from a land

[06:04:54] use perspective this is not one of the more troubling substations we've had. We have had ones that have been troubling and I spoke recently about one of those but from a visibility standpoint this is not one of those. We're having quite a bit of discussion about other issues related to that, to the substation, which are very valid and very legitimate, but I'm not sure the way to address them is to just disapprove the substation, because it's easy to kind of throw these ideas out there, and it feels good to say some of these things, but the reality is, if anything goes wrong, all these

[06:05:34] data centers in this county go on diesel generators, and if we have environmental problems, if you have environmental concerns about data centers now, you do not want that to happen. That is the absolute worst thing that can happen to air quality. So I can't in good conscience take that kind of risk, even though it might feel good to send a message. You don't elect people to do that ultimately. You might think sometimes you do, but you really don't want that because the implications, I'll be long gone when something happens and no one will think to blame me, but

[06:06:07] I'll be to blame. So that's not a good way to govern. There are legitimate things that this board is doing to try to curtail the growth of data centers in places they shouldn't be and to try to improve this process. This was a transparent discussion tonight, one of the more better ones we've had. We do in fact have a staff member dedicated to this issue who does in fact attend a lot of these meetings involved in this and we've had lots of discussions with county administration and the county attorney about that and we do want to be more part of the process because it does feel like these things are kind of thrust upon us and you're stuck in a bad situation.

[06:06:42] And we're in the same position everybody else is. I don't like some of these things that are happening at all. So that's all legitimate and true, and we should focus on it and do it. And I think we are, honestly. I mean, you look at the regulatory process that we've been on.

[06:06:58] Sure, should we have started earlier? Yeah, we should have. If we had known what we knew 10 years ago, I think we would have. But we are well on that path now. I don't think the answer is just to start picking up substations, especially ones that are really of critical reliability. Now, I'm not going to vote for every proposal.

[06:07:15] I've said that, and there's ones I've already made known from a land-use perspective I'm not okay with, but this isn't one of those, and so I think sometimes you just have to be responsible and cautious. Mr. Crony? Thank you, Chair Randall.

[06:07:30] So, I would like a condition that is mitigating the visual impact along the W&OD. You mentioned that you'd prefer not deferring it, that you would like to do a condition. So to get my support, we need more mitigation along the W&OD.

[06:07:50] What are you proposing? More trees, plants, enhanced buffer? Yes. Well, I think along the frontage of the WNOD trail, we own property right there. Under the transmission line, I think we can put some enhanced bushes that are no more than 10 feet tall, and we can work out the count with staff.

[06:08:14] Okay. So that -- you will do that. Leo, Mr. Rogers, yeah. Thank you. Yes. Yes. Thank you. We have special exception conditions. We can add a condition to the effect that there be landscaping, 10 feet or less, that screens the facility from the W and OD trail.

[06:08:38] Enhanced, yeah. Enhanced landscaping. And so, I'm looking to staff. But if that's the motion that you would make, then we would add that as a condition to the special exception. Do you need to make that as a friendly? Can I make that as friendly? Yeah. Yes, do that.

[06:08:54] Okay. Supervisor on side, would you accept that friendly? I do accept that. Thank you. Professor Kirschner, do you accept it? Professor Kirschner, would you accept that? I would. Okay. Okay, thank you. Thank you very much. I want to mitigate that. Ms. Bricksman?

[06:09:09] Thank you. Just to clarify, which customer is your priority when there is an overload? Is it the residential customers or is it the data center customers? I think by law, your customers that you have to serve when there's an overload are the residents.

[06:09:28] Correct? So if an overload happens, data center customers would be switched off first to save the grid. Right. So when you have to relieve the load, it's forcing the data centers to go on generators, not forcing the residential customers or businesses into a blackout or brownout.

[06:09:55] Well, I think it depends because of the degree in which the load relief is needed. As John was talking about -- Okay. That's okay. I'm on limited time. So maybe I guess is the answer, right? I thought your priority as a utility was the residents, always.

[06:10:12] So the priority is to make sure from a transmission perspective that we prevent cascading outages. And you do that by mitigating the relief that's needed by PJM. If you get that through data center customers, then yes, it can stop there. But that may not be the case.

[06:10:28] Okay. The unexpected does happen. Okay. And when you say you have to relieve the load, it is because of data centers right now, right? When you have to relieve the load, it's basically because we have so many data centers. Well, for right now, it's because it's a spring season, and most generation is offline for maintenance, and we have a really hot day that's unexpected.

[06:10:51] I got you. Okay. So we're in an emergency issue today and yesterday because most of the generation is offline, and a lot of the transmission is out for maintenance. Okay. I'm not going to support the motion. I will be voting no on it for these reasons.

[06:11:07] The proposal is proximate to the W&OD Trail and the future Cochran Mill Road, and the proposed screening would not sufficiently mitigate visual impacts to the W&OD Trail and future Cochran Mill Road. The proposal does not adequately mitigate environmental impacts to the forested area or floodplain areas.

[06:11:28] I just -- I can't support it at this point. And to what Supervisor Letourneau said about this not being a visual impact, people on the W&OD, people, hundreds and hundreds, thousands of people are on the W&OD every weekend and every week.

[06:11:43] And the visual impacts are horrible, honestly. I would love to see Dominion go and get rid of all the mesh fencing and put in some nicer screening walls and some nicer buffers and some more of the, you know, extra walls outside of your security walls.

[06:12:03] But I'll be voting no and I'll probably be voting no on a couple other data centers coming in front of us. I'm sorry, substations coming in front of us. Thank you. Mr. Kirshner. Thank you, Madam Chair. I had a follow-up question. I think you mentioned something about a lot of the data center load is in Loudoun because of AI, but my understanding has always been, and maybe you can correct me, my

understanding has always been it's largely cloud-based here in Prince William and mostly AI is in Texas and other places.

[06:12:35] Is that correct? Just to clarify, I don't think I said that. Okay. I think Chair Turner said that. Oh, Chair Turner said that. Okay. Yeah, that's what I -- but is that your understanding or don't you? You may not know that. You guys are providing the power. Fair enough. All right. Yeah, so maybe I'll ask the Vice Chair Turner offline because that's my understanding.

[06:12:54] Anyway, with that -- I was probably half sleeping. Anyway, with that said, I think these applications are always hard. You know, in a perfect world, we'd find the perfect place and we'd put this substation in the perfect place and we screen it perfectly and set it in the perfect spot and, you know, then there would be no controversy.

[06:13:11] But unfortunately, we -- as Supervisor LeTourneau said, we find ourselves in this world where we have a lot of power demands and in large part because of our data centers. Obviously we all enjoy our hand-helds and our computer equipment and all the things that -- and we happen to be central here in Loudoun County and I think Dominion is trying to do the best they can.

[06:13:34] I appreciate Supervisor Tacroni's motion, happy to support it. Thank you as the applicant for being willing to put the additional screening on. I'm not sure there's much more you can do from my review of the application to increase the screening and whatnot.

[06:13:50] And listen, I live right next to big old power lines coming right off the W&OD trail right by my house. I get to see them every day. Not my favorite. If I had my preference, I would move them, but I also understand the critical nature of them to continue to provide our world and allow us to compete in the world here in Loudoun County and elsewhere.

[06:14:10] So these are tough situations. I think Supervisor LeTurne was right. We are, you know, taking on an issue that a lot of the residents have brought even to our attention. Maybe it's a little late in the process at times, but deciding to say, hey, we're getting, We're just not going to approve critical infrastructure requirements like substations.

[06:14:34] I think obviously is a very dangerous place to be and it is bad governance. And so from a land use perspective, this seems to be as good application as you're going to get. And so I will support you even though I do, of course, with, you know, I wouldn't even say with hesitancy, but just, you know, I wish we could make an easier decision.

[06:14:54] These are just tough decisions. I'm sure you guys, where's the right place to put some of these is a tough decision as well. but thank you for all your hardware. I thank you for all the residents who came out as well. And I appreciate your concern. And this was, this did go through a fairly public process. I don't know if there's more Dominion can do in the future to talk to the neighborhoods around, 'cause I did hear several comments and complaints tonight that they didn't feel like they were involved in the process, but maybe that's something you take back to your board.

[06:15:16] Thank you. - Thank you, Mr. Vice Chair Turner. - Thank you, Madam Chair. This is incredibly frustrating. And I sympathize with the Dominion team, because I know it's frustrating for you as well. We're sitting here as a board, and for the first time I heard, I don't want to put words in your mouth, but I heard Dominion say, candidly, we don't know if the infrastructure plan that we have is going to be enough.

[06:15:42] I don't think that's surprised anybody. We don't either. The demand from our existing data centers that are ramping up with more reliance on AI is exponential. And what bothers me is, as a supervisor, I'm sitting here, I have constituents that are saying, don't approve any substations because you're approving more data centers.

[06:16:04] No, that's not correct. What we're approving is greater reliability on the existing grid. And oh, by the way, stop using your cell phone if you're not happy. And you can't say that, but that's really what's going on. My personal feeling is our grid is constrained. There is simply no way that we can build out of the projected demand that's coming to this grid.

[06:16:26] And yet, here I am having to vote on a substation, which I understand and have understood since the summer of 2022 or September when you guys mentioned the reliability grid. The Aspen substation is critical for the near-term reliability standards that Dominion is trying to maintain in Loudoun County.

[06:16:44] It's critical. And yet, if I vote yes on the Aspen substation, every constituent I have is going to say, you just voted for more data centers, which I'm not doing. The thought has gone through my mind, if we voted down every single substation, it would require dominion against the law to have to go to the data zones and say, you're not going to get all the power on your ESA that we agreed to.

[06:17:09] We can't do it, or we're going to black out the grid. And I'm thinking to myself, why don't we precipitate that? If that's where we're headed anyway, why don't we go there now and stop approving substations? I agree with Supervisor Leuterno. That's an incredibly irresponsible thing to do because it is about real-term reliability right now.

[06:17:28] And he's right. The data centers will go on backup power. All of these things are in the mix. It's incredibly complex. And I'm sorry, I'm not going to stand up and say, and to the comment that I heard in public comments tonight, and this happened on your watch. No, it didn't. It happened on the board's watch in 2020, 25 years ago.

[06:17:47] No, not 2020. It was 5, 6, 6, 7, 7, 8. No, not 2020. 20. I'm surrounded by math experts. Okay. The point here is through, I don't believe anyone's fault. Um, we, I mean, we did not have people coming to board meetings, screaming about data centers five years ago. We, it, there were complaints, but it wasn't as bad as it is now. I'm really in a quandary here. I know this is needed for reliability. And I know that if I vote yes, I'm going to get hauled over the hot coals. And it's very, very frustrating because voting yes won't solve the problem. Voting no is not going to solve the problem. I don't know what I'm going

[06:18:25] to do. Thank you. Is there such a thing as brownouts? Is that a real thing? I keep hearing we have brownouts and blackouts. Is brownouts even, what is that? I'm not quite sure. I mean, the lights are either on or off. Yeah. People keep saying we're going to have brownouts. I don't know what that's supposed to mean. I don't think brownouts is a thing, right? I don't, I think.

[06:18:50] It's not, though. It's not a thing. There is a program called Rotating Blackouts. Is that what it brought around it? Maybe that could be termed, but... Which is, like you said, lights are on or off. It's not like the lights are dim.

[06:19:06] Texas had to do it when they went to a blackout. Right. They had to do rotating blackouts. Okay. So that's not a thing. I know, but that's not... There's a lot of things on the Internet that's not true, believe it or not. you're going to be shocked by that. I think my frustration is the statement, this is my frustration,

demand is doing the best they can. I don't think you are. I think you're doing what is required, but I don't believe with respect that you really have

[06:19:44] worked with us in the most collaborative way. I, you know, I kind of come to this position often saying, you know, I'd like to get to yes, let me see if I can get there. And I feel like Dominion is like, nope, almost all the time. And even when I say something like, can I have, is a green wall possible? Your response is, well, we can't have anything that's a climbing wall.

[06:20:15] Well, obviously, I'm not saying put a ropes course on the wall, right? And so even when we give ideas, you all take it, like, to this other almost ridiculous point. So I don't know what – Mr. Turner, you know, when they say, like, what is responsible?

[06:20:32] Well, obviously, I don't want the grid to be overwhelmed. I don't want people to have blackouts because brownouts are not a thing. I don't want anyone to go on generators. I don't want any of that to happen. I also don't want to give the indication that I believe Dominion is, I don't believe it being a particularly good neighbor, to be quite honest, in this way.

[06:20:58] I will ask you to do one thing, and that's to clear something up. It was me at the last meeting that asked, is this for new development? And the answer is yes. As Mr. Letourneau's words, you all kind of walked that back some. Can you further explain, because when you just said yes, like, you know, I said, is this for existing capacity or capacity layer?

[06:21:21] And you all said it's not for existing capacity. It's for new capacity that's not online yet. Can you kind of put some more statement around that? Because it wasn't really correct, and a lot of constituents responded to that.

[06:21:37] Can you help all of us understand that a little better? Sure. So I think, again, I think it's a distinction in how we talk about, in transmission capacity sense, future growth, meaning each year, PJM takes a load forecast from all of the distribution companies, right?

[06:21:56] So transmission serves Novec, and it serves Dominion Distribution. They all do a forecast and give it up to PJM on a yearly basis. They go through their methodology, and they put that out. On the Dominion forecast, we take what we know since we have history with data centers, how they ramp.

[06:22:14] And so a project that was approved back in 2020 and is under construction and gets their first meter set in 2024, for instance, whatever, they're going to take four to five years to ramp up to maybe 300 megawatts. So our load forecast takes that into account.

[06:22:32] And so when we think about new load, that is new load, although it's not in a new approved customer, if that makes sense. So I think it's just a distinction of how we sort of think about it from a nomenclature perspective and how Dominion talks about it in a planning sense versus how I may say it in my home life.

[06:22:52] And so, again, without approving a single new data center, we know from the load forecast that Loudoun County is going to add 2,500 megawatts of capacity without doing anything. We can just sit here and wait for 2028 to come here, and then it's going to grow anyway.

[06:23:11] And so that's what we're trying to relieve with these projects. And, again, these are not proposed projects. They've been fully adjudicated through the PJM process and through the State Corporation Commission process. Yes, we have some other ones being heard and through the process

now, but Aspen to Golden, Golden to Mars have been approved, or Golden to Mars is conditionally approved.

[06:23:32] But in any case, they've been through the process that said these lines are needed. PGM picked them through the competitive process through a whole host of other transmission owners to put together solicitations. These were the best of the best. Are they perfect?

[06:23:48] They resolve all the issues in 2028. Do we know they come with impacts? Yes, we do, and that's why we try to minimize them, and that's why we have a process like we do. I know we talked, we had a meeting in 2021, early 2022, where we outlined this whole plan because we knew it was coming.

[06:24:06] Some of it came a little bit later than we anticipated, meaning from like a process perspective, but we outlined the loop back in 2022. We talked about the issues that we knew were going to come in 2025, 26, 27, 28, 29. Did we know back in 2022 that we would have an HVDC project to relieve all the constraints that were happening in 2032?

[06:24:28] No, we didn't. But the grid is dynamic. It's not static. The same way that it adjusted after World War II when we had the Industrial Revolution is the same thing that we're doing now. It's just a different time. But we're seeing load growth more than what we saw just after World War II.

[06:24:44] And so the grid is dynamic. It has to. The way we consume energy is different each and every day, and the grid should be dynamic in that. I just want a quick final clarification. I think you meant 2005, not 2020. So you said 2020. Well, that wasn't 20 years ago.

[06:25:08] Okay. 2000. 2000. Okay, 2000. Okay, 2000. He meant 2000. Okay. All right. The motion was made by Supervisor Umstead, seconded by Supervisor Kirshner. All in favor, please say aye. Aye. Opposed? Aye.

[06:25:23] If you're a nay, raise your hand. One, two, three, four, five. Wait, raise your hand. One, two, three, four. No, that motion will pass, five, four. With Supervisors Bricksman, Glass, Sains, and Randall voting, know that motion will pass.

[06:25:42] Thank you. Thank you. Okay. Who's calling me and calling me and calling me? Yeah, but not in this phone. Motion of 14. Oh, we're going to go to barrister? Okay, we're going to go to number 14, because Mr. Sainz said it's going to be simple.

[06:26:01] We're not going to go to 14, even though it's simple and easy. We're going to go to the grant motion because there are people sitting in the audience for that. Lots of people, and they want to go home. So could staff please come to the table? 1G. 1G, yep.

[06:26:19] I did send a motion out today on this item. Either today or yesterday. Was it yesterday? So, Supervisors, does anyone need this?

[06:26:36] Does anyone need this? Okay. All right. If I go to a motion, I'm going to go to my motion. Okay. All right. I'm going to my motion then. Okay. Can we do this first? Okay. I move the recommendation of the Finance, Government, Operations, and Economic Development Committee

[06:27:07] that the Board of Supervisors approve -- this can't be right. Yeah, \$3 million. This is I thought this was the gap money. I was like, that's a lot of gap money. \$3,953,000 in grant funding for the human services nonprofit organizations in the amount shown in attachment one and two of the May 19, 2026 Board Supervisors Business Meeting Action Item.

[06:27:33] I furthermore the Board of Supervisors direct the county administrator to allocate an additional \$560,187 from fiscal year 2026 fund balance to fund all organizations who met the funding threshold of 75% in the fiscal year 2027 Human Services Nonprofit Grant Program. I further move the recognition of the Finance, Government Operations, and Economic Development Committee and the Board of Supervisors' direct staff to notify funded applicants and process the payments for fiscal year 2027 grant funding pursuant to the respective grant funding agreements starting July 1st, 2026. I further move the

[06:28:12] Board of Supervisors direct staff to prepare a fiscal year 2028 budget development item for review by the Finance, Government, Operation and Economic Development Committee of the Board of Supervisors current policy for developing the overall funding amount for the program and consider any changes that may be appropriate to recommend to the Board.

[06:28:32] Second. Motion made and seconded really quickly by Supervisor Sayings. My gosh, that was fast. Okay, so I want to say many of the things that I said the other day in the Finance Committee. One, we are starting to constrain our budget, because we have to.

[06:28:50] We have a lot of, actually, federal government policies that are having an outsized negative impact on the Washington metro region. And we don't know what we're going to be looking like in two, three, four years. And so, we are moving toward what was a 13 percent growth, then 11, now 9.

[06:29:13] And in the next two to three fiscal years, it will be down to 5, which means it will be very hard, if not impossible, to keep funding the gap. Even out of fund balance, it would be hard to keep funding the gap. The hard thing is, you know, right now, our nonprofits need it more than ever because of what's going on at the federal government and how much money has been lost, yet it's still going to be hard to keep funding the gap.

[06:29:40] Having said that, if we're going to fund the gap out of next year's budget, and the nonprofits are saying, "We need this right now," we'd just as well do it out of fund balance and get it done right now, and then send this to the Finance Committee so we can discuss how we want this to look going forward.

[06:29:59] I don't think anyone can say that this board and the last board hasn't been very leaned in to our nonprofits, because we have, and we should, and we should continue to be. Our nonprofits, as I say all the time, are a force multiplier. That doesn't mean we can continue doing it at this rate.

[06:30:20] It's just not sustainable unless we literally raise our tax rate. And if we do that, then we're hurting the very people that nonprofits are trying to help. So there's this kind of churn all the time that's going on. One thing I'm really happy about is that the staff is also saying to the nonprofits, you can also go here to look for grant funding, that we're saying to our nonprofits, is there anything that can be combined?

[06:30:51] Like how many backpack programs do we have and can they be combined and that type of stuff, those types of things. So we're going to try in every way possible to make sure our nonprofits get what they need, although it may not always be to the level that we're doing this right now.

[06:31:08] So I know the need is great and immediate because of what's going on federally. So we do fund balance. I don't think this is sustainable forever. We will go to finance and have a discussion on what our long-term plan is going to be and how that's going to look.

[06:31:25] We have put, what is it, Mr. Hemstreet, \$3.5 million more in the grant funding, in the grant bucket, which is a huge amount of money needed and used well. But if we're going to restrain our budget, and we are, it's just not going to be sustainable forever.

[06:31:42] So, anybody else? Nobody else? All right. All in favor, please say aye. Aye. Opposed? That motion would pass 9-0. Thank you all very much. I have a motion. You know, do you want a motion or do you want to just I'm going to move to reconsider, which I can do.

[06:32:04] Well, I didn't say you couldn't do it. I don't even know if it needs to be all that, though. You might just want to say you want to change your vote. Mr. Rogers, Mr. The appropriate thing to do since the vote's been taken would be a motion to reconsider.

[06:32:22] Yeah. But what we just did. For Aspen. Mm-hmm, for Aspen the Golden. He is serious, and he has every right. He's serious, and he has every right. Now, the problem is, did they all just leave the room?

[06:32:38] Not you. Dominion. Dominion, yes. Mr. Turner, can you reconsider at the next meeting? It's still going to be allowed? You don't want to do that? Okay, because I'm just asking, because they've left the room.

[06:32:55] I'm not making the motion for them. I'm making the motion for you. Okay, okay, all right. You can make a motion. You could move to reconsider and then put it off to the next meeting if you would like to do that. To what purpose? Because it gets them back in the room.

[06:33:14] I mean, Joe is pointing to something. Oh, you're still here. Well, oh, because of barrister. Okay. Well, gosh. Then, yes, make a motion to reconsider. Madam Chair, I move we reconsider the vote on the Ashman substation.

[06:33:32] I was— Ms. Bricksman seconded that. Discussion on a motion to reconsider. I voted. As I said, I'm pretty torn on this. I voted yes because of Supervisor Letourneau's compelling argument that this has to do with reliability. The problem is it always has to do with reliability. We're going to be here 10 years from now, and we're going to be making these votes that kicks the can and continues this process because we can't make a stand, because our hands

[06:34:03] are tied. And so as I think about it, maybe now is the time to make the stand. I understand how turbulent this is. I understand how, from a pure grid reliability standpoint, how bad this is. I get that. But I am tired of being backed into a corner and not consciously and adequately addressing the phenomenon that we have going on right now. This will precipitate that kind of a serious discussion about what's going on. That's why I'm doing this. That's why you're making the motion to reconsider. That's why I'm making the motion to reconsider. Motion to reconsider. Motion was made

[06:34:42] seconded by Ms. Bricksman to reconsider. All in favor, please say aye. Aye. Opposed? Aye. Okay, if you're a nay, raise your hand. All right, motion to reconsider was five. I don't know what your hand just did. You're a nay? You're a nay. No, no, I don't know. I'm not saying, I just don't know what you're, I can't, I don't know what's happening there. Are you, it's okay if you're in there. I just don't, I just didn't, I didn't know if you, I don't know what you're doing. So when we're saying that Vice Chair Turner wants to reconsider, we're, we're voting to say yes for him to

[06:35:22] reconsider or no, and then go vote the next. No, he's going to reconsider right now. No. And then vote tonight. Yes. Okay. Okay. All right. You're a yes for him to reconsider. So So the net will pass 6-3,

the reconsider.

[06:35:43] That's what I'm, because I hear Mr. Umstead, Mr. Kirshner, and Mr. Letourneau vote no on the reconsideration. You are yes on the reconsideration. Okay, all right. Mr. Turner, do you have a motion to reconsider? I do, Madam Chair. I move that the Board of Supervisors deny LEGIE 2024-0038 Aspen substation, specs 2024-0054, specs 2024-0055 based on the following findings of denial.

[06:36:12] The proposal is proximate to the Washington Old Dominion Trail and future Cochrane Mill Road and the proposed screening even as admired, even as modified would not sufficiently mitigate visual impacts to the WNOD Trail or future Cochran Mill Road, and the proposal does not adequately mitigate environmental impacts to forested areas or floodplain areas.

[06:36:32] Second. Motion's made and seconded. Discussion on the motion, Mr. Turner. I think I've said what I need to say. I have nothing else to say. Anybody else? Mr. Letourneau. I do not believe the findings for approval are legally sufficient.

[06:36:50] Disapproval are legally sufficient. Mr. Rogers, would you like to comment -- I'd like you to comment on that. Madam Chair, if you wished for me to comment, I would prefer to do so in a closed session. Okay. So that's—and that is the answer I need.

[06:37:07] Then we can—we can vote, Ms. Umstad—well, just give me a second, because I'm trying to think.

[06:37:23] Robertsville's 404 will fail the motion, and we can still go—we can vote, I can abstain, it will fail the motion, it means nothing, we can still go to closed session. That's probably what I would do right now. Ms. Umstead?

[06:37:41] Because I want to go to closed session. If and when we go into closed session, I'd like to hear the county attorney's opinion about whether in a situation like this, the State Corporation Commission could preempt the local land use authority of the Board of Supervisors.

[06:38:05] Mr. Kirshner? Yeah, I'm obviously not going to support this. I will say that for a host of reasons that I'm sure our council will inform us about and other concerns that I have, including what Mr. Letourneau said, I'm not going to be—when we start having—and brownouts, by the way, Madam Chair, is a real word.

[06:38:28] I looked it up. I didn't say it wasn't a real word. It says it's a real thing. It's a real thing. It's actually a real thing. It's when they reduce the amount of power. When we when when the generators start kicking on because we start denying these applications and we start having rolling blackouts and brownouts In the near future And again, like you said, you're not gonna find the perfect location. They've screened as if it could They're not pointing at me. They're pointing at those of you who are voting no on this. So yes, I should say The motion is to deny it

[06:39:09] Yes, yeah Yeah, and seconded by Miss Brixman um no no because i'm not going to go in closed session tonight because we didn't advertise for closed session tonight yes mr pricksman i i guess if i may comment yeah thank you um so i had asked staff for findings for denial and was presented with the motion that supervisor turner just made

[06:39:45] um i wasn't going to make that motion because it's not my district but i wanted those findings for denial so that i could vote no on the motion um I would assume that since it is a motion that staff

wrote, it passed clearance with our legal department.

[06:40:02] So, I don't know why that motion would have been given to me if the findings for denial weren't in legal form. Thank you. I believe that our attorney said we need to go into closed session, and that's what I would let happen. I have no statement about legality or not legality.

[06:40:20] I would just do what he said. The motion was made by Supervisor Turner, seconded by Supervisor Rixman. I do want to hear what our attorney has to say, so all in favor, please say aye. Aye.

[06:40:36] Opposed? No. And wait, if you're opposed, raise your hand. And I will abstain, because I actually want to go into closed session. So that motion would be 441, which fails the motion. You guys are good.

[06:40:56] You're confused, huh? It's exactly, it's failed the motion, exactly. until we go and then Mr. Rogers can we put that on a closed session for the next business meeting you want to go to the next business meeting with that closed session we can't well we have another closed session tonight that we are going to do I can do that tonight I could absolutely do it at the next meeting you and do it tonight guys no I don't either I think I really I think in the next

[06:41:30] clarification ma'am no it's not yeah it would be the next business meeting yeah yeah that's fine point of clarification yes rogers mr rogers does the 5-4 vote to approve stand since the reconsideration failed no the reconsideration didn't no we reconsidered and then i made motion to deny that failed but the original motion to approve still stands at 5-4 no you did a reconsideration. We did a reconsideration. You avoid that. I'm sorry. Mr. Rogers. When you do a motion to reconsider, it brings the matter back onto the board's agenda and that anything can be

[06:42:09] done at that point to the motion. Thank you. So Chair Randall may ask a clarifying question? Yes. So then are we forwarding the item, both the action item and a closed session to the next board? Yes, we are. Thank you. All right. Barrister, would you like to make a motion, Mr. Sains?

[06:42:29] Yes, ma'am. I'll go to a motion. We can speak within the motion. So listen carefully. I move that the Board of Supervisors ratify Leji-2025-0010 Barrister Substation CMPT-2025-0004 subject to the commission permit plat dated April 15, 2026, and based on the findings for approval provided as attachments one and three to the May 19, 2026 Board of Supervisors business meeting action item.

[06:42:58] I further move that the Board of Supervisors forward Leji-2025-0010 Barrister Substation Special Exception 2025-0021 and Special Exception 2025-0023 to the July 7, 2026 Board of Supervisors business meeting for action.

[06:43:19] Second. Just because I want to know what you want to say. Thank you, Madam Chair. I'm approving the commission permit tonight, but sending the two special exceptions to a future business meeting to work with the applicant on some, as we discussed before, for this application on the wall structure, color, et cetera.

[06:43:40] We received an email, I believe, around 5, 45, 6 o'clock yesterday evening from the applicant with information that we all have not seen until that email was sent out, which I think is a little too close to this meeting, where we have three different substantial wall colors that we could choose from.

[06:44:01] They also have enhanced screening that we could look at. There's a few different options to review and select. So I'd like to speak with the applicant and talk to my colleagues about the options that

were presented in that email that was sent again yesterday around 5:45, 6 o'clock in the PM, and see what we could do for some of the concerns that have been addressed or raised from the last meeting and some of the concerns that were talked about earlier in this meeting.

[06:44:31] Thank you. Okay. Anybody else? Good job. All in the field can say aye. Aye. Any opposed? Great job. We're going to go to item 1A, and it's the PLA that I think we all know, and I will just make the motion if we are on the item. Are we on the item? Item 1A. Okay.

[06:44:56] I move the recommendation of the Finance, Government, Operation, and Economic Development Committee that the Board of Supervisors direct staff to proceed with a pilot project labor agreement for the construction of the Adult Detention Center Phase 2 project and the Route 15 widening project from Battlefield Parkway to, I'm sorry, to Madrasa Road.

[06:45:14] I further move the recognition of the Finance and Government Operations and Economic Development Committee, the Board of Supervisors direct staff to update the Finance and Government Operations and Economic Development Committee on the status of the two project labor agreement projects every six months or in the event of a significant issue with the project labor agreement process.

[06:45:30] Second. Thank you. Motion made and seconded. So, a couple things. One, the people that came and spoke tonight spoke about what I've come to call the horizontal project, not the vertical project.

[06:45:46] I will say that I am more curious about a PLA on a horizontal project just because there's not as many different industries.

[06:46:01] So a vertical project, you will have elevator operators, you have electricians, you have plumbers. You have all these things that for PLA, that makes more sense. Arizona projects don't really make as much sense in that way, but I do -- oh, guys, come on.

[06:46:23] I do want to see what could work. We put this -- we put this -- these -- I lost my train of thought now. We put these pilot programs into place, I think, three years ago. I think it was three years ago.

[06:46:39] And we are just now getting to a place, for all kinds of reasons, excuse me, and we are just now getting to a place where we're actually even voting on doing one, which is not good to take three years to get to one, to get to a pilot project.

[06:47:06] So I heard the report from the RAND Corporation. I can pull up 20 reports to say something different. I can. And so that's why we do a pilot project, to find out what we know and what we don't know.

[06:47:24] So I do want to thank my chief of staff, Matt Rogers. I want to thank Mr. Crony's chief of staff, who at the time was Ms. Umstead's chief of staff, for really, really doing a great job pulling together the white paper on this information.

[06:47:43] You know, I'm going to be curious to see what comes back and how it comes back. I will say that I have had developers who have said, you know, I don't know why you guys don't have PLAs in Loudoun. I would definitely work for PLAs. So I've heard this both ways and all ways.

[06:47:58] And so that is why they are pilot projects, and I am absolutely in support of them happening and finding out what happens when they come back. Mr. Kirsten? Thank you, Madam Chair. I'm going to ask a few questions within the motion.

[06:48:14] So I'm really, really concerned. I'm going to be quite frank with you, putting PLA on Route 15. One, none of our surrounding counties, as I understand it, ever use a project labor agreement for roads.

[06:48:31] Is that correct? And so here we're jumping into a road project, and it's such a—is that correct? To my knowledge, correct. Yeah, and we're jumping into a road project with something that's fairly experimental for us. We have no idea this is going to get, quite frankly, bid out in a timely manner.

[06:48:47] And one of the criteria is a flexible schedule. I will tell you, quite frankly, the constituents of Loudoun County up and down the 15 corridor do not have a flexible schedule. If you look at the letter I sent to my fellow staff, my fellow supervisors, the Battlefield Monastery Project, which is what's proposed here, was originally budgeted in 2019, estimated completion in 2023.

[06:49:10] And we divided it to hurry it up. And this is no fault of staff. They're working their best. I just think by not allowing this to go through a normal bid process, which we are used to, it is just going to continue to delay this even more. So I'm going to ask here at the end of this either to do a separate motion or to remove this portion of it.

[06:49:28] But let me ask the staff a couple questions. Provide the motion. Might as well do it now. It's fine with me. And I will. But let me ask staff a couple of questions. When you chose 15, the only reason I saw in the actual item was in large part um it didn't have any federal funding and the other projects you said would would be good projects over 35 million i think it was maybe had some federal funding but have any of those other projects that you looked at been delayed as long as route 15 and it's significantly large as route 15 and has as much congestion as route 15 i can speak to a little bit of the history when this

[06:50:06] project whenever the topic came up in 2023 and staff was asked to look for uh road projects The Route 15 segment was originally proposed because, as you mentioned, staff originally thought it would be bidding sooner. And the other projects we compared it against at the time, although they might have had a slightly larger budget, they were predicted to go to bidding later on.

[06:50:28] All right. So why are we? Okay. So we're picking the one that we need to be bid, even though it's been delayed now almost seven years. That really concerns me. Flexible schedule. What made you think that one of the two criteria, that 15 had a flexible schedule or it would have a minimum impact on the community or did we really review that?

[06:50:45] So the flexible schedule comment or criteria applied to both road projects and facilities with a primary focus on facilities. That criteria was primarily applied when we were looking at facilities that if they had a slightly delayed opening, it wouldn't have a critical impact to the community.

[06:51:01] So maybe not as applicable to road projects. When evaluating all of the road projects in the CIP with DIT leadership, they basically all were looking at similar impacts to the community. All right. Well, Madam Chair, I'm out of time, but I would move to split the two and just ask that we look for another project or at least delay the including of this.

[06:51:19] All right. The motion to split the two is automatic. So Mr. Kirschner has made a motion to split it. And so the first motion is just on the -- well, the first motion is actually on the Battlefield project and the second motion will be on the project labor agreement. So let's discuss the first motion right now. And so the motion is still on the table that I made. And who did second this?

[06:51:47] Who seconded this motion? Ms. Brickson seconded the motion. But the discussion right now is just on number one, with part one, which is the Route 15 widening. So discussion on that part of the motion, just the Route 15 widening. You want to do the Route 15 first?

[06:52:02] Yeah, because it is first. Yeah, so discussion on Route 15, and you just had this. That's why I told you to split it before, because you just talked through it already. Well, I did, but I have a couple. No, no, no, no, no, no, you just talked through it already. That's why I said. So I don't get to talk in the split. No, that's why I said, do you want to split it first? That's why I said that.

[06:52:19] That's literally why I said that. Ms. Umstead. Thank you, Madam Chair. In general, PLAs are negotiated by the developer and the trades.

[06:52:36] And so it's not quite as black and white, I think, as Supervisor Kirshner may believe. And on Route 15, I think tonight we heard from a gentleman who was advocating that we not support a PLA.

[06:52:55] He said that the schedule is set by the contractor, not by the union. So if we have concerns about scheduling, that's not going to be a union decision.

[06:53:12] And if the project fails, it is often the results of failure by the contractor. So a PLA provides a workforce, not a specific contractor.

[06:53:29] For these reasons and many others that many of us have said over the years, I'll be supporting this tonight. Thank you. Mr. Crony. Thank you, Chair Randall. So I saw in the item that we have a consultant to assist with the PLA pilots.

[06:53:50] Is that true? That is correct. we hired a contractor last year, I believe. CCMI is the consultant. They're assisting us with reviewing our bid language and also working with us to use a platform that we would leverage once we award the contract for the PLA to help us track metrics that some of the board members had requested previously regarding workforce geography, where the subcontractors are coming from, where the workforce is coming from, et cetera. Will it help ensure that the project meets deadlines and this is completed on time? Is that part of it too? That is not part of the

[06:54:27] consultant's responsibilities. The consultant's responsibilities are literally just related to the review of the PLA requirements, adherence to those PLA requirements, and then any deviations. Okay. We would leverage our existing provisions within our contract to enforce timely delivery.

[06:54:44] Okay. So the contractor would be responsible for timely delivery. Okay. And do you see the costs increasing with the PLA or what? Or would it be the same? Because it sounds like it's a competitive bid process anyway. We're still going to leverage a competitive bid process for both of these projects, if so, directed by the board. At this time, we cannot predict what those cost increases may be. Okay. But it's a competitive bid process. That's correct.

[06:55:12] Okay. Thank you. Mr. LeTurneau. So it's more accurately a less competitive bid process because most contractors will not bid on the project. So when there's less competition, then there'll be higher prices coming in because there's less competition. We already know, because we've already heard it, and it's simply a fact that the vast majority of workforce will not qualify to bid on these Loudoun County projects. Virtually no workers in Loudoun County will. We know that. The Union Hall is in Ashland and Upper Marlboro, Maryland, and that's where they're going to have recruit from for these projects so this is a terrific jobs program for non-virginians but it

[06:55:50] is absolutely not a good thing for Loudoun County from the standpoint of our own workforce from Northern Virginia workforce Virginia Trades and all of the companies that operate virtually all of them who do work for VDOT who do work for other jurisdictions who are just simply not in this space. We also heard that Loudoun County has strong prevailing wage provisions already, so this is not a question of what we're paying anybody. The cost increases that come from a PLA are on the administration of the PLA. You're paying for just nothing. You're not paying for

[06:56:29] product. You're not paying for actually producing something or building more or putting more payment out. You're paying for administration. That's what you're paying for, and that's why the costs are higher on these things so this truly makes no sense it's particularly egregious to do it on Route 15 because number one it's I do believe they'll probably be bids on the ADC project I have no idea if there will be on 15 because so few road contractors do this kind of work even if they do it won't be the ones that we're used to working with because they won't do it and then as Mr. Kirscher said this is a very delayed project that's had all kinds of issues as

[06:57:06] it is and introducing a complexity and anybody can say whatever they want there is no arguing that this is a complexity it absolutely is there's a reason why we've tried this once and failed and how to pull it back because it's complex they'll probably be legal challenges I mean there's already been one to a previous one and there are concerns about the legality of this in the first place so look I mean doing this on 15 I'm glad it's not in my district but I feel sincerely bad for Mr. Kirscher that we're going to impose this on him because we really shouldn't

[06:57:38] that is not why I'm sorry Mr. Mr. Turner thank Madam Chair um I found your compound your comments compelling um as you said for every argument you can find four you can find another argument against and I want to see how this works and I was I was about to propose that we pick off a segment of the Route 15 and then I read the actual uh motion and it actually is a segment Battlefield Montessor Road. So I think it's a chance for us to see for ourselves and draw fact-based data on how PLA

[06:58:13] would work in Loudoun County. And if it begins to become a problem, then we'll figure an option out to take care of that problem. And frankly, it puts the onus on labor. Make this work. Figure this out and make this work. Deliver this project under budget and before the deadline. And prove the point. And I think this is a great chance to try that. So I'm all for it. Thank you.

[06:58:39] Thank you. So the issue with the PLA we've had already wasn't on a road project at all. It wasn't even on a vertical project. I mean, a horizontal project was on a vertical project and had nothing to do with this, nothing at all. So that was not quite an accurate statement. You know, again, I think I'd rather see PLAs on vertical projects than horizontal projects. And we'll see how this works. I think Mr. Turner is right. The onus will be on labor. And truthfully, this doesn't have a PLA on it. And so you cannot blame any of the issues so far that's happened in

[06:59:16] this road on PLAs at all. And so let's not confuse things. So it is a pilot. We will see. If I had to guess, I think we're going to come back and find out that they work better on horizontal, I mean, better on vertical than horizontal, but we'll see. And that's why it's called a pilot. All right. All in favor, please say aye. Aye. Opposed? No. That motion would pass 7-2. Now, the next motion, again, would be for, because you split the

[06:59:47] motion, for the expansion at the ADC. Same motion stands. I made the motion. Mr. Bricksman seconded the motion. Any discussion on this motion, on this part of the motion? I'll just say aye opposed

that motion would then again past seven to two. Thank you very much Superbusters if you have someone if you have a a Nomination, please put your light on miss Bricksman. Thank you, madam chair

[07:00:22] I nominate Amanda Baulig to the a dwab qualified nonprofit housing group representative. Thank you Mr Laterno, I nominate Tony Stafford as an at-large representative on the economic development authority Thank you.

[07:00:39] Anybody else? All right. Let's quickly do, if we can do it quickly, board comments and then go back into closed session. Board comments. Let's start with Supervisor Bricksman. Thank you, Madam Chair. By way of disclosures, on May 8th, I had a phone call with Charles Yudd on the Valley Commerce Center application.

[07:00:56] On May 11th, I had a call with Aaron Swishelm and Ron Meyer on the SDC Ashburn application. On May 18th, I had a call with Dominion on the Aspen and Barrister substation applications. On May 18th, I had a call with Matt Leslie on the Novick Demos substation application.

[07:01:14] I very much enjoyed the Philomont Fire Station groundbreaking in Percival. Was it last week? Must have been last week. I'm very excited to see that coming up out of the ground. I did get an update from the Loudoun County Sheriff's Department on the detainees that they have transferred to ICE from our ADC.

[07:01:34] Here to date, we stand at 139 detainees now transferred to the federal government, based on administrative warrants, not judicial warrants. Related, we have recent data published by the Brookings Institute that indicates 400,000 people have been booked into immigration custody enforcement detention from interior arrests since the administration began its mass deportation project.

[07:01:58] With that, studies reveal that up to 145,000 children have been impacted by losing a parent either temporarily or permanently. Analysis indicates that by age, that's 40,000 between the ages of 13 and 17, 53,000 ages 6 to 12, and 53,000 under the age of six who have either temporarily or permanently lost a parent because of mass deportation. I know we have a lot going on in nation right now that is patently horrific but this is abhorrent and I continue to be concerned that our sheriff's department is aiding and

[07:02:35] abetting this mass deportation effort using county taxpayer dollars. We did have a comment earlier this evening about the hate crime with firearms at a mosque in San Diego. I condemn any sort of violence especially at religious institutions and with that according to the gun violence archive we lost four 4,773 lives to gun violence so far this year.

[07:03:01] Our nation has experienced 151 mass shootings, 306 deaths were children ages 12 to 17, and 82 were children under the age of 11. Thank you. Mr. Crony. Thank you, Chair Randall.

[07:03:19] On May 12th, my staff spoke with Aaron Switzhelm about the SDC application. D.C. application. On May 11th, May 12th, and May 19th, my staff spoke with Jonathan Freeman about the Novak-Demos substation. On May 7th, I met with Greg Mathey, John Mulligan, Jack Story, Dave Boeing, Christina McDonald, Pat Giglio, Tess Lynch, Allison Britton, Kathleen Leonard, and members of Supervisor SANE staff about the Aspen substation. So I just want to give a shout out to Brian Turner and the residents who came, um, from, uh, the Alliance of Communities, uh, for the thoughtful

[07:03:58] presentation in connection with the Aspen substation special exception, I agree with you that we need to establish, um, and explore, I guess I should say explore a new county Department of Energy to

be more proactive with Dominion, PGM, and FERC so we can have an early seat in the planning process. Just listening to the conversations with Dominion about the Aspen substation, I really think more information and being in front of some of these issues would really help us. When I first came into office in 2024, I drafted a board member

[07:04:38] initiative that I actually did not submit, but I did draft it to create a standalone Department of energy and the environment. And I think this would really help Loudoun County, especially since we have the largest concentration of data centers in the world. And I think it really is time to get that expertise in-house and start being more proactive. So I want to thank them for their thoughtful input and recommendation. Keeping on this topic, the Energy Innovation Forum is coming up. It is scheduled on Tuesday, June 23rd from 7.30 a.m.

[07:05:15] to 4 o'clock p.m. at the Belmont Country Club. This was a recommendation that I brought forward in TLUC, and it's to learn about new innovations, what we could be doing to mitigate some of these issues, and also just to be forward-looking. Staff is working with a consultant to finalize the program and there will be more broad public communications and the public is welcome to come.

[07:05:42] So please mark your calendars. Lastly, I will be holding open office hours on Thursday, May 28th from 3 to 6 p.m. at the Kirkpatrick Farms HOA office located on Summerall Drive in Aldi. Little River residents are welcome to drop in, share concerns and seek assistance. I really enjoy meeting all of you. Thank you. Thank you, ma'am. Um, Mr. Sains. Thank you, Madam Chair. Mandatory disclosures. On the week of May 4th, I had a call with Ron Meyer about SDC, um, Ashburn land use application. On May 7th, my staff met with representatives

[07:06:21] of Dominion Energy and Dewberry regarding the Aspen, uh, substation land use application. On May 8th, I spoke with Drew Johnson of Oppenheim regarding data center application in Sterling.

[07:06:38] On May 11th, my staff met with the representatives at DLA Piper for the Quantum Park land use application. On May 11th, my staff met with representatives of Dominion and Dewberry regarding the Barrister substation land use application. On May 12th, I met with Matt Leslie of STAC about the NOVAC DEMO's substation.

[07:06:59] On May 13th, I met with Jonathan Freeman of NOVAC about the NOVAC domain's substation land use application. Thank you to the residents that came out and spoke, shared your thoughts on the applications that are in front of us today. As I always say, you could have chosen to be anywhere, but you chose to be here to say your piece, and we really do appreciate that for sharing your thoughts.

[07:07:20] Once again, unfortunately, we have seen acts of pure evil and violence in our country that took place yesterday at the Islamic Center in San Diego.

[07:07:37] Unfortunately, lives were lost. One member of the security team at the Islamic Center in San Diego did his job and did his job well.

[07:07:54] By all accounts, what he did was able to call ahead and delay even more deaths for those children and teachers and patrons of the center when the security guard did his job and did it well and distracted the two, I'm just going to call them misguided, plain and simple, just racist and prevented them from doing more harm than they ultimately end up doing.

[07:08:32] So I want to thank those who laid down their lives, sacrificed their lives for others. And America, we need to do better. As we always talk about, you know, people are talking about, oh, America's founded on Christian values.

[07:08:51] But actually, we're not. But again, as I've said many times before, if you read your Bible, the golden rule is treat others as you want somebody to treat you and your family. So, again, if we all can hold up to those values, America and this world would be in a better place than what we are now.

[07:09:10] So, do better, America. Thank you. Thank you. Ms. Glass. Thank you, Madam Chair. On May 7th, I met with representatives to discuss the Quantum Park application.

[07:09:30] On May 8th, I met with a representative from Dominion to discuss the Aspen substation special exceptions. May 12th, my staff spoke with representatives to discuss the Ashburn SDC1 LLC application.

[07:09:47] On May 12th, my staff met with representatives to discuss the Concord site plans. May 13th, my staff met with representatives to discuss the Valley Commerce Center application. May 15th, I met with representatives to discuss the Rambleton Community East housing application.

[07:10:06] I just want to thank all of the community members who came out today to speak on the different concerns that they had and those who stayed most of the evening with us.

[07:10:23] Thank you, Madam Chair. Thank you. Mr. Kirsner? Madam Chair, on May 17th I spoke with a Valley Commerce applicant, and I probably shouldn't say any comments tonight. Thanks. Okay.

[07:10:39] It's been a pretty rough night for all of my projects in my district. Thank you. Got you. Okay. Ms. Umstead. Thank you, Madam Chair. On May 6th, I spoke with Chuck Kuhn about the Valley Commerce Center, and thank God I did, because he's the only person, apparently, who wants to talk to me.

[07:11:02] Everybody else wants to talk to the rest of you guys. So, no, he is the only person who talked to me in the last two weeks. I do not have a long list of disclosures tonight. I just wanted to mention that the town of Leesburg is hosting Memorial Day Monday at 10 a.m. at the Charles Houston Courthouse, the old courthouse in Leesburg.

[07:11:35] So the town always does a wonderful job with it. I would like to send my deepest sympathies to the families of those who were murdered senselessly in San Diego at the Islamic Center there.

[07:11:53] It's a horrific crime and one that should be condemned. And I would also like to say that in support of and in defense of our Jewish residents, we heard some anti-Semitic statements made tonight claiming Israel is an apartheid state.

[07:12:19] It is not. Muslims and Arabs can become judges and are judges at the highest level. They hold all professional jobs in Israel. It is the most democratic country in the Middle East.

[07:12:37] And the attacks on Israel from both Hamas in Gaza and Hezbollah in Lebanon are what cause Israel to fight back in self-defense.

[07:12:56] So I'm sorry to see that it's necessary once again to start trying to clarify the record on these issues. But that's what I would say I'll need to do from now on. Thank you. Mr. Letourneau.

[07:13:16] May 7th, my staff spoke with Jonathan Freeman of Novick regarding the DEMO substation application. May 8th and May 14th, my staff spoke with Brian Winterhalter of DLA Piper regarding the Quantum Park application. It's 1110 at night, and you all don't need to hear me talk. Mr. Vice Chair Turner.

[07:13:35] Thank you, Madam Chair. April 27, my staff and I spoke with Amanda Williams from Cooley and Jeff Snow, Jeff Tapley, and David Lucey from Digital Realty to discuss the application for Digital Dulles Western Lands Campus. April 29th and May 5th, my staff and I spoke with Amanda Williams from Cooley to discuss the application for Digital Dulles Western Lands Campus.

[07:13:55] On May 1st, my staff and I spoke with Denise Harriwer from Van Meter to discuss the application for Broadlands 104. On May 12th, my staff and I spoke with Kathleen Leonard from Dominion to discuss the application for Aspen substation. On May 12th, my staff and I spoke with Kathleen Leonard from Dominion to discuss the application for Barrister substation.

[07:14:13] On May 13th, my staff and I spoke with Brian Winterhalter from DLA Piper to discuss the application for Quantum Park. On May 18th, my staff and I spoke with Chuck Keown from JK Land Holdings to discuss the application for Valley Commerce. That's all. Thank you. On May 5th, my staff met with applicant representatives of Quantum Park.

[07:14:31] On May 12th, they met with representatives from both Aspen Substation and Barrister Substation. On several occasions, they spoke with applications for the Novak-Demo Substation. And on the 15th, I and my staff went with the applicant to visit the Valley Commerce Center site.

[07:14:50] I do want to offer my condolences to the victims in San Diego and just continue to talk about my heartbreak of what's happening in the world today, across the world today. I also want to say the very, very, very important name to me of Maddie Lasseter.

[07:15:12] Ms. Lasseter passed away on May 15th. Ms. Lasseter was a long-time resident of Loudoun County in Percival. She was one of the Douglas alumni. We are losing them pretty quickly now. She was the driving force behind the Carver Center in Percival.

[07:15:30] It had been the school that she attended as a child, and then it was, when it closed, it was used as a kind of a warehouse for school, for desks and things for LCPS. It was going to be torn down.

[07:15:46] And she was the one that led the effort to make it what it is right now, which is a community and kind of senior center. She was just lovely. Her husband, Horace Lassiter, was the first African-American to own his business in Leesburg. It was a barbershop. There's a Lassiter Street, actually, in Leesburg right now.

[07:16:05] When I was really trying to write some of my first African-American proclamations, I went up to Ms. Lassiter. between Ms. Lasseter and Ms. Thompson, Donna Pohannon and I, I think, literally, almost literally sat at their feet and just learned and learned and learned and learned and learned all we could about Loudoun County's history.

[07:16:25] It was really an honor to be with Ms. Lasseter. She was a kind, sweet, smart woman of faith who did hold me and the other people that she that she mentored to recount, and so she is and was loved, and we will miss her terribly.

[07:16:45] I will be writing, I will try to attend her services, and I will definitely write a letter to her family from my office. If anyone would like to join me on that letter, let me know. I am more than happy to do that. Thank you. Mr. Turner, would you read us into our last closed session, please. I move the Board of Supervisors recess this public meeting and enter into closed session pursuant to Virginia Code 2.2-3711A1

regarding appointments, performance, assignments, and other actions pertaining to a member of the Board of the Supervisors.

[07:17:18] Second. Second. Discussion on the motion? All in people say aye. Aye. Any opposed? That motion

[07:17:25] passed 9-0. We are in closed session. Okay, we are back and we're going to read out a closed session.

[08:53:10] Mr. Turner, please read us out a closed session. I move that closed session be adjourned that the of supervisors reconvenes this public meeting that the minutes of the public meeting should reflect that no formal action was taken in the closed session and further move that the resolution certifying closed session be adopted and reflected in the minutes of this public meeting.

[08:53:28] Motion is made in second. Any discussion on the motion? All the people say aye. Aye. Any opposed? A motion passed 9-0. Will everybody please affirm? Affirm. Affirm. Affirm. Affirm. Affirm. Affirm. Affirm. And I affirm as well. Thank you very much. I hope to see you all on Thursday.



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